City of Tulsa Planning Commission

Special Meeting
Wednesday, November 4, 2026, 10:00 a.m.
3rd Floor, Presentation Room, 175 E. 2nd St. Tulsa, OK 74103

Work Session Agenda

Call to Order

The Planning Commission will discuss:

1. Proposed zoning code amendments related to data centers (ZCA-41);
2. Proposed cleanup zoning code amendments (ZCA-42);
3. Proposed Housing Feasibility, Part II zoning code amendments (ZCA-39);
4. Proposed zoning code amendments related to open space requirements (ZCA-43);
5. Proposed Historic Preservation zoning code amendments related to demolition;
6. Proposed updates to the Historic Preservation Guidelines; and
7. Proposed updated Subdivision and Development Regulations.

Adjournment

If you require special accommodation pursuant to the Americans with Disabilities Act, please notify the Tulsa Planning Office at 918-596-7526.

Email address: planning@cityoftulsa.org Website: tulsaplanning.org

CITY OF TULSA PLANNING OFFICE

Planning Commission Work Session

November 4, 2026

Prepared by: Erin Roark & Felicity Good, AICP

Item

Discuss proposed zoning code text amendments related to **data centers (ZCA-41)**

Background

On November 6, 2024, Tulsa City Council adopted an amendment to the Tulsa Zoning Code (ZCA-31) defining data centers and establishing zoning standards for the use. Prior to the adoption of this amendment, data centers were most commonly classified as a Warehouse use. Following the adoption of ZCA-31, data centers were defined in the zoning code and classified as a Low-impact Manufacturing and Industry use.

Low-impact Manufacturing and Industry uses do not generate noticeable off-site impacts as part of their normal operations. This use classification was deemed appropriate based on knowledge of data centers in Tulsa at that time; however, this classification does not reflect the noticeable off-site impacts such as noise, vibration, and air pollutants observed from hyperscale data centers.

On February 11, 2026, the Tulsa City Council initiated a review of zoning regulations for data centers. On March 25, 2026, the city council declared a moratorium on new data centers, effective through December 31, 2026. As part of the moratorium, the planning office was required to send a report to council approximately every 60 days. To date, three such reports have been sent to Mayor Nichols and City Council for their review. The latest memorandum delivered to council in October 2026 included the planning office's completed research report, *Data Centers in Tulsa: Assessment of Land Use Impacts and Zoning Recommendations*, and a draft of proposed text amendments to address data center regulations in the City of Tulsa Zoning Code.

Key Concepts from Staff Research

- Data centers are facilities used to house infrastructure and associated components for the storage, management, processing, mining, and transmission of digital data. They are vital for business operations, cybersecurity, and other IT functions and have existed in Tulsa for decades. More recently, increased demand for hyperscale facilities has been driven by the rise of artificial intelligence (AI) initiatives.
- Data centers currently in Tulsa are edge, enterprise, or colocation centers, which are typically under 100,000 square feet. These centers are located in the Central Business (CBD), Scientific Research (SR), and Corridor (CO-18) zoning districts. Project Anthem in east Tulsa will be the city's first hyperscale facility and is estimated to be 2-million-square-feet.
- Data centers pose unique land use considerations in terms of their scale, noise generation, environmental impact, and infrastructure requirements. A central piece of these land use and zoning discussions around data centers relates to their proximity to other land uses, notably residential areas. When data centers are located close to people, increased noise levels and environmental effects can impact residents.

- Staff researched approaches taken by other cities and found that strategies were varied and that there is no "one-size-fits-all" approach. Commonalities included, but were not limited to, the requirement for a public hearing to permit data centers, increased setbacks from residential areas, more robust landscaping and screening requirements, and noise limitations.

Summary of Proposed Amendments

- Establishes a definition for data centers;
- Moves data centers out of the Low-Impact Manufacturing and Industry use subcategory and creates a new subcategory within the Industrial use category where data centers are delineated based on their size;
- Regulates where certain size classifications may be located within city limits;
- Addresses data centers that are accessory to a principal use;
- Increases setbacks for large data centers, while small and medium data centers remain subject to the requirements of the zoning district in which they are located;
- Furthers landscaping and screening requirements for large data centers, while small and medium data centers remain subject to the requirements of the zoning district in which they are located; and
- Adds previously established parking requirements for data centers to Table 55-1.

Next Steps

The proposed data center text amendments are scheduled for a City of Tulsa Planning Commission hearing on December 2, 2026. Following planning commission's recommendation, the amendments will be forwarded to the city council for their consideration. If approved by the city council and the mayor, the planning office anticipates that an ordinance to adopt the final version of the proposed zoning code amendments could be effective by February 2027.

Attachments

- Attachment I - Completed research report, *Data Centers in Tulsa: Assessment of Land Use Impacts and Zoning Recommendations*; and
- Attachment II - Proposed text amendments to address data center regulations in the City of Tulsa Zoning Code.

Data Centers in Tulsa

Assessment of Land Use Impacts and Zoning Recommendations

Prepared by the Tulsa Planning Office
Department of Planning & Neighborhoods, City of Tulsa

Erin Roark
Felicity Good, AICP
Nathan Foster
Susan Miller, AICP

10-16-2026

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Introduction

Background

On November 6, 2024, Tulsa City Council adopted an amendment to the Tulsa Zoning Code (ZCA-31) defining data centers and establishing zoning standards for the use. With the amendment, data centers were defined in the zoning code and classified as a Low-impact Manufacturing and Industry use. Low-impact Manufacturing and Industry uses do not generate noticeable off-site impacts as part of their normal operations. This use classification was deemed appropriate based on knowledge of data centers in Tulsa at that time. Historically, data centers in Tulsa were of smaller scale and did not generate potential impacts that have now become associated with newer, large-scale data centers.

On February 11, 2026, Tulsa City Council voted to initiate a formal review of the regulations for data centers in the zoning code. The Tulsa Planning Office was tasked with reviewing the existing regulations and evaluating potential zoning code amendments. On March 25, 2026, Tulsa City Council declared a moratorium on new building permits for data centers in Tulsa through December 31, 2026. The moratorium included an exception for Project Anthem Phases I & II, a proposed Meta data center in east Tulsa. Project Anthem Phase II at the time was the subject of a pending zoning case, Z-7851, which was withdrawn by the applicant prior to a decision by the planning commission.

As a provision of this moratorium, the planning office reports to the City Council approximately every 60 days until the moratorium expires to review progress toward re-evaluating data center regulations in the zoning code. This report is a culmination of the research involved in the preparation of a proposed zoning code amendment, ZCA-41, which amends the previous definition of data centers, creates a new use category for data centers with supplemental regulations, provides size classifications, and regulates where data centers can be located in Tulsa.

Scope of Report

The scope of this report is limited to land use and zoning issues. This report will discuss what data centers are, their scale, their impact on neighboring properties and people, and sample approaches from other cities. Finally, this report will provide recommendations for amending the Tulsa Zoning Code's regulations on data centers.

While the impact of data centers on public utilities, the environment, and the economy is of great concern to the public and therefore relevant to policy makers, those subjects are largely outside the area of expertise of those who prepared this report, and outside sources should be consulted.

Definitions & Trends

Data centers are facilities used to house infrastructure and associated components for the storage, management, processing, mining, and transmission of digital data. Data centers are considered critical infrastructure in the modern era and are vital for business operations, cybersecurity, and other IT functions. Physical data center components include servers, storage systems, network

equipment (switches, routers, fiber, etc.), and power supply. Environmental controls include cooling systems (air conditioning or liquid cooling), humidity sensors and controls, static electricity monitors, and fire prevention equipment. Redundancy or disaster recovery equipment, in case primary infrastructure fails, includes backup systems for storage, power supply (usually batteries or generators), and cooling (Susnjara & Smalley, n.d.).

The evolution of data centers began in the 1940s with the development of early computer systems. These first iterations of computers were primarily used by the US government, but by the mid-1960s, computers were developed for commercial use. In the 1970s, the first commercial microprocessors were developed, leading to the microcomputer boom of the 1980s. In the 1990s, microcomputer server rooms, much like the small, business-scale data centers of today, became widespread in offices throughout the country. In the 21st century, data centers have evolved rapidly (Harvey, 2017). Today, data centers can range widely in scale and are commonly classified as edge, enterprise, colocation, or hyperscale facilities (Maysteel Industries, LLC., 2023).

Edge facilities or "micro-data centers" can be small enough to fit in a closet or server room and generally serve to boost network speeds for small and medium sized businesses. Enterprise data centers are similar in size to edge facilities and support internal IT operations. Colocation facilities operate as shared data centers leased by multiple businesses. Hyperscale facilities are operated by cloud providers and are scalable to house millions of servers at one location (Shehabi, et al., 2024).

In the past decade, trends in the global distribution of data centers show a shift in a market dominated by enterprise or edge facilities to one dominated by hyperscale facilities. According to Synergy Research Group and as shown in Figure 1, in 2017 sixty percent (60%) of data centers worldwide could have been classified as on-site enterprise, twenty percent (20%) as colocation, and twenty percent (20%) as hyperscale. By 2023, the distribution shifted to thirty-seven percent (37%) enterprise, twenty-two percent (22%) colocation, and forty-one percent (41%) hyperscale. In 2024, Synergy predicted that by 2029, over sixty percent (60%) of data centers in the world would be considered hyperscale (Synergy Research Group, 2024).

Rising demand for data centers, especially colocation and hyperscale facilities, is driven by several factors. On-site enterprise and edge facilities can be expensive to operate, and many businesses prefer the convenience, expertise, and security of colocation and hyperscale facilities (Rabang, 2019). Additionally, the rise of artificial intelligence (AI) initiatives, such as ChatGPT, are often cited as a key factor in increased hyperscale facility development. Since ChatGPT launched in 2022, hyperscale operators' capital expenditures have increased by nearly 180%, reaching $142 billion in the third quarter of 2025, and the number of centers, megawatts of operational capacity, and company revenues all increased over the same time period (Synergy Research Group, 2025). In February 2026 the Wall Street Journal reported that Microsoft, Meta, Amazon, and Google together might spend up to $670 billion on AI infrastructure in 2026 alone—a projected 2.1% of the United States' total gross domestic product (GDP) (Bobrowsky, et al., 2026).

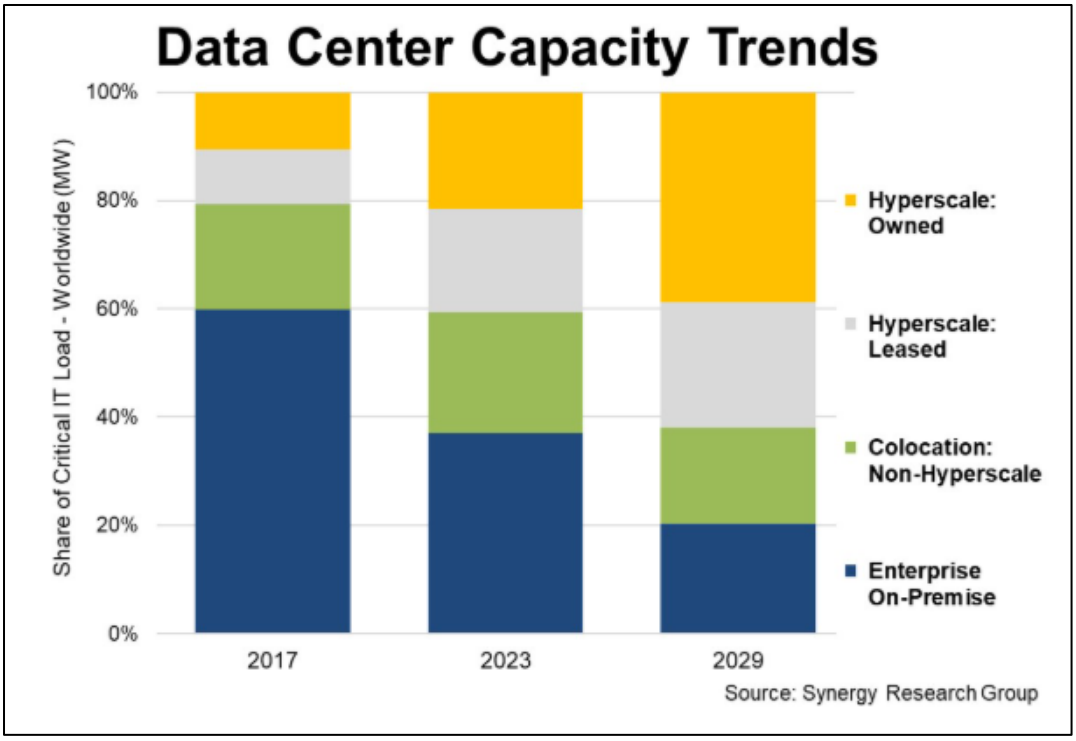


Figure 1: Global Data Center Capacity Trends (Synergy Research Group, 2024)

Data Centers in the Tulsa Area

Existing and Proposed Data Centers

According to Data Center Map, approximately twenty-five data centers are located within Tulsa city limits (Data Center Map, 2026). Most are clustered in the downtown area and along the Broken Arrow Expressway. These data centers are considered edge, enterprise, and colocation centers with smaller footprints than a typical hyperscale data center. They are located in the Central Business (CBD), Scientific Research (SR), and Corridor (CO-18) zoning districts.

Meta's Project Anthem in east Tulsa will be the city's first hyperscale data center. There are several proposed hyperscale data centers outside of Tulsa in the Owasso, Claremore, Muskogee, Coweta, and Sand Springs areas. Google's data center at the MidAmerica Industrial Park in Pryor, operational since 2011, is about 45 miles from downtown Tulsa (News On 6, 2026).

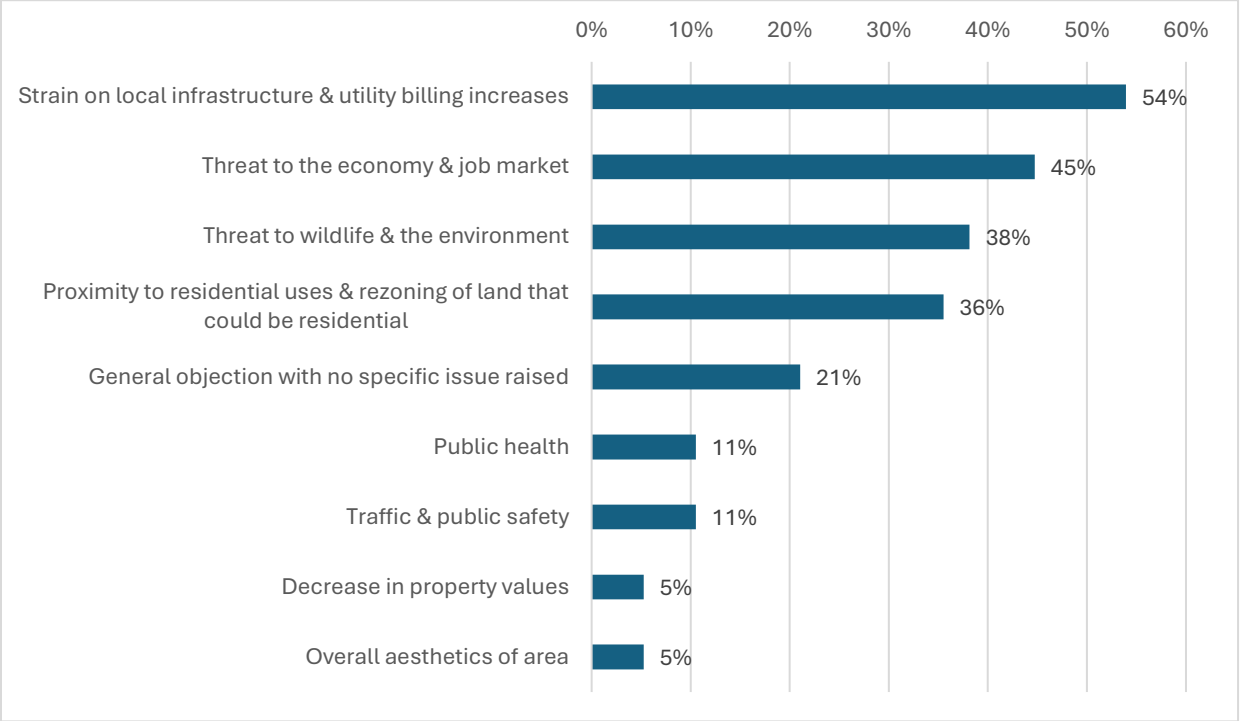
Local Public Opinion

As knowledge of hyperscale data centers has increased, the public has been more vocal in their opposition to new data center developments in the Tulsa area. For example, when the land for Project Anthem Phase I was successfully rezoned from AG to IL (Z-7745) in November 2023, no written public comments were submitted to the Tulsa Planning Office regarding the case. In contrast, when the rezoning application from AG to IL (Z-7851) for Project Anthem Phase II was set to go before the planning commission in April 2026, the Tulsa Planning Office received 81 letters of opposition and none in support. The applicant withdrew this proposal before the hearing. Recently proposed data

centers in surrounding communities have also faced significant public backlash, some resulting in withdrawn proposals, attempted recall petitions, and legal challenges (Killman, 2026). This reflects a pattern of activism against data center developments occurring across the nation (Tavernise, 2026).

Figure 2 shows common concerns brought up by the public in the letters of opposition received for Project Anthem Phase II. Fifty-four percent (54%) of the comments cited strain on local infrastructure or concerns about utility bill increases. Forty-five percent (45%) of the comments questioned whether data centers would be good for the city's economy or provide a significant number of jobs. Thirty-eight percent (38%) of the comments brought up concerns about negative impacts to wildlife, livestock, or the environment in general. Thirty-six percent (36%) of the comments related to the proposal's proximity to residential areas or pointed out that this rezoning would remove land viable for much-needed residential development within the city.

Figure 2. Concerns raised by Tulsans on Z-7851 (Project Anthem Phase II rezoning)



The recent public sentiment against data centers has also been evident in other local efforts to gather feedback on the issue. In early 2026, Mayor Nichols partnered with Change.org on its Ideas for Change initiative, an online platform in which residents were tasked with identifying ways to improve Tulsa (Ideas for Change, 2026). During Phase I, concerns over data centers ranked as the top community priority among the 4,034 participants, followed by housing and street conditions. In Phase II, Change.org selected 125 Tulsa residents to participate in a virtual civic dialogue focused on hyperscale data centers. Opinions were somewhat mixed about the high-level approach the City should take toward data centers, although all three options presented by the facilitators involved establishing some level of standards or oversight. Thirty-one percent (31%) of respondents indicated

data center development should be incentivized as long as data centers meet environmental standards and invest in the community; Thirty-eight percent (38%) indicated that Tulsa should permit but not incentivize the development of data centers with strong standards on utilities and pollution; and Thirty-one percent (31%) indicated that Tulsa should ban data centers outright (Ideas for Change, 2026). The dialogue revealed strong support among participants for a range of policy ideas related to land use, economic development, public oversight, and utility infrastructure.

Additionally, in early 2026 the Cherokee Nation Principal Chief's Task Force on Data Centers surveyed 1,593 Cherokee Nation citizens about hyperscale data centers. The task force described the results of the survey in their June 2026 *Report on the Impact of Data Centers on the Economy and Natural Environment of the Cherokee Nation Reservation*. Sixty-four percent (64%) of the respondents indicated that they do not support the development of hyperscale data centers within the Reservation, fourteen percent (14%) of respondents indicated that they support their development, and twenty-two percent (22%) indicated uncertainty (Principal Chief's Task Force on Data Centers, 2026).

Land Use & Zoning Issues

Data centers pose unique land use considerations in terms of their scale, noise generation, environmental impact, and infrastructure requirements. A central piece of these land use and zoning discussions around data centers relates to their proximity to other land uses, notably residential areas. When data centers are located close to people, increased noise levels and environmental effects can impact residents. Data centers are reportedly loud, and the National Institute on Deafness and Other Communication Disorders recommends preventing hearing loss by moving away from sources of noise pollution. However, this is not always possible when the noise is constant and outside one's home (National Institute on Deafness and Other Communication Disorders , 2014). Long-term exposure to fine particulate matter poses threat to respiratory health of neighboring residents. The creation of heat islands disrupts the quality of life of neighboring residents, their pets, livestock, and wildlife. Finally, the addition of large-scale utility users on the edges of urban areas may strain existing public infrastructure, potentially causing disruptions or increased costs for existing residents. These issues are discussed in the following sections.

Scale

A primary land use consideration for data centers is their scale, which varies considerably depending on the type of facility. Although there is little consistency in size estimates for data centers, Table 1 shows how three sources conceptualized the physical footprints of data centers. Micro, accessory, and edge facilities can fit in closets or server rooms or take up a floor of an office building. These facilities are generally up to 20,000 square feet but are often much smaller (Dickinson, et al., 2026; Biemer, 2025; Nichols, 2025). For instance, TierPoint, located at 322 East Archer Street in Tulsa, hosts a 6,000-square-foot center within a 36,000-square-foot building (Data Center Map, 2026). These are commonplace and have operated without significant complaint for decades.

Table 1. Size classifications of data centers from three sources

Classification	(Biemer, 2025)	(Dickinson, et al., 2026)	(Nichols, 2025)
Micro/Accessory	Less than 1,000 sq. ft.	-	Less than 3,000 sq. ft.
Edge	1,000 – 20,000 sq. ft.	-	
Enterprise	5,000 – 20,000 sq. ft.	50,000 – 250,000 sq. ft.	5,000 – 50,000 sq. ft.
Colocation	20,000 – 100,000 sq. ft.	-	50,000 – 600,000 sq. ft.
Hyperscale	100,000 – 1 million sq. ft.	500,000 – 1.5+ million sq. ft.	100,000 – 1+ million sq. ft.
Mega-Campus	1+ million sq. ft.		

Enterprise and colocation facilities generally range from 5,000 to 100,000 square feet, taking up multiple floors of a building or entire buildings themselves (Dickinson, et al., 2026; Biemer, 2025; Nichols, 2025). For instance, the data center at TulsaConnect East, located at 4500 South 129th East Avenue in Tulsa, is approximately 50,000 square feet (Data Center Map, 2026). While less common than micro, accessory, and edge facilities, several enterprise and colocation facilities have operated for decades in commercial or office settings in Tulsa with minimal impact to surrounding properties.

By contrast, hyperscale facilities are typically over 100,000 square feet in size but can be much larger, and their modular nature means they can be expanded indefinitely (Biemer, 2025; Dickinson, et al., 2026; Nichols, 2025). One of the largest data centers in the country by power capacity, Colossus 2 in Shelby, Tennessee, is housed in an approximately 1-million-square-foot building on 100 acres of land and has plans to expand further (Cleanview, 2026; Davis, 2026). Project Anthem under construction in east Tulsa is estimated to be a 2-million-square-foot facility (Partner Tulsa, 2026). This scale is on par with many NFL football stadiums, or some of the largest manufacturing plants in the country (Carolina Panthers, 2026; Acrisure Stadium, 2026; Thornton Tomasetti, n.d.; Robinson, 2026). In comparison, an average Walmart Supercenter is 178,000 square feet (Walmart Inc., 2022).

The scale and design of these hyperscale data centers calls into question their ability to be adapted should their use become obsolete. The AI boom is uncharted territory, and the longevity of this technology is untested. Like shopping malls that have shuttered with the shift from brick-and-mortar retail to e-commerce, abandonment of data centers could result in large, obsolete buildings littering the built environment, struggling to find a second life. Unlike shopping malls, these facilities are industrial in nature, often comprised of large warehouses and mechanical equipment that may be difficult to adapt for reuse. Similar concerns have been raised with the increase in mega-warehouses and distribution centers associated with the rise of online retailers like Amazon (Morley, 2026).

Noise & Vibration

Noise is one of the most discussed potential offsite impacts of data centers. In addition to noise during construction, operating data centers produce sound and vibrations mainly from power generating equipment and cooling equipment. Measuring the noise produced by data centers can be quite complicated, and there are few data to compare the difference in noise generated by different sizes of data centers. It stands to reason that an edge facility located in a server room in an enclosed building without backup generators will be less impactful than a hyperscale facility. Edge, enterprise, and colocation facilities have been active across the country for decades without notable issue.

Hyperscale facilities, which are a relatively new phenomenon, have seen countless complaints from neighbors regarding their impact, especially the noise these centers generate.

In simplified terms, the intensity of noise decreases with the square of the distance from the source, a relationship known as the Inverse-Square Law (Talbot-Smith, 1993). However, this relationship is idealized and does not consider real world factors such as physical obstructions or wind. Decibels are the standard measurement of sound intensity and can be weighted for different frequencies (National Institute on Deafness and Other Communication Disorders, 2025). A-weighted decibels (dBA) measure the frequency of sounds that the human ear is most attuned to hear and are usually the standard of measurement for decibel-based city noise ordinances. B-weighted decibels (dBB) and C-weighted decibels (dBC) measure lower frequency sounds that may be less perceptible to the human ear.

Prolonged or repeated exposure to volume levels in excess of 85 dBA is linked to hearing loss (National Institute on Deafness and Other Communication Disorders , 2014). Multiple studies have linked hearing loss to the development of dementia, including Alzheimer's Disease (Ralli, et al., 2019). The same risks posed by heightened noise levels also apply to animals. Noise pollution has been linked to migration pattern disruption, abnormal behavior, and decline in the reproductive success of wildlife (Buxton, et al., 2017; Ditmer, et al., 2021).

In multiple cities, such as Chandler, Arizona, concerns over the noise generated by active data centers have called residents to action (Welch, 2025). Former city councilor of Chandler, Jeff Weninger, was quoted saying, "We have already had some real issues with some of our neighborhoods along Dobson who can hear a constant humming from the 160 acres of data centers we already have" (Welch, 2025). Residents in other communities have described the sounds as similar to a continuous white noise (Sisson, 2026). This constant humming is a low frequency sound that may have a lower decibel reading in dBA than it would when weighted for lower frequencies.

Infrasound, or sound in frequencies below 20 hertz, is generally thought to be nearly imperceptible to humans (Møller & Pedersen, 2004; Scatterty, et al., 2026). Infrasound is commonplace, generated alongside audible noise with natural phenomena such as thunder, earthquakes, and strong winds as well as manmade machines such as cars, tools, and other machinery (Nowacki, et al., 2008). Subjective symptoms, including headaches, depression, and fatigue have been reported by people frequently exposed to infrasound (Blair, et al., 2018; Alves, et al., 2019). Additionally, some studies have attempted to link health issues with exposure to infrasound (Alves, et al., 2019; Scatterty, et al., 2026). However, the levels of infrasound produced by data centers have not been documented in available research.

Vibration is closely related to these sound considerations. Vibration has various measures but can also be shown in decibels (VdB). Ground-borne vibration can cause sounds, such as the low rumbling felt and heard from nearby traffic, and ground-borne noise tends to sound louder than broadband noises (consisting of a variety of frequencies at once) at the same level. Loud sounds, in turn, can cause vibrations to be felt (Volpe, 2018). Vibration is often considered when planning around freight

transportation, transit systems, and many industrial uses that use heavy machinery. Municipal ordinances related to vibration are usually found alongside noise limits since the two are intertwined.

Construction

One source of noise from data centers results from construction activity. Construction is a necessary aspect of development. While offsite impacts caused by construction have the potential to negatively impact neighboring residents, the temporary nature of construction makes these impacts negligible relative to the other, more long-lasting impacts of data center operations. However, buildouts of infrastructure required to serve a hyperscale data center, like power substations or streets, extend construction timelines beyond those required for the buildings on site. The modular nature of hyperscale data centers could also lead to repeated construction activities in an area as new phases are developed.

Generators

To keep operations running during power disruptions, data centers must rely on backup power sources, typically diesel generators (U.S. Department of Energy, 2024). In Northern Virginia, commonly referred to as the data center capital of the world, the number of onsite diesel generators permitted has increased by upwards of 70% since 2023 compared to the number permitted from 2000-2022 (Virginia Department of Environmental Quality, 2023). In Oklahoma, the availability and cost of natural gas make natural-gas-powered generators a viable option (Principal Chief's Task Force on Data Centers, 2026). Other back-up power solutions may include onsite battery power storage.

A household generator, with an output of 50 kilowatts (kW), may reach approximately 85 dBA, which is similar the noise attributed to traffic or a lawnmower (Worldwide Power Products, 2026; Jenkins, 2024). A larger generator, with an output of 1,500 kW, has decibel levels closer to 105 dBA, which is similar to the sound of a jet engine flying 1000 feet above a person's head (Worldwide Power Products, 2026). In Manasses, Virginia, a single data center linked to Amazon has 93 generators, each 2.5 megawatts (2,500 kW) in size (Giacobone, 2026). While diesel generators are not intended to run constantly on data center sites, their frequent, repeated use could create a nuisance or pose a threat to the hearing of neighboring residents if the sound remains at high levels beyond the data center site.

Cooling equipment

Climate control is vital in the operation of data centers because electrical currents create heat, and IT equipment must remain at optimal temperatures while running. Data centers use both air conditioning and liquid cooling systems (Susnjara, n.d.). The sheer size of a hyperscale facility means that numerous cooling systems run simultaneously. Indoor and outdoor cooling equipment such as air-cooled chillers, cooling towers, air conditioning units, and server fans can reach noise levels up to 100 dBA (Data Center Knowledge, 2025). As previously discussed, prolonged exposure to noise at this level may pose risk to public health and the quality of life of neighboring residents (National Institute on Deafness and Other Communication Disorders , 2014).

Environmental Concerns

Environmental concerns relate to land use and zoning in terms of the impact certain uses have on surrounding uses, or how they contribute to broader planning initiatives. It is nearly impossible to calculate the environmental impact of AI, in part due to insufficient disclosures of private tech companies (de Vries-Gao, 2026). However, some of the most cited environmental concerns about data centers are water consumption, water quality, emissions, air quality, and heat. Additional environmental concerns could be considered in a more comprehensive look at data center policy but are outside the scope of this report.

Water consumption and quality

Water concerns related to the operation of hyperscale data centers include aquifer depletion, surface water withdrawals, and pollution of waterways (Saha, 2026). Actual water consumption caused by the use of AI is difficult to measure. Estimates vary wildly depending on the source and whether direct or indirect water consumption is considered. For instance, in 2025 OpenAI CEO Sam Altman claimed that a single ChatGPT query uses about one-fifteenth of a teaspoon of water, while a 2023 report by the Associated Press cited estimated that a query uses about 16 ounces of water when considering indirect usage (O'Brien & Fingerhut, 2023; Altman, 2025). Data centers themselves consume water at high rates, directly as a means of climate control within the facilities and indirectly through the generation of electricity (Lei, et al., 2026).

Direct water consumption, particularly using potable water, is high when relying on evaporative cooling systems (Lei, et al., 2026). In 2021, an estimated fifty-seven percent (57%) of all data centers used water from potable water sources, such as municipal water or groundwater (Mytton, 2021). Google's first data center in The Dalles, Oregon, has received national attention for its massive water usage in an area already facing scarcity in its water supply (City of The Dalles, Oregon, 2026; Ehrlich, 2026; Lei, et al., 2026; Nichols, 2025). Some data centers have moved toward closed-loop water cooling or direct liquid cooling, which significantly reduce water consumption. Regardless of the cooling method, water quality remains a concern because of potential chemical pollutants present in the wastewater from data centers, as well as the discharge of wastewater at high temperatures (Saha, 2026).

Air quality and heat

Data centers emit air pollutants including fine particulate matter, sulfur dioxide, and nitrogen dioxide. These effects can be widespread, traveling up to hundreds of miles, across municipality, county, and state lines (Han, et al., 2024). Long-term exposure to fine particulate matter has been directly linked to premature mortality, heart attacks, asthma, stroke, lung cancer, and cognitive decline (Yu, et al., 2024). When data centers rely on diesel generators as backup power sources, air quality issues are to be expected. For example, if all diesel generators permitted in Northern Virginia in 2023 operated to the EPA limits for maximum permitted emission, 13,000 tons of nitrogen oxides, 1,400 tons of volatile organic compounds, 50 tons of sulfur dioxide, and 600 tons of particulate matter could be emitted per year (Han, et al., 2024; Virginia Department of Environmental Quality, 2023). Data

centers also emit greenhouse gases, primarily through their consumption of electricity (Siddik, et al., 2021).

Data centers' potential effects on temperature are related to air quality. One study released this year suggested that hyperscale data centers have led to heat island effects, increasing nearby surface temperatures by an average of 3.6 degrees and up to 16 degrees Fahrenheit (Paddlson, 2026; Marinoni, et al., 2026). However, the research did not address how that might translate into air temperatures or how the increase in surface temperature might compare with increases produced by other types of developments (Marinoni, et al., 2026; Masley, 2026; Paddlson, 2026). That said, data centers can generate massive amounts of waste heat when electrical energy is converted to thermal energy and then dispersed into the air or water through cooling systems. New technologies for harnessing waste heat from data centers and recovering it to heat nearby buildings have gained traction as a strategy for increasing energy efficiency and reducing carbon footprint (Hao, et al., 2025; Spencer, 2026). Additionally, heat islands can be reduced by promoting natural evaporative cooling through increasing tree coverage and green space (Waldrop, 2022).

Infrastructure and Economic Impact

Public conversation around data centers commonly involves their financial benefits or tradeoffs. Researchers from the Georgia Institute of Technology recently suggested that certain factors—for example, being in a metropolitan area or clustering data centers—tend to have a positive effect on economic outcomes such as employment figures and wage (Yue & Zeng, 2026). In practice, though, it can be difficult for policy makers to determine if data centers will provide benefits like long-term employment for local communities (Tarczynska, 2025). Short-term employment opportunities from the construction of data centers may be robust, and the modular nature of hyperscale centers could mean repeated manufacturing and construction job opportunities, many in technical and skilled trades. Hyperscale centers tend to provide fewer long-term employment opportunities in comparison to construction jobs. For reference, Project Anthem is projected to support 1,000 temporary construction jobs and 100 permanent jobs once construction is complete (Oklahoma Department of Commerce, 2026). This projection is consistent with the existing Google facility in Pryor, which employs approximately 100-150 full-time positions (Oklahoma Department of Commerce, 2026). These considerations, however, do not directly inform zoning requirements for data centers.

As discussed in previous sections, the most common criticism of the rezoning application for Project Anthem Phase II was its potential strain on local infrastructure and utility rate increases because data centers rely on large amounts of electricity and water to function. In Tulsa, Public Service Company of Oklahoma (owned by American Electric Power) provides electricity, Oklahoma Natural Gas (owned by ONE Gas) provides gas, and the City of Tulsa provides water, sewer, and stormwater services. Electricity prices are increasing across the country; however, it is unclear how much of those increases are attributable to data centers and other large users entering the power grid (U.S. Energy Information Administration, 2026). In response to concerns about data centers' effects on energy prices, Oklahoma passed the Data Center Consumer Ratepayer Protection Act of 2026

requiring large load users to cover their share of electricity and infrastructure costs and directing the Oklahoma Corporation Commission to ensure residents and other businesses do not pay unfair rates as a result of the increased demand (Oklahoma Senate, 2026).

From a local planning perspective, Tulsa's comprehensive plan emphasizes that areas most suitable for development, especially industrial sites, are those with existing infrastructure in place (Tulsa Planning Office, 2023). Tulsa's subdivision regulations also require developers to construct or install any required public infrastructure to serve their development, such as streets or water and sewer lines (Tulsa Metropolitan Area Planning Commission, 2023). Beyond that, the Water and Sewer Department is responsible for policies and plans surrounding City utility services, and it is outside the scope of this report.

Sample Approaches from Other Cities

Artificial intelligence and cloud computing are relatively new phenomena, and many cities' zoning codes, which might be decades old, do not directly address data centers. Tulsa is an example of this. Prior to the 2024 zoning code amendments establishing data centers as Low-impact Manufacturing and Industry, the Tulsa Zoning Code contained no references to data centers, and the use would have been classified as a warehouse. The speed at which hyperscale data centers are being constructed and the concerns brought up by the public have caused many communities across the country to reactively respond with moratoriums, studies, and new regulations. The National League of Cities developed an online Data Center Local Action Tracker to compile recent policies and ordinances implemented by local governments (National League of Cities, 2026). The planning office used this resource to evaluate proposed and adopted data center ordinances from eleven communities.

Data center regulations from the following communities, which have populations around 200,000 or more, were reviewed: Anchorage, Alaska; Atlanta, Georgia; Aurora, Illinois; Chandler, Arizona; Indianapolis, Indiana; Linn County, Iowa; Mesa, Arizona; Phoenix, Arizona; Prince William County, Virginia; San Antonio, Texas; and Tucson, Arizona. The purpose of reviewing the ordinances was to better understand the approaches Tulsa's peer cities are taking to regulate data centers. A summary of the ordinances follows, and a matrix with more detail about individual communities can be found in Appendix A.

The cities and counties that were evaluated established a wide range of regulations for data centers, some straightforward and some complex. Requirements for data centers frequently found across the ordinances include the following:

- A special use permit or special zoning district, requiring a public hearing for data centers.
- Setbacks from residential areas or other sensitive uses, like schools.
- Landscaping and screening requirements, especially for mechanical equipment.
- Required noise studies establishing baseline noise levels and post-construction noise levels, or other noise limits.
- Limits on where and when generators may be used.

- Verification from utility providers of capacity and willingness to serve.
- Water or electricity estimates and reports.
- Other reports or plans such as emergency management plans, environmental reports, or traffic studies.
- Public communication requirements such as pre-development neighborhood meetings, publicly visible on-site signage with emergency contacts, on-site staffing to receive neighborhood complaints, or a website or digital dashboard publishing specific information.

Although commonalities were found, each sample ordinance caters to its unique community concerns and zoning code. There is no one-size-fits-all approach. Many of the regulations address issues outside the scope of Tulsa's zoning code, such as utility capacity or economic development agreements. While those could be models for a more comprehensive approach to data center policy in Tulsa, this report is limited to zoning and land use recommendations appropriate for Tulsa.

The zoning recommendations for Tulsa, detailed in the following section, incorporate many approaches found in some of the sample ordinances, including the separate classification of large and small data centers, limitations on the zoning districts in which they may be located, establishment of setbacks from residentially zoned areas, and landscaping and screening requirements.

Zoning Recommendations

Use classification

In Tulsa, data centers are classified as a Low-Impact Manufacturing and Industry use, regardless of scale. These are industrial uses that do not, as part of their normal operations, generate noticeable off-site impacts in terms of noise, smoke, particulate matter, odors, or vibration. This definition is suitable for the smaller edge, enterprise, and colocation facilities that have existed within the city for decades. However, this classification does not reflect the noticeable off-site impacts observed from hyperscale data centers.

Therefore, the Tulsa Planning Office proposes amending the zoning code to move data centers out of the Low-Impact Manufacturing and Industry use subcategory (§35.070-A), create a new subcategory within the Industrial use category (§35.070), delineate data centers based on their size, and regulate where certain size classifications may be located within city limits. The proposed subcategory creates three use classifications for data centers: small (up to 20,000 square feet), medium (20,000-100,000 square feet), and large (over 100,000 square feet). All building floor area and outdoor equipment areas are used to calculate the size of a data center.

In determining where data centers may be permitted, either by right or by special exception, staff reviewed the sizes of current facilities and where they exist within the city. This review was intended to align potential zoning changes with current conditions in Tulsa and to limit the creation of nonconformities. In the proposed amendments, small data centers (up to 20,000 square feet) may be permitted by special exception in OM, OMH, OH, CS, CG, and CH districts and are allowed by right

in CBD, CO, SR, IMX, IL, IM, and IH districts. This size classification aligns most closely with micro, edge, and enterprise facilities, which are vital to supporting the functions of businesses found within these districts.

Additionally, the amendments would permit medium data centers (20,000-100,000 square feet) by special exception in CBD and IL districts, and by right in CO, SR, IM, and IH districts. This size classification aligns most closely with enterprise and colocation facilities that have a larger footprint than micro, edge, and enterprise facilities but do not have the noticeable offsite impacts reported from hyperscale facilities.

Finally, the amendments would permit large centers (over 100,000 square feet) by right only in IM and IH districts. This size classification aligns most closely with hyperscale facilities, which reportedly have noticeable offsite impacts and therefore should be limited only to moderate or heavy industrial districts. A map showing industrially zoned properties in the city is included as Appendix B. The map indicates where IL, IM, and IH zoning districts are located, but it does not indicate where a large data center could actually be built based on the proposed supplemental regulations, as well as other site feasibility factors. For example, with the required 500-foot landscape buffer described below, large data centers would need to be located on a lot with an estimated area of at least 40 acres, but likely much more depending on the size of the facility and its proximity to agricultural or residential districts.

Accessory Uses

Chapter 45 of the zoning code defines and addresses accessory uses. Accessory uses are subordinate and incidental to a principal use. They also must be located on the same lot as the principal use to which they are accessory. In the proposed amendments, data centers are permitted as an accessory use in O, C, I, CO, SR, and IMX districts but may occupy no more than twenty percent (20%) of the floor area of the principal uses they serve. Furthermore, in office and commercial districts all components of accessory data centers must be located within the principal building.

Setbacks

Currently, the zoning code requires buildings in industrial districts to be set back at least 75 feet from AG, AG-R, or R districts. Buildings in O, CS, and CG districts must be set back at least 10 feet from AG, AG-R, or R districts, with an additional setback based on building height in some cases. Additionally, industrial uses located within 300 feet of an abutting R- or AG-R-zoned lot must be conducted within an enclosed building, except for storage and loading areas. In the proposed amendments, small and medium data centers remain subject to the setback requirements of the zoning district in which they are located, while buildings and outdoor equipment associated with large data centers must be set back at least 1,500 feet from R, AG, or AG-R districts.

Landscaping and screening

Chapter 65 of the zoning code contains landscaping and screening requirements. Required landscaping for new developments includes street trees, parking lot landscaping, and vehicular use area buffers. The amendments propose further landscaping requirements for large data centers. As proposed, a 500-foot-wide landscape buffer must be maintained along the entire perimeter of a lot containing a large data center.

Screening is already addressed in the zoning code in a few places. First, industrial uses on lots abutting R- or AG-R-zoned lots require a screening wall or fence along the common lot line. That would consist of either a 6-foot-tall opaque fence with trees every 25 feet, or a 6-foot-tall masonry wall. Additionally, ground-mounted mechanical equipment, including heating or cooling equipment and generators, must be screened from view of the street and abutting R or AG-R districts by walls, fences, or vegetation, which must be at least as tall as the tallest part of the equipment. Roof-mounted mechanical equipment must be screened if it is located within 50 feet of an R or AG-R district. The screening must be accomplished with a parapet, screening fence or wall, or setback from the roof edge of three feet for each one foot of equipment height. No changes to these requirements are proposed. These would apply to small, medium, and large data centers.

Parking

When regulations for data centers were first adopted in 2024, required parking ratios were added to Section 55.050, Parking Exemptions and Credits. One space is required per 1,000 square feet of office space, and 0.15 space is required per 1,000 square feet of warehouse, technology, or equipment areas. In the proposed amendments, the current parking requirement for data centers is moved into Table 55-1, which contains minimum parking ratios for other uses.

Noise

In Tulsa, noise is regulated by the nuisance ordinance in Title 24 and relies on a “reasonable person” standard rather than a strict decibel limit. As Title 24 falls outside of the zoning code, no changes explicitly regarding noise regulations for data centers are proposed. However, the setback, buffer, and screening requirements addressed in the proposed amendments aim to minimize off-site impacts of data centers, such as noise.

Conclusions & Next Steps

Tulsa’s current zoning classification of data centers as Low-Impact Manufacturing and Industry uses, regardless of scale, does not reflect the noticeable off-site impacts observed from hyperscale data centers. Low-Impact Manufacturing and Industry uses are defined as industrial uses that do not, as part of their normal operations, generate noticeable off-site impacts. Evidence supports that hyperscale data centers do generate noticeable off-site impacts in terms of noise, particulate matter, and vibration. In addition, the size and scale of the facilities are an important factor in determining the impact that these facilities will have on the built environment and surrounding properties.

The Tulsa Planning Office recommends creating a new subcategory specifically for data centers and categorizing data centers based on their size. Large data centers would be limited to moderate and heavy industrial areas. Furthermore, in addition to the landscaping and screening requirements already established in the zoning code, the proposed amendments would require large data centers to maintain a 500-foot-wide landscape buffer along the entire perimeter of the lot. Additionally, for large data centers, any building and outdoor equipment must be set back at least 1,500 feet from R, AG, or AG-R districts.

This report and the proposed zoning code amendments are being sent to the Tulsa City Council in late October 2026. These items will be presented for discussion at the November 4, 2026, City of Tulsa Planning Commission work session. Feedback from the city council and planning commission about the proposed amendments will be incorporated into the draft proposal of ZCA-41. The planning office intends for ZCA-41 to be considered by the planning commission on December 2, 2026. Following a recommendation from the planning commission, the city council will make a final decision on the proposed zoning code amendments. The data center moratorium is effective through December 31, 2026. If approved by the city council and the mayor in January, the planning office anticipates that an ordinance to adopt the final version of ZCA-41 could be effective by end of February 2027.

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Appendix A: Matrix of Sample Regulations from Selected Cities and Counties (Adopted and Proposed)

	Anchorage	Atlanta	Aurora (IL)	Chandler	Indian-apolis	Linn County	Mesa	Phoenix	Prince William County	San Antonio	Tucson
Use Allowances											
Large data centers separated from small data centers	■					■					■
Data centers may be allowed in industrial districts	■	■	■			■		■	■	■	
Data centers may be allowed in mixed-use, commercial, research, or office districts		■	■			■		■	■	■	
Data centers need conditional or special use permit	■	■	■					■	■	■	
Data centers require overlay or special zoning district				■	■	■			■		■
Allowances for accessory-use data centers				■			■				
Setbacks & Separation Distance											
Setback from residential areas	■		■		■	■	■				■
Setback from other sensitive uses (e.g. schools, hospitals)	■		■		■	■	■				■
Setback from transit stops		■						■			
Landscape & Screening											
Landscaped buffer along roads or property lines	■				■	■		■	■	■	■
Screening of mechanical equipment	■	■	■		■		■	■	■		■
Screening of buildings	■				■						
Wall or fence design standards	■	■	■		■		■	■	■		
Building Design											
Building height or floor area ratio							■		■		■
Main entrance orientation or design	■						■	■			

Appendix A: Matrix of Sample Regulations from Selected Cities and Counties (Adopted and Proposed)

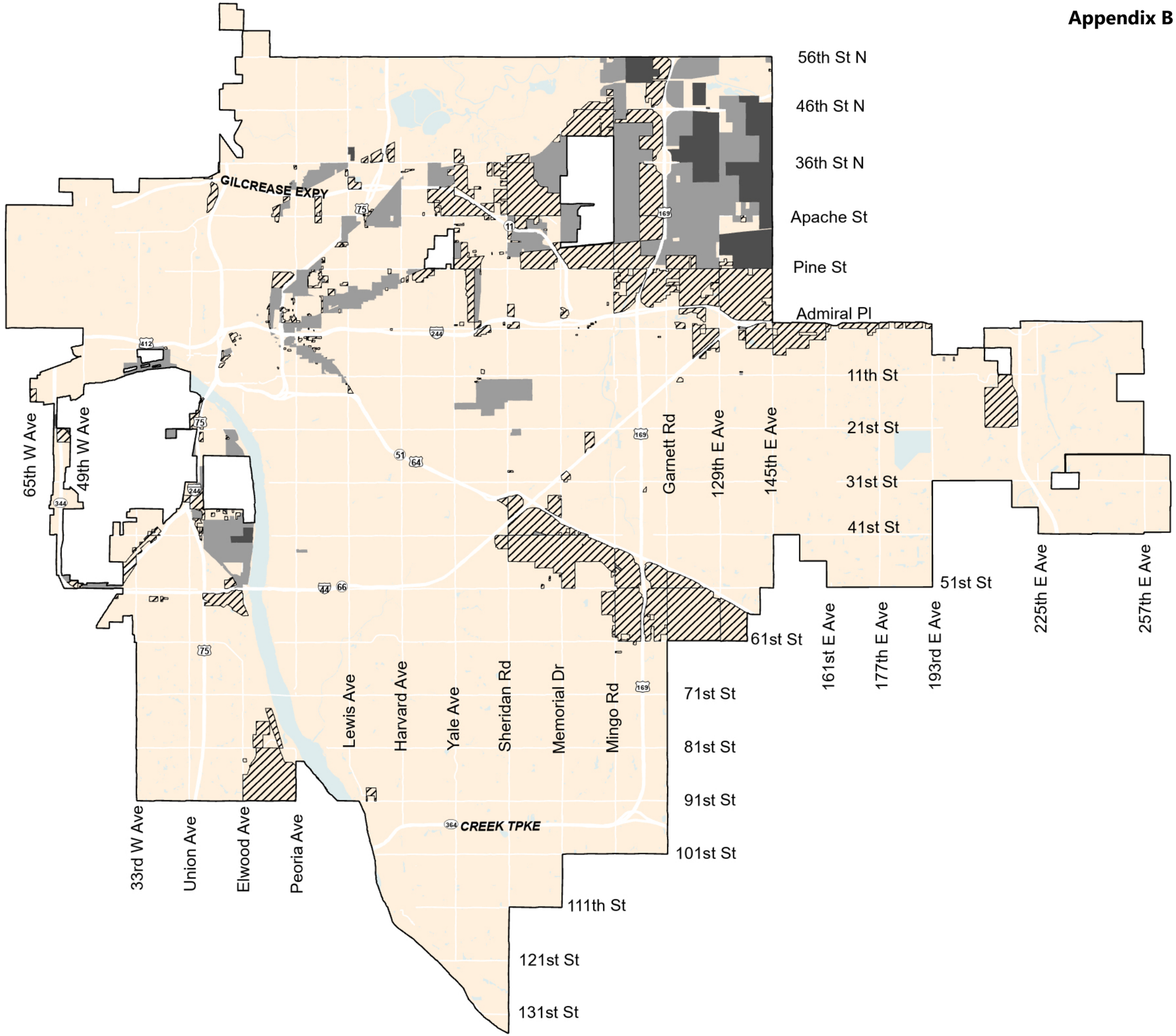
	Anchorage	Atlanta	Aurora (IL)	Chandler	Indian-apolis	Linn County	Mesa	Phoenix	Prince William County	San Antonio	Tucson
Façade design (variation or specific architectural features)		■					■	■	■		
Lighting design						■				■	
Equipment height or location limits		■	■		■	■	■	■			
Noise & Vibration											
Noise study by professional	■		■	■	■	■	■	■			■
Decibel limits			■		■	■		■			
Refers to city noise ordinance										■	■
Calls out low-frequency, vibration or infrasound			■			■					■
Limits on generator use (e.g. hours of operation, used for testing or power outages only)			■	■	■	■	■				■
Public Communications											
Developer-led neighborhood meeting(s) with notice				■		■	■				
24-hour signage with emergency contact visible at entrances					■					■	
On-site neighborhood liaison				■							■
Public website or dashboard					■		■				
Utilities											
Verification of capacity/will-serve from utility providers	■				■	■		■			■
Electricity, water, or wastewater plan or reporting	■	■	■		■	■	■				
Underground utilities					■		■	■			
Cooling systems using potable water prohibited			■								■

Appendix A: Matrix of Sample Regulations from Selected Cities and Counties (Adopted and Proposed)

	Anchorage	Atlanta	Aurora (IL)	Chandler	Indian-apolis	Linn County	Mesa	Phoenix	Prince William County	San Antonio	Tucson
Other											
Sidewalk or trail standards					■			■			
Other required plans or reports (e.g. environment, emergency)	■	■	■		■	■	■			■	■
Development agreement			■			■					
Removal of equipment upon decommissioning			■							■	

Appendix B

City of Tulsa Zoning
IL, IH, IM



- Industrial Light (IL)
- Industrial Moderate (IM)
- Industrial Heavy (IH)

N

0 0.5 1 2 3 4 Miles

Prepared by COT GIS Services:
10/8/2026

CITY OF TULSA PLANNING OFFICE

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Chapter 15 | Office, Commercial and Industrial Districts

***

Section 15.020 Use Regulations

***

Table 15-2-: O, C and I District Use Regulations

USE CATEGORY Subcategory Specific use	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH	Supplemental Regulations
***												
INDUSTRIAL												Section 40.180
Low-impact Manufacturing & Industry	–	–	–	–	–	S	S	S	P	P	P	
Moderate-impact Manufacturing & Industry	–	–	–	–	–	–	–	–	S	P	P	Section 40.225
High-impact Manufacturing & Industry	–	–	–	–	–	–	–	–	–	S	P	
Mining or Mineral Processing	–	–	–	–	–	–	–	–	–	S	S	Section 40.230
Junk or Salvage Yard	–	–	–	–	–	–	–	–	–	S	P	Section 40.190
Data Center												Section 40.440
Small (up to 20,000 square feet)	–	S	S	S	S	S	S	P	P	P	P	
Medium (20,000-100,000 square feet)	–	–	–	–	–	–	–	S	S	P	P	
Large (over 100,000 square feet)	–	–	–	–	–	–	–	–	–	P	P	

***

Chapter 25 | Special Districts

***

Section 25.040 CO, Corridor District

***

25.040-B Use Regulations

1. Uses identified with a "P*" in Table 25-4 may be approved in CO districts at the time of development plan approval. Only uses approved through the development plan approval process of Section 70.040 are allowed. Allowed uses are subject to compliance with all other applicable regulations of this zoning code.

2. Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in 35.020-E) to fall within any defined use category are also prohibited.

Table 25-4: CO District Use Regulations

USE CATEGORY **Subcategory** (Section 35.020) Specific use	CO	Supplemental Regulations
***		
INDUSTRIAL		Section 40.180
Low-impact Manufacturing & Industry	P*	
Mining or Mineral Processing	–	
Data Center		Section 40.440
Small (up to 20,000 square feet)	P*	
Medium (20,000-100,000 square feet)	P*	
Large (over 100,000 square feet)	–	
***		

Section 25.050 SR, Scientific Research District

***

25.050-B Use Regulations

***

Table 25-5: SR District Use Regulations

USE CATEGORY **Subcategory** (Section 35.020) Specific use	SR	Supplemental Regulations
***		
INDUSTRIAL		Section 40.180
Data Center		Section 40.440
Small (up to 20,000 square feet)	P	
Medium (20,000-100,000 square feet)	P	
Large (over 100,000 square feet)	–	
***		

Section 25.060 IMX, Institutional Mixed-Use

***

25.060-B Use Regulations

***

Table 25-7: IMX District Use Regulations

USE CATEGORY **Subcategory** (Section 35.020) Specific use	IMX	Supplemental Regulations
***		
INDUSTRIAL		Section 40.180
Data Center		
Small (up to 20,000 square feet)	P	Section 40.440
***		

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Chapter 35 | Building Types and Use Categories

***

Section 35.070 Industrial Use Category

This category includes uses that produce goods from extracted and raw materials or from recyclable or previously prepared materials, including the design, storage and handling of these products and the materials from which they are produced. The industrial subcategories are:

35.070-A Low-impact Manufacturing and Industry

Manufacturing and industrial uses that do not, as part of their normal operations, generate noticeable off-site impacts in terms of noise, smoke, particulate matter, odors, or vibration. Typical examples of low-impact manufacturing and industrial uses include: commercial laundries and linen supply services, apparel manufacturing, bakery products manufacturing, production of medical marijuana products, such as edibles and pre-rolls, using medical marijuana components processed elsewhere, bottling plants, ice manufacturing, mattress manufacturing and assembly, microbreweries, micro distilleries, ~~data centers,~~ coffee roasting with a maximum roasting capacity of 45 kilograms per batch, musical instrument and parts manufacturing, newspaper printing and binderies.

***

~~4. Data Center~~

~~A facility or facilities used to house, and in which are operated, maintained and replaced from time to time, computer systems and associated components, including but not limited to telecommunications and storage systems, cooling systems, power supplies and systems for managing electrical and mechanical performance, and equipment used for the transformation, transmission, distribution and management of electricity for on-site uses, internet-related equipment, data communications connections, private communication towers, environmental controls and security devices.~~

***

35.070-F Data Center

A facility or facilities used to house infrastructure and associated components for the storage, management, processing, mining, and transmission of digital data. The aggregate of all building floor area and outdoor equipment areas must be used to determine the data center's use classification.

***

Chapter 40 | Supplemental Use and Building Regulations

***

Section 40.440 Data Centers

The supplemental use regulations of this section apply to large data centers.

40.440-A In addition to the landscaping requirements of Chapter 65, large data centers must maintain a 500-foot-wide landscape buffer along the entire perimeter of the

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lot. Within the landscape buffer, the natural topography and nature of the land shall be preserved, and existing growth shall not be disturbed except where necessary to remove dead or diseased plants. Required landscaping and screening to comply with Section 40.180-A and Chapter 65 may be located within the landscape buffer.

40.440-B Buildings and outdoor equipment must be set back 1,500 feet from R, AG, or AG-R districts.

***

Chapter 45 | Accessory Uses and Structures

***

Section 45.200 Data Centers

Data centers are permitted as an accessory use in O, C, I, CO, SR, and IMX districts, subject to the following regulations.

45.200-A In O and C districts, all components of an accessory use data center must be located within the principal building. An accessory use data center in an O or C district may occupy no more than 20% of the floor area of the principal use it serves.

45.200-B In I, CO, SR, and IMX districts, an accessory use data center may not occupy more than 20% of the floor area of the principal use it serves.

***

Chapter 55 | Parking

Section 55.020 Minimum Parking Ratios

Off-street motor vehicle parking spaces must be provided in accordance with the minimum ratios established in Table 55-1. See Section 55.050 for an explanation of exemptions and allowed reductions of minimum motor vehicle parking requirements. See Section 55.060 for additional information about bicycle parking requirements.

Table 55-1: Minimum Motor Vehicle Parking Ratios

USE CATEGORY **Subcategory** Specific use	**Measurement** (spaces per)	**CBD**	**All Other Districts and PI Overlay** [1] See Section 20.040 for information on PI Overlay	**Additional requirements / notes for All Other Districts**
INDUSTRIAL				
Low-impact, Moderate-impact and High-impact Manufacturing & Industry	1,000 sq. ft.	0.00	0.85	
Mining/Extraction	1,000 sq. ft.	0.00	0.65	
Junk or Salvage Yard	1,000 sq. ft.	0.00	0.65	
Data Center	1,000 sq. ft. (Warehouse, storage, and equipment areas)	0.00	0.15	plus one space per 1,000 square feet of office area

***

Section 55.050 Parking Exemptions and Credits

***

~~55.050-M Data Centers~~

~~Minimum parking for data centers shall be provided as follows:~~

~~1. Office area: 1 space per 1,000 square feet; and~~

~~2. Warehouse/storage/technology equipment area: 0.15 space per 1,000 square feet.~~

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CITY OF TULSA PLANNING OFFICE

Planning Commission Work Session

November 4, 2026

Prepared by: Felicity Good, AICP

Item

Discuss proposed **cleanup zoning code text amendments (ZCA-42)**

Background

During the development of the 2016 City of Tulsa Zoning Code, staff anticipated that cleanup items would be identified as implementation began. In early 2016, a zoning code implementation team was established and began meeting regularly to discuss situations where inconsistencies existed, clarification was needed, intent was not fully accomplished, and unintended consequences occurred. Since the effective date of the zoning code, staff has brought several rounds of general cleanup amendments through the approval process. The zoning code implementation team meets as needed and consists of members of the Tulsa Planning Office, Code Enforcement, Development Services Department, and Legal Department.

The proposed amendments are a result of the continuing work of the zoning code implementation team. Primarily these items were identified through interactions with the public through zoning, enforcement, and building permit processes. The proposed amendments are in Chapters 1, 5, 10, 15, 25, 35, 40, 55, 70, 90, and 95 of the zoning code. The proposed amendments are minor in nature, but important to ensure ease of usability and enforcement of the zoning code. Below is a general description of items included in this round of cleanup.

- Clarify that "planning commission" now refers to the City of Tulsa Planning Commission
- Allow existing public parks established on or before January 1, 2016, by right in districts where they were previously allowed by special exception.
- Insert the full use name, "Airport or Ground Transportation Terminal," in all use tables and the parking table, where the use name is currently shortened to "Airport," and update the definition of the use to clarify that it includes local bus and train facilities.
- Change the minimum ground floor ceiling height from 14 feet to 12 feet for -F character zones in mixed-use districts, correcting a previous amendment.
- Clarify that medical spas fall under the Medical, Dental, and Health Practitioner Office use.
- Remove "private parties" from the examples of events not allowed in conjunction with short-term rentals, to reduce confusion.
- Increase the bench seating measurement for parking calculations, and simplify the parking requirement for Religious Assembly uses.
- Correct a typo and allow development plan minor amendments to reduce parking ratios by up to 10% fewer spaces than required in Table 55-1.
- Remove the required letter of deficiency for administrative adjustment applications.
- Allow in-ground storm shelters in R districts to be in side, rear, and rear street setbacks.
- Add or update definitions for "alley," "right-of-way," and "street."

Next Steps

ZCA-42 will be scheduled for a planning commission public hearing on December 2, 2026, and will then be transmitted to the City Council for their consideration.

Attachment

The proposed text amendments to the City of Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances, are shown in ~~strikethrough~~/underline in the **Attachment**.

1. New City Planning Commission

The Tulsa City Council and Tulsa Board of County Commissioners approved a joint resolution dissolving the Tulsa Metropolitan Area Planning Commission, effective September 2, 2026. A new City of Tulsa Planning Commission has been established in its place for properties within the city limits of Tulsa. This change addresses the name of the new commission within the zoning code.

Chapter 1 | Introductory Provisions

***

Section 1.090 Rules of Language and Construction

***

1.090-I Public Officials and Agencies

***

5. Effective on September 2, 2026, ~~R~~references in this zoning code to the "planning commission" are references to the ~~Tulsa Metropolitan Area~~City of Tulsa Planning Commission. References to the "planning commission" and its actions prior to that date are references to the Tulsa Metropolitan Area Planning Commission.

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2. Parks and Recreation Uses

Most of the City's 134 public parks are in residential or agricultural districts, in which Parks and Recreation uses require special exception approval from the board of adjustment. When the board of adjustment ties the approval to a site plan, the Parks Department must return for approval of an amended site plan each time they make changes to the existing park. Although routinely approved by the board, this represents an extra, unnecessary step in the process and has resulted in complicated case histories for park sites. For example, in February 2013 the Parks Department requested, and the board approved, 10 separate special exceptions to replace identification signs at 10 city parks. This change allows existing public parks established by January 1, 2016, to continue operating by right in the City. All private parks and new public parks will still require special exception approval in residential and agricultural districts.

Chapter 5 | Residential Districts

***

Section 5.020 Use Regulations

***

Table 5-2: R District Use Regulations

USE CATEGORY Subcategory Specific use	RE	RS-					RD	RT	RM-				RMH	Supplemental Regulations
		1	2	3	4	5			0	1	2	3		
***														
PUBLIC, CIVIC AND INSTITUTIONAL														
***														
Parks and Recreation	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	
Public parks established on or before Jan. 1, 2016	P	P	P	P	P	P	P	P	P	P	P	P	P	
Others	S	S	S	S	S	S	S	S	S	S	S	S	S	

***

Chapter 15 | Office, Commercial and Industrial Districts

***

Section 15.020 Use Regulations

***

Table 15-2: O, C and I District Use Regulations

USE CATEGORY Subcategory Specific use	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH	Supplemental Regulations
***												
PUBLIC, CIVIC AND INSTITUTIONAL												
***												
Parks and Recreation	~~S~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~S~~	~~S~~	~~S~~	
Public parks established on or before Jan. 1, 2016	P	P	P	P	P	P	P	P	P	P	P	
Others	S	P	P	P	P	P	P	P	S	S	S	
***												

Chapter 25 | Special Districts

***

Section 25.020 AG, Agricultural District and AG-R, Agricultural-Residential District

***

25.020-B Use Regulations

***

Table 25-1: AG District Use Regulations

USE CATEGORY Subcategory (Section 35.020) Specific use	AG	AG-R	Supplemental Regulations
***			
PUBLIC, CIVIC AND INSTITUTIONAL			
***			
Parks and Recreation	~~S~~	~~S~~	
Public parks established on or before Jan. 1, 2016	P	P	
Others	S	S	
***			

Section 25.050 SR, Scientific Research District

***

25.050-B Use Regulations

***

Table 25-5: SR District Use Regulations

USE CATEGORY Subcategory (Section 35.020) Specific use	SR	Supplemental Regulations
***		
PUBLIC, CIVIC AND INSTITUTIONAL		
***		
Parks and Recreation	~~S~~	
Public parks established on or before Jan. 1, 2016	P	
Others	S	

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3. Airport and Ground Transportation Terminal Use Name

Airports and Ground Transportation Terminals (i.e., bus or train stations) are considered the same use in the zoning code. However, the full term, "Airport or Ground Transportation Terminal," is not included in any use tables or the minimum parking ratios table, which makes it unclear how Ground Transportation Terminals are regulated. This change corrects the name of the use, so that it is consistent throughout the zoning code. It also updates the definition to clarify that the use includes local bus and train systems.

Chapter 5 | Residential Districts

***

Section 5.020 Use Regulations

***

Table 5-2: R District Use Regulations

USE CATEGORY Subcategory Specific use	RE	RS-					RD	RT	RM-				RMH	Supplemental Regulations
		1	2	3	4	5			0	1	2	3		
***														
PUBLIC, CIVIC AND INSTITUTIONAL														
Airport or Ground Transportation Terminal	S	S	S	S	S	S	S	S	S	S	S	S	S	

***

Chapter 15 | Office, Commercial and Industrial Districts

***

Section 15.020 Use Regulations

***

Table 15-2: O, C and I District Use Regulations

USE CATEGORY Subcategory Specific use	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH	Supplemental Regulations
***												
PUBLIC, CIVIC AND INSTITUTIONAL												
Airport or Ground Transportation Terminal	S	S	S	S	S	S	S	S	S	S	S	

***

Chapter 25 | Special Districts

***

Section 25.020 AG, Agricultural District and AG-R, Agricultural-Residential District

***

25.020-B Use Regulations

***

Table 25-1: AG District Use Regulations

USE CATEGORY Subcategory (Section 35.020) Specific use	AG	AG-R	Supplemental Regulations
***			
PUBLIC, CIVIC AND INSTITUTIONAL			
Airport or Ground Transportation Terminal	S	S	

***

Section 25.040 CO, Corridor District

***

25.040-B Use Regulations

***

Table 25-4: CO District Use Regulations

USE CATEGORY Subcategory (Section 35.020) Specific use	CO	Supplemental Regulations
***		
PUBLIC, CIVIC, AND INSTITUTIONAL		
Airport or Ground Transportation Terminal	P*	

***

Section 25.050 SR, Scientific Research District

***

25.050-B Use Regulations

***

Table 25-5: SR District Use Regulations

USE CATEGORY Subcategory (Section 35.020) Specific use	SR	Supplemental Regulations
***		
PUBLIC, CIVIC AND INSTITUTIONAL		
Airport or Ground Transportation Terminal	S	

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***

Section 25.060 IMX, Institutional Mixed-Use

***

25.060-B Use Regulations

***

Table 25-7: IMX District Use Regulations

USE CATEGORY Subcategory (Section 35.020) Specific use	IMX	Supplemental Regulations
***		
PUBLIC, CIVIC AND INSTITUTIONAL		
Airport or Ground Transportation Terminal	S	
***		

Chapter 35 | Building Types and Use Categories

***

Section 35.040 Public, Civic and Institutional Use Category

This category includes public, quasi-public and private uses that provide unique services that are of benefit to the public at-large. The public, civic and institutional subcategories are as follows.

35.040-A Airport or Ground Transportation Terminal

Facilities from which FAA-certified aircraft take off, land and operate, including customary accessory uses and structures. ~~Also~~ Ground transportation terminals include~~s~~ passenger ticketing, loading and unloading facilities for buses (local or intercity) and trains.

***

Chapter 55 | Parking

***

Section 55.020 Minimum Parking Ratios

Off-street motor vehicle parking spaces must be provided in accordance with the minimum ratios established in Table 55-1. See Section 55.050 for an explanation of exemptions and allowed reductions of minimum motor vehicle parking requirements. See Section 55.060 for additional information about bicycle parking requirements.

Table 55-1: Minimum Motor Vehicle Parking Ratios

USE CATEGORY Subcategory Specific use	Measurement (spaces per)	CBD	All Other Districts and PI Overlay [1] See **Error! Reference source not found.** for information on PI Overlay	Additional requirements / notes for All Other Districts
***				
PUBLIC, CIVIC & INSTITUTIONAL				
Airport or Ground Transportation Terminal		0.00	established as part of special exception / development plan	

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4. Mixed-Use Ground Floor Ceiling Height

This change corrects an oversight from a previous zoning code amendment (ZCA-37). The previous amendment reduced the minimum ground floor ceiling height for mixed-use and commercial buildings in MX districts from 14 feet to 12 feet; however, the table regulating the Flexible character designation was not included in the amendment.

Chapter 10 | Mixed-use Districts

***

Section 10.030 Character Designations

***

10.030-E Flexible Character Designation

***

3. Lot and Building Regulations

The lot and building regulations of Table 10-7 apply to all new construction and building additions in –F character zones. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Existing buildings are exempt from ground floor ceiling height and transparency requirements.

Table 10-7: Lot and Building Regulations for –F Character Zones

Minimum Lot Area (sq. ft.)	
Townhouse	1,600
Duplex	5,000
Apartment/Condo	7,500
Other buildings	3,300
Minimum Lot Width (feet)	
Townhouse	20
Duplex	45
Apartment/Condo	50
Other buildings	20
Minimum Street Frontage (feet)	20
Minimum Open Space per Unit (sq. ft.)	
Detached house	400
Townhouse/Duplex	200
Apartment/Condo/Mixed-use	100
Minimum Building Setbacks (feet)	
Detached house/townhouse/duplex	
Street	15[1]
Side	3[2]
Rear	20
Other buildings	
Street	5
Abutting R district	10
Abutting nonresidential district	0
Abutting alley	5

Minimum Parking Setbacks (feet) (see also **Error! Reference source not found.**)	
Detached house/townhouse/duplex	–
Other buildings [3]	
Street	10
Abutting R district	10
Abutting nonresidential district	0
Abutting alley	2
Min. Ground Floor Ceiling Height (feet)	
Vertical mixed-use, mixed-use and commercial buildings	~~14~~12
Other buildings	–
Minimum Transparency (%)	
Vertical mixed-use buildings	
Ground floor	40
Upper floors	20
Commercial buildings and mixed-use buildings	
Ground floor	35
Upper floors	20
Other buildings	20
Street-facing Entrance Required	Yes

5. Medical Spas

Medical spas, also referred to as med spas, provide a combination of services typically found in either a day spa or a medical office. Medical-grade treatments, which may involve injections, lasers, or IV lines, must be overseen by a licensed physician, according to information available from the Oklahoma Medical Board. As these businesses have become more common in recent years, there has been some confusion about their appropriate use classification. This change clarifies that medical spas are considered Medical Offices rather than Personal Improvement Services.

Chapter 35 | Building Types and Use Categories

***

Section 35.050 Commercial Use Category

***

35.050-I Office

Uses in an enclosed building, customarily performed in an office, that focus on providing executive, management, administrative, professional or medical services. Specific office use types include the following:

***

2. Medical, Dental and Health Practitioner Office

Office uses related to diagnosis and treatment of human patients' illnesses, injuries and physical maladies that can be performed in an office setting with no overnight care. Typical uses include offices of physicians, dentists, psychiatrists, psychologists, chiropractors and practitioners of massage therapy. Surgical, rehabilitation and other medical centers that do not involve overnight patient stays are included in this use subcategory, as are medical spas and medical and dental laboratories, unless otherwise expressly indicated. Ancillary sales of medications and medical products are allowed in association with a medical, dental or health practitioner office.

DRAFT

6. Events Associated with Short-Term Rentals

Short-term rentals in Tulsa are restricted from hosting events. Section 40.375-B of the zoning code lists examples of events that are not permitted and includes "private parties." This term is too broad and has caused confusion about how short-term rentals may be used. This change removes the term "private parties" from the examples of events that are not permitted in conjunction with short-term rentals.

Chapter 40 | Supplemental Use and Building Regulations

***

Section 40.375 Short-Term Rental

The supplemental use regulations of this section apply to all principal use short-term rentals.

40.375-A A short-term rental must comply with all licensing requirements of the City of Tulsa and an approved license number must be included with any material advertising the short-term rental.

40.375-B Events are not permitted in conjunction with a short-term rental use. Examples of events include, but are not limited to, weddings, receptions, anniversaries, ~~private parties,~~ banquets, and business seminars.

DRAFT

7. Bench Seating Width for Parking Calculations

This change adjusts the bench seat measurement for parking calculations and reduces the required parking for Religious Assembly uses. The zoning code currently counts each 22 inches on a bench as one seat for the purpose of calculating required parking. Religious Assembly uses must provide either 18.5 parking spaces per 1,000 square feet or 1 per 3 seats, whichever is greater.

Based on standard church pew sizes and the 22-inch bench seat measurement, the parking ratio of 1 per 3 seats in practice equals 37.33 spaces per 1,000 square feet, which is more than double the existing requirement of 18.5 spaces per 1,000 square feet. In effect, the "per 1,000 sq. ft." measurement has never been applied because the "per seat" requirement is so much higher, considering the width of each bench seat and the assumption of 100% occupancy. According to architects and church leaders, worship spaces feel full at 70% of seating capacity and uncomfortably crowded at 80%. Church leaders say they start to lose attendees at the 80% mark because it feels too crowded.

Adjusting bench seat measurements to 28 inches provides a more realistic look at the size and number of people who could reasonably be seated in a place of worship, which directly influences our parking requirements. It more closely aligns with human dimensions, interior space planning standards, and recommendations from religious leaders and design/building experts. People and their desired personal space have grown over time, and people often have bags, hymnals, coats, car seats, and other objects that also take up space.

Increasing the bench seat measurement to 28 inches and setting a straightforward "per seat" parking requirement would simplify the parking calculation for Religious Assembly uses and better conform to standards for comfortable seat spacing.

Chapter 55 | Parking

***

Section 55.020 Minimum Parking Ratios

Off-street motor vehicle parking spaces must be provided in accordance with the minimum ratios established in Table 55-1. See Section 55.050 for an explanation of exemptions and allowed reductions of minimum motor vehicle parking requirements. See Section 55.060 for additional information about bicycle parking requirements.

Table 55-1: Minimum Motor Vehicle Parking Ratios

USE CATEGORY Subcategory Specific use	Measurement (spaces per)	CBD	All Other Districts and PI Overlay [1] See **Error! Reference source not found.** for information on PI Overlay	Additional requirements / notes for All Other Districts
	***			
PUBLIC, CIVIC &				
	***			
Religious Assembly	~~1,000 sq. ft.~~seat (sanctuary)	0.00	~~18.5~~0.25	~~or 1 per 3 seats, whichever is greater~~

***

Section 55.040 Calculation of Required Parking

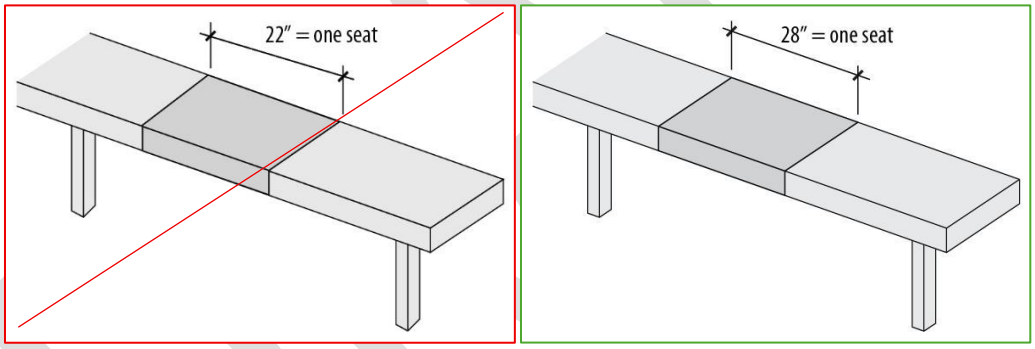
In determining the number of parking spaces required, the following calculation rules apply:

***

55.040-E Bench Seating

For the purpose of calculating parking requirements based on seating, each ~~22~~ 28 linear inches of bench or pew length is equivalent to one seat.

Figure 55-1: Bench Seating



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8. Minor Amendments

This change corrects a typo and clarifies that reductions in parking spaces by up to 10% of the current zoning code's parking requirements are allowed to be approved as minor amendments.

Chapter 70 | Review and Approval Procedures

***

Section 70.040 Development Plans

***

70.040-I Amendments to Approved Development Plans

1. **Minor Amendments**

   a. The planning commission is authorized to approve amendments to approved development plans as minor amendments if the planning commission determines that substantial compliance is maintained with the approved development plan. The following is a non-exhaustive list of changes that may be considered as minor amendments:

   ***

   (10) Reductions in off-street parking or loading ~~by more than~~ resulting in up to 10% fewer spaces than the applicable minimum parking ratio in Table 55-1 ~~or one space, whichever results in a greater reduction~~.

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9. Letter of Deficiency Requirements

Administrative adjustments are streamlined, staff-level approvals for minor relief from zoning requirements. The zoning code gives a limited list of allowed administrative adjustments—for example, the reduction in the minimum lot width requirement by up to 10 percent. Applications are filed with the Tulsa Planning Office, but the zoning code requires applicants to provide a letter of deficiency from the Development Services department, which would involve first submitting a zoning or building permit application and obtaining review comments from zoning plans reviewers.

This change removes the letter of deficiency requirement for administrative adjustments for two reasons. First, the term "letter of deficiency" is no longer used in practice. Instead, the Development Services department issues a "plan corrections summary" outlining the revisions necessary before a permit can be approved. Second, requiring a letter of deficiency in every instance often adds an unnecessary step and fees to identify what are usually relatively straightforward requests. Although the Planning Office encourages applicants to complete a full zoning review prior to requesting an administrative adjustment or variance, this change allows flexibility to waive the requirement as needed.

Chapter 70 | Review and Approval Procedures

***

Section 70.100 Administrative Adjustments

***

70.100-D Application Filing

Complete applications for administrative adjustments must be filed with the land use administrator. ~~Applications must be accompanied by a letter of deficiency issued by the development administrator.~~

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10. Storm Shelters in Rear Setbacks in Residential Districts

Table 90-1 lists the structures and features that are allowed to obstruct setbacks in residential districts. Underground storm shelters are not included in Table 90-1 and do not fit cleanly into existing categories in the table. This change allows underground storm shelters to be located within side setbacks, rear setbacks, or street setbacks in the rear yard on double frontage lots.

Chapter 90 | Measurements

***

Section 90.090 Setbacks

***

90.090-C Permitted Setback Obstructions in R ~~Zoning~~ Districts

Setbacks in R ~~zoning~~ districts must be unobstructed and unoccupied from the ground to the sky except as indicated in Table 90-1:

Table 90-1: Permitted Setback Obstructions in R ~~Zoning~~ Districts

Obstruction	Setback		
	Street	Side	Rear
Accessory buildings (see also 90.090-C2)	No	No [4]	Yes [4]
Air conditioning units	No	Yes	Yes
Arbors and trellises	Yes	Yes	Yes
Awnings, canopies, light shelves and architecturally integrated solar shading devices projecting no more than 2 feet into the setback	Yes	Yes	Yes
Barbeque pits and outdoor fireplaces	No	No	Yes
Bay windows projecting no more than 2 feet into the setback	Yes	Yes	Yes
Carports	Yes [1]	Yes [2]	Yes [2]
Chimneys and flues projecting no more than 2 feet into the setback	Yes	Yes	Yes
Clotheslines	No	Yes	Yes
Decks, patios, and other features and structures less than 30 inches in height above grade	Yes	Yes	Yes
Eaves and gutters projecting no more than 2 feet into the setback	Yes	Yes	Yes
Fences and walls (see also Section 45.080)	Yes	Yes	Yes
Fire escapes projecting no more than 4.5 feet into the setback	Yes	Yes	Yes
Flagpoles and similar features	Yes	Yes	Yes
Geothermal heat pumps and geothermal heat exchange system equipment up to 4 feet in height above grade	No	No	Yes
Green houses and hoop houses (see also Section 90.090-C.2)	No	No [4]	Yes [4]
In-ground storm shelters no more than 42 inches in height above grade	No [3]	Yes	Yes
Insulation added to the outside of the exterior wall of an existing building	Yes	Yes	Yes
Plants and cold frames	Yes	Yes	Yes
Rainwater harvesting equipment projecting no more than 4.5 feet into the setback	Yes	Yes	Yes
Recreational equipment (e.g., swing sets, playground equipment, tree houses, etc.)	No	No	Yes
Satellite dish antennas	See Section 45.180		
Signs (see also Chapter 60)	Yes	Yes	Yes

Obstruction	Setback		
	Street	Side	Rear
Sills, belt courses, cornices and similar architectural features projecting no more than 2 feet into the setback	Yes	Yes	Yes
Solar energy systems (see also Section 45.190)	No	Yes	Yes
Swimming pools and tennis courts	No [3]	No	Yes
Vehicle parking/storage, inoperable (see also Section 45.140)	No	No	Yes
Wheelchair lifts and ramps that meet federal, state and local accessibility standards	Yes	Yes	Yes

Table 90-1 Notes

[1] Special exception approval required; see 90.090-C1.

[2] Detached carports located outside of the street setback and street yard in an R district must be set back at least 3 feet from side and rear lot lines. See Section 90.090-C.1 for carports located in street setbacks or street yards in R districts.

[3] May be allowed in the street setback within a rear yard.

[4] Except that, when located in the rear setback, accessory buildings must be set back at least 3 feet from all interior lot lines; see Section 90.090-C.2.

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11. Streets and Alleys

A definition for "street," distinguishing a street from an alley, is missing from the zoning code. This change clarifies that alleys are not considered streets and adds a definition for the terms "right-of-way" and "street." The definitions are consistent with the definitions in Tulsa's subdivision and development regulations.

Chapter 90 | Measurements

***

Section 90.090 Setbacks

90.090-A Measurement

***

1. Street setbacks are measured from the actual right-of-way line of the street ~~(other than an alley)~~, provided that if the following measurement results in a greater setback, the greater setback applies:

***

Chapter 95 | Definitions

***

Section 95.040 Terms Beginning with "A"

***

Alley
A ~~public~~ right-of-way or private reserve area that affords a means of access to abutting property, generally secondary in nature to a street.

***

Section 95.210 Terms Beginning with "R"

***

Right-of-Way
Land dedicated or acquired for use as a public way.

***

Section 95.220 Terms Beginning with "S"

***

Street
The portion of a right-of-way or private reserve area, other than an alley, that affords a primary means of vehicular access to abutting properties.

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CITY OF TULSA PLANNING OFFICE

Planning Commission Work Session

November 4, 2026

Prepared by: Susan Miller, AICP and Daniel Jeffries, AICP

Item

Discuss proposed zoning code text amendments related to residential zoning regulations, known as **Housing Feasibility Amendments Part II (ZCA-39)**

Background and Summary of Proposed Amendments

For the past several years, a Mayor and City Council priority has focused on increasing housing stock in the city of Tulsa. To facilitate housing development, the Planning Office continuously evaluates residential standards in the zoning code to identify potential amendments to remove unnecessary barriers to housing development. In 2024 the City adopted the Housing Feasibility Amendments Part I, which simplified and modernized certain standards.

At the April 15, 2026 Planning Commission work session, the Planning Office presented a summary of proposed residential related zoning code amendments, called Housing Feasibility Amendments Part II. The goal of the amendments is to reduce complexity of the zoning code by simplifying strict and often redundant lot and building regulations (like setbacks, lot width, and lot area) specific to each of 18 separate building types, providing one straightforward standard for each zoning district, plus standards for townhouses. This reduces complexity in every chapter that allows residential uses and shrinks lot and building regulations tables tremendously. Other concepts include allowing accessory dwelling units (ADUs) by right citywide, allowing duplexes by right in more zoning districts, aligning definitions of building height and townhouses more closely with the building code, eliminating our reliance on specific building types for each zoning district, removing redundant platting requirements currently triggered by every rezoning action, simplifying contextual setbacks, and adjusting lot and building regulations to reduce the large number of nonconforming lots across the city. On May 6, 2026, the Planning Commission voted to initiate the amendments.

Following initiation, Planning Office continued to work with Development Services and Legal Department representatives to refine the proposed amendments.

Public Outreach efforts to date

- **September 3, 2026** – presented to builders and housing developers;
- **September 4, 2026** – presented at AIA Eastern Oklahoma office;
- **September 9, 2026** – presented at Home Builders Association of Greater Tulsa;
- **September 25, 2026 –** presented to housing developers; and
- **October 6, 2026 –** presented to local land use attorneys, engineers, and planners.

Next Steps

ZCA-39 is scheduled to be heard by planning commission on December 16, 2026, and if recommended for approval, will be transmitted to the City Council for their consideration.

Attachments

The proposed text amendments to the City of Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances, are shown in ~~strikethrough~~/underline in the **Attachment**.

Proposed Changes by Chapter

Chapter 5 Residential Districts

Section 5.010 Districts

5.010-A List

The residential zoning districts are listed in Table 5-1. When this zoning code refers to "residential" zoning districts or "R" districts, it is referring to these districts.

Table 5-1: Residential (R) Zoning Districts

Map Symbol	District Name	Relative Intensity Scale
RE	Residential Single-family Estate	Least intensive "R" district
RS-1	Residential Single-family 1	
RS-2	Residential Single-family 2	
RS-3	Residential Single-family 3	
RS-4	Residential Single-family 4	
RS-5	Residential Single-family 5	
RD	Residential Duplex	
RT	Residential Townhouse	
RM-0	Residential Multi-family 0	
RM-1	Residential Multi-family 1	
RM-2	Residential Multi-family 2	
RM-3	Residential Multi-family 3	Most intensive "R" district
RMH	Residential Manufactured Housing	RMH not included in relative intensity scale



5.010-B Purposes

Residential zoning districts are primarily intended to create, maintain, and promote a variety of housing opportunities for individual households and to maintain and promote the desired physical character of existing and developing neighborhoods. While the districts primarily accommodate residential uses, some nonresidential uses are also allowed. The various R districts are primarily differentiated on the basis of ~~allowed building types, density and~~ lot and building regulations.

Section 5.020 Use Regulations

Principal uses are allowed in R districts in accordance with Table 5-2.

5.020-A Use Classification System

Uses are listed in the first column of Table 5-2. This zoning code classifies uses into categories and subcategories, which are defined in Chapter 35. In some cases, specific use types are listed in addition to the use categories and subcategories. Building types are also defined in Chapter 35.

5.020-B Permitted Uses

Uses identified with a "P" are permitted as-of-right in the subject zoning district, subject to compliance with any supplemental regulations identified in the final column of Table 5-2 and with all other applicable regulations of this zoning code.

5.020-C Special Exception Uses

Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120. Special exception uses are subject to compliance with any supplemental regulations

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identified in the final column of Table 5-2 and with all other applicable regulations of this zoning code.

5.020-D Prohibited Uses

Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in 35.020-E) to fall within any defined use category are also prohibited.

5.020-E Supplemental Regulations

The "supplemental regulations" column of Table 5-2 identifies additional regulations that apply to some uses. Unless otherwise expressly stated, compliance with these regulations is required regardless of whether the use is permitted as-of-right or requires special exception approval.

5.020-F Accessory Uses

Accessory uses, such as accessory dwelling units and home occupations, are not regulated by Table 5-2. Customary accessory uses are allowed in conjunction with principal uses permitted by right or by special exception, subject to compliance with all applicable accessory use regulations of Chapter 45.

Table 5-2: R District Use Regulations

USE CATEGORY Subcategory Specific use	RE	RS-					RD	RT	RM-				RMH	Supplemental Regulations
		1	2	3	4	5			0	1	2	3		
RESIDENTIAL														
Household Living ~~(if in allowed building type identified in Table 5-2.5)~~ (Subject to the standards of Section 5.020-G)														
Single household on a single lot	P	P	P	P	P	P	P	P	P	P	P	P	P	
Two households on a single lot	–	–S	–S	~~S~~P	~~S~~P	~~S~~P	P	P	P	P	P	P	–P	
Three ~~or more~~ households on a single lot	–	–	–	–S	–S	P	~~S~~P	P	P	P	P	P	–	
Four or more households on a single lot	–	–	–	–	–	S	P	P	P	P	P	P	–	
Group Living														Section 40.160

* * *

5.020-G Residential Building Types

Residential uses allowed in R districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. ~~The following residential building types are allowed in R districts.~~

1. Manufactured housing units are permitted by right in the RMH district, and are permitted by special exception in all other R districts in accordance with Section 70.120.
2. Townhouses are permitted by right in the RS-5, RD, RT, RM-0, RM-1, RM-2, and RM-3 districts, and are permitted by special exception in RS-3 and RS-4 districts in accordance with Section 70.120.

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Table 5-2.5: R District Building Type Regulations for Household Living

USE CATEGORY Subcategory Specific Uses Building Type	RE	RS- 1	RS- 2	RS- 3	RS- 4	RS- 5	RD	RT	RM- 0	RM- 1	RM- 2	RM- 3	RMH	Supplemental Regulations
RESIDENTIAL														
Household Living														
Single household														
Detached house	P	P	P	P	P	P	P	P	P	P	P	P	S	
Patio House	–	–	–	P	P	P	P	P	P	P	P	P	–	Section 40.290
Townhouse														
2-unit townhouse	–	–	–	S	S	P	P	P	P	P	P	P	–	Section 40.390
3+-unit townhouse	–	–	–	–	–	–	–	P	P	P	P	P	–	Section 40.390
Manufactured housing unit	S	S	S	S	S	S	S	S	S	S	S	S	P	Section 40.210
Manufactured housing subdivision	–	–	–	–	–	–	–	–	–	–	–	–	P	Section 40.220
Mobile home	–	–	–	–	–	–	–	–	–	–	–	–	P	Section 40.240
Mixed-use building	–	–	–	–	–	–	–	–	–	S	S	S	–	
Vertical mixed-use building	–	–	–	–	–	–	–	–	–	S	S	S	–	
Two households on single lot														
Duplex	–	–	–	S	S	S	P	P	P	P	P	P	–	
Mixed-use building	–	–	–	–	–	–	–	–	–	P	P	P	–	
Vertical mixed-use building	–	–	–	–	–	–	–	–	–	P	P	P	–	
Three or more households on single lot														
Cottage house development	–	–	–	–	–	P	S	S	P	P	P	P	–	Section 40.110
Multi-unit house	–	–	–	–	–	S	S	P	P	P	P	P	–	Section 40.250
Apartment/Condo	–	–	–	–	–	–	–	–	P	P	P	P	–	Section 40.030
Mobile home park	–	–	–	–	–	–	–	–	–	–	–	–	P	Section 40.240
Mixed-use building	–	–	–	–	–	–	–	–	–	P	P	P	–	
Vertical mixed-use building	–	–	–	–	–	–	–	–	–	P	P	P	–	

P= Permitted; S=Special Exception Approval Required; – = Prohibited

Section 5.030 Lot and Building Regulations

5.030-A Table of Regulations

The lot and building regulations of Table 5-3 apply to all principal uses and structures in R districts, except as otherwise expressly stated in this zoning code. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

Table 5-3: R District Lot and Building Regulations

Regulations	RE	RS-1	RS-2	RS-3	RS-4	RS-5	RD	RT	RM-0	RM-1	RM-2	RM-3	RMH
Min.imum Lot Area (sq. ft.)	22,500	13,500	7,000	5,000	4,000	3,000	4,000	4,000	4,000	4,000	4,000	4,000	4,000
Detached house	22,500	13,500	9,000	6,900	5,500	3,300	5,500	5,500	5,500	5,500	5,500	5,500	5,500
Patio house	–	–	–	6,900	5,500	3,300	5,500	5,500	5,500	5,500	5,500	5,500	–
Townhouse	–	–	–	4,500 2,500	4,500 2,000	2,200 2,000	2,750 2,000	1,600 1,200	1,600 1,200	1,600 1,200	1,600 1,200	1,600 1,200	–
Cottage house development	–	–	–	–	–	10,000	10,000	10,000	10,000	10,000	10,000	10,000	–
Duplex	–	–	–	6,900	5,500	3,300	5,500	5,500	5,500	5,500	5,500	5,500	–
Multi-unit house	–	–	–	–	–	3,300	6,900	5,500	5,500	5,500	5,500	5,500	–
Apartment/Condo	–	–	–	–	–	–	–	–	10,000	10,000	6,000	24,000	–
Mobile home park	–	–	–	–	–	–	–	–	–	–	–	–	[1]
Other allowed buildings/uses													
Permitted by right	22,500	13,500	9,000	6,900	5,500	5,500	5,500	5,500	5,500	5,500	5,500	5,500	5,500
Special exceptions	22,500	13,500	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000
Min. Lot Area per Unit (sq. ft.)													
Detached house	22,500	13,500	9,000	6,900	5,500	3,300	5,500	5,500	5,500	5,500	5,500	5,500	–

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Regulations	RE	RS-1	RS-2	RS-3	RS-4	RS-5	RD	RT	RM-0	RM-1	RM-2	RM-3	RMH
~~Patio house~~	~~–~~	~~–~~	~~–~~	~~6,900~~	~~5,500~~	~~3,300~~	~~5,500~~	~~5,500~~	~~5,500~~	~~5,500~~	~~5,500~~	~~5,500~~	~~–~~
~~Townhouse~~	~~–~~	~~–~~	~~–~~	~~4,500~~	~~4,500~~	~~2,200~~	~~2,750~~	~~1,600~~	~~1,600~~	~~1,600~~	~~1,600~~	~~1,600~~	~~–~~
~~Cottage house development~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~2,500~~	~~2,500~~	~~2,500~~	~~2,500~~	~~2,500~~	~~2,500~~	~~2,500~~	~~–~~
~~Duplex~~	~~–~~	~~–~~	~~–~~	~~3,450~~	~~2,750~~	~~1,650~~	~~2,750~~	~~2,750~~	~~2,750~~	~~2,750~~	~~2,750~~	~~2,750~~	~~–~~
~~Multi-unit house~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~1,100~~	~~1,800~~	~~1,800~~	~~1,800~~	~~1,375~~	~~1,100~~	~~900~~	~~–~~
~~Apartment/Condo~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~2,900~~	~~1,750~~	~~1,100~~	~~400~~	~~–~~
~~Other allowed buildings/uses~~													
~~Permitted by right~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~5,500~~	~~5,500~~	~~5,500~~	~~5,500~~	~~5,500~~
~~Special exceptions~~	~~22,500~~	~~13,500~~	~~12,000~~	~~12,000~~	~~12,000~~	~~12,000~~	~~12,000~~	~~12,000~~	~~12,000~~	~~12,000~~	~~12,000~~	~~12,000~~	~~12,000~~
Min~~imum~~ Lot Width (ft.)	125	100	70	50	40	25	40	40	40	40	40	40	40
~~Detached house~~	~~150~~	~~100~~	~~75~~	~~60~~	~~50~~	~~30~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~–~~
~~Patio house~~	~~–~~	~~–~~	~~–~~	~~60~~	~~50~~	~~30~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~–~~
Townhouse	–	–	–	~~30~~25	~~25~~20	20	~~25~~20	~~20~~16	~~20~~16	~~20~~16	~~20~~16	~~20~~16	–
~~Cottage house development~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~75~~	~~75~~	~~75~~	~~75~~	~~75~~	~~75~~	~~75~~	~~–~~
~~Duplex~~	~~–~~	~~–~~	~~–~~	~~60~~	~~50~~	~~30~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~–~~
~~Multi-unit house~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~30~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~–~~
~~Apartment/Condo~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~100~~	~~100~~	~~50~~	~~100~~	~~–~~
~~Other allowed buildings/uses~~													
~~Permitted by right~~	~~150~~	~~100~~	~~75~~	~~60~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~	~~50~~
~~Special exceptions~~	~~150~~	~~100~~	~~100~~	~~100~~	~~100~~	~~100~~	~~100~~	~~100~~	~~100~~	~~100~~	~~100~~	~~100~~	~~100~~
Min~~imum~~ Street Frontage [1]	30	30	30	10	10	10	10	10	10	10	10	10	10
~~Residential bldgs/uses [2]~~	~~30~~	~~30~~	~~30~~	~~30~~	~~30~~	~~30~~	~~30~~	~~30~~	~~30~~	~~30~~	~~30~~	~~30~~	~~30~~
Min. Building Setbacks (ft.)													
Street ~~[3]~~ [2]	35	35	30	25	20	20	20	5	20	10	10	10	10
Side Street [2]	15	15	15	10	10	5	10	5	10	5	5	5	5
~~Arterial or fwy service rd.~~	~~35~~	~~35~~	~~35~~	~~35~~	~~35~~	~~35~~	~~35~~	~~35~~	~~10~~	~~10~~	~~10~~	~~10~~	~~35~~
~~Other streets~~	~~35~~	~~35~~	~~30~~	~~25~~	~~20~~	~~20~~	~~25~~	~~10~~	~~10~~	~~10~~	~~10~~	~~10~~	~~25~~
Side (interior) [~~4~~3] [4] [5]	15	5	5	5	5	5	5	5~~[5]~~	5~~[6]~~	5~~[6]~~	5~~[6]~~	5~~[7]~~	~~10~~5
Rear [~~4~~3]	25	25	~~25~~15	~~20~~10	~~20~~10	~~20~~10	~~20~~10	~~20~~5	~~20~~10	~~20~~10	10	~~20~~10	~~15~~10
Min. Open Space (%)	30%	30%	25%	20%	20%	20%	20%	10%	15%	15%	10%	10%	20%
Max. Building Height (ft.)	35	35	35	35	35	35	35	35	35	~~35~~45	~~35~~55	~~–~~65	35

5.030-B Table Notes

The following notes refer to the bracketed numbers (e.g., "[1]") in Table 5-3:

~~[1] See Section 40.240 for detailed regulations governing mobile home parks~~.

[~~2~~1] Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units. ~~Cottage house developments require minimum street frontage of 75 feet.~~ Minimum street frontage requirements do not apply to nonresidential uses.

~~[3] For detached houses and duplexes on corner lots, the minimum side street setback may be reduced to 15 feet, provided that the minimum setback for street-facing garage doors is 20 feet or 20 feet from the back of the sidewalk, whichever is greater. The street setback specified in Table 5-3 applies along the other street.~~

[2] The minimum setback for street-facing garage doors is 20 feet behind the property line or the back of the sidewalk, whichever is greater.

[~~4~~3] Non~~-~~residential uses requiring special exception approval in RE and RS zoning districts, excluding Day Cares, require minimum 25-foot building setback from RE and RS-zoned lots that are ~~vacant or~~ occupied by residential uses. ~~Day Cares are not subject to the 25-foot building setback.~~

[~~5~~4] No side setback is required for interior units in townhouse developments. Side setback applies to end units (see Figure 5-2).

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[~~6~~5] Minimum interior side setback on sides of lots abutting an RE or RS zoning district is 10 feet for apartment buildings~~/condo~~ and permitted nonresidential buildings.

~~[7] Minimum interior side setback is 25 feet for apartment/condo and permitted nonresidential buildings.~~

Figure 5-1: ~~Street Side~~Street-facing Garage Door Setback ~~on Corner Lots~~

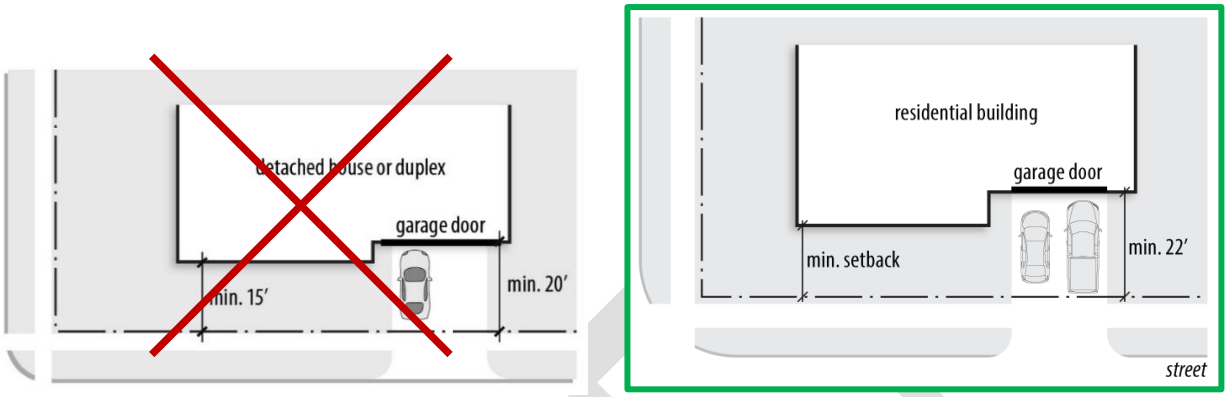
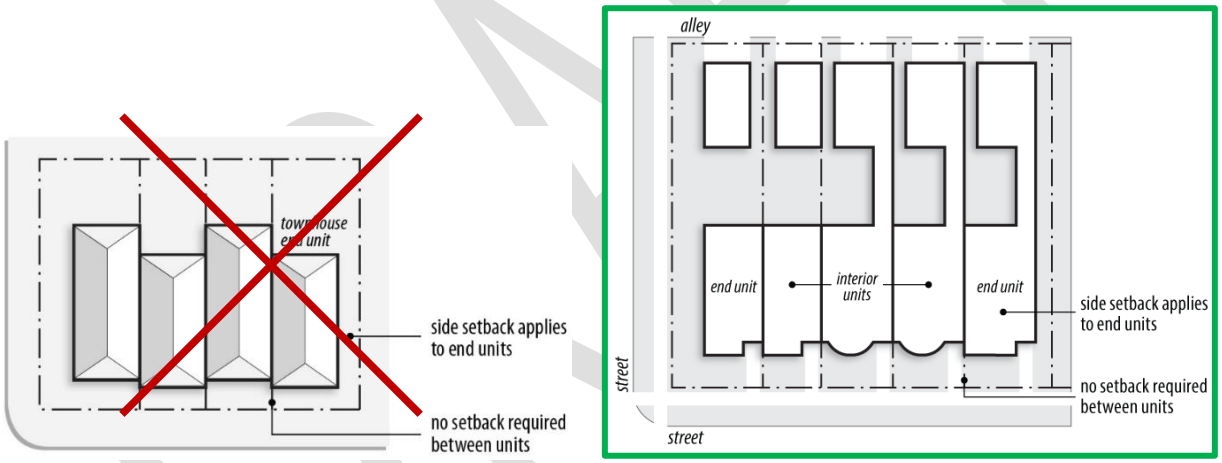


Figure 5-2: Side Setbacks for Townhouses



5.040 Building Orientation

Residential buildings shall have a front elevation with a primary entrance oriented toward or visible from an abutting street. If multiple residential buildings exist on a lot, this requirement only applies to buildings adjacent to a street.

5.0450 Other Relevant Regulations

Uses and structures in residential zoning districts may be subject to other regulations and standards, including the following.

5.0450-A Nonconformities

See Chapter 80.

5.0450-B Accessory Uses and Structures

See Chapter 45.

5.0450-C Parking

See Chapter 55.

5.0450-D Signs

See Chapter 60.

5.0450-E Landscaping and Screening

See Chapter 65.

5.0450-F Temporary Uses

See Chapter 50.

5.0450-G Outdoor Lighting

See Chapter 67.

5.0450-H Access Across R-zoned Property

The use of RE-, RS-, RD- or RT-zoned lots~~and~~ for access to any ~~RM,~~ O, C, or I zoning district~~, or the use of an RM district for access to any O, C, or I zoning district~~ is prohibited unless permitted through an approved PUD or MPD.

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Chapter 10 Mixed-Use Districts

Section 10.010 General

10.010-A List

Table 10-1: Mixed-use (MX) Zoning Districts

Map Symbol	District Name	Relative Intensity Scale
MX1	Neighborhood Mixed-use	Least intensive MX district
MX2	Community Mixed-use	
MX3	Regional Mixed-use	Most intensive MX district

* * *

Section 10.030 Character Designations

10.030-B Pedestrian Character Designation

2. Allowed Building Types

The following building types are permitted in –P character zones (see building type definitions in Section 35.010):

a. ~~Vertical m~~Mixed-use buildings
b. Commercial buildings
c. Civic/Institutional buildings
d. Open space sites

3. Lot and Building Regulations

Table 10-4: Lot and Building Regulations for –P Character Zones

Minimum Lot Area (sq. ft.)	~~3,500~~ 3,000
Minimum Lot Width (feet)	25
Minimum Street Frontage (feet)	20
Minimum Open Space	5%
Minimum Building Setbacks (feet)	
Street [2]	0
Abutting RE or RS district	10
Abutting ~~nonresidential~~ other district	0
Abutting alley	5
Build-to-Zone (BTZ) (minimum/maximum in feet) *See Section 90.110 for BTZ measurement*	0/20
Primary street BTZ (%)	80
Secondary street BTZ (%)	30

Min. Ground Floor Ceiling Height (feet)	12
Minimum Transparency (%)	
Ground floor	50
Upper floors	20
Min. Parking Setbacks (ft) (see also Section 55.080-C)[1]	
Primary street	30
Secondary street or RE or RS ~~zoning~~ district	10
~~Nonresidential zoning~~Other district	0
Street-facing Entrance Required	Yes

[1] Parking spaces, not including drive aisles, are prohibited between building and street right-of-way (see Figure 10-2). Parking structures are subject to Section 40.280.

[2] Street-facing garage doors must be set back at least 22 feet behind the property line or the back of the sidewalk, whichever is greater.

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10.030-C Urban Character Designation

1. Intent

Like the –P character designation, the –U, Urban character designation is generally intended to be applied in areas with high levels of walkability, but where a greater variety of building types are present or desired, such as in areas designated by the comprehensive plan as neighborhood, town and regional centers and along some plan-designated mixed-use corridors.

2. Allowed Building Types

The following building types are permitted in –U character zones (see building type definitions in Section 35.010):

a. ~~Vertical mixed-use and m~~Mixed-use buildings
b. Commercial buildings
c. Apartment buildings~~/Condos~~
d. Townhouses
e. Civic/Institutional buildings
f. Open space sites

3. Lot and Building Regulations

Table 10-5: Lot and Building Regulations for -U Character Zones

Minimum Lot Area (sq. ft.)	
Townhouse	~~1,600~~ 1,200
~~Apartment/Condo~~	~~7,500~~
All other	~~3,500~~ 3,000
Minimum Lot Width (feet)	
Townhouse	~~20~~16
~~Apartment/Condo~~	~~50~~
All other	25
Minimum Street Frontage (feet)	20
Minimum Open Space	5%
Minimum Building Setbacks (feet)	
Street [2]	0
Abutting RE or RS district	10
Abutting ~~nonresidential~~ other district	0
Abutting alley	5
Build-to-Zone (BTZ) (minimum/maximum in feet) *See Section 90.110 for BTZ measurement*	0/20
Primary street BTZ (%)	60
Secondary street BTZ (%)	30

Min. Parking Setbacks (feet) (see also Section 55.080-C)[1]	
Primary street	30
Secondary street or RE or RS ~~zoning~~ district	10
~~Nonresidential~~ Other district	0
Min. Ground Floor Ceiling Height (feet)	
~~Vertical mixed-use, m~~Mixed-use~~,~~ and commercial buildings	12
Other buildings	–
Minimum Transparency (%)	
~~Vertical mixed-use buildings~~	
~~Ground floor~~	~~40~~
~~Upper floors~~	~~20~~
Commercial buildings and mixed-use buildings	
Ground floor	~~35~~50
Upper floors	20
Other buildings	20
Street-facing Entrance Required	Yes

Table Notes

[1] Parking is prohibited between building and street right-of-way (see Figure 10-4). Parking structures are subject to Section 40.280.

[2] Street-facing garage doors must be set back at least 22 feet behind the property line or the back of the sidewalk, whichever is greater.

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10.030-D Variable Character Designation

1. Intent

The –V, Variable character designation is generally intended to be applied in auto-oriented areas where a transition to greater levels of walkability are underway or desired. The regulations allow greater flexibility in the siting of buildings and parking areas by, for example, allowing more generous maximum building setbacks, which can be used for landscape and streetscape elements or limited amounts of parking.

2. Allowed Building Types

The following building types are permitted in –V character zones (see building type definitions in Section 35.010):

a. ~~Vertical mixed-use buildings and m~~Mixed-use buildings
b. Commercial buildings
c. Apartment buildings~~/Condos~~
d. Townhouses
e. Multi-unit houses
~~e~~f. Civic/Institutional buildings
~~f~~g. Open space sites

3. Lot and Building Regulations

Table 10-6: Lot and Building Regulations for -V Character Zones

	Minimum Lot Area (sq. ft.)	
	Townhouse	~~1,600~~ 1,200
	~~Apartment/Condo~~	~~7,500~~
	All other	~~3,500~~ 3,000
A	**Minimum Lot Width** (feet)	
	Townhouse	~~20~~16
	~~Apartment/Condo~~	~~50~~
	All other	25
B	**Minimum Street Frontage** (feet)	~~20~~
	Townhouse	16
	All other	20
	Minimum Open Space	5%
	Minimum Building Setbacks (feet)	
	Street	0
	Abutting RE or RS district	10
	Abutting ~~nonresidential~~ other district	0
	Abutting alley	5

C	**Build-to-Zone (BTZ)** (minimum/maximum in feet) *See Section 90.110 for BTZ measurement*	0/~~110~~50
	Primary street BTZ (%)	50
	Secondary street BTZ (%)	25
D	**Min. Parking Setbacks** (feet)(see also Section 55.080-C)[1]	
	Street or RE or RS ~~zoning~~ district	10
	~~Nonresidential zoning~~Other district	0
	Min. Ground Floor Ceiling Height (feet)	
	~~Vertical mixed-use, m~~Mixed-use and commercial buildings	12
	Other buildings	–
	Minimum Transparency (%)	
	~~Vertical mixed-use buildings~~	
E	~~Ground floor~~	~~40~~
F	~~Upper floors~~	~~20~~
	Commercial buildings and mixed-use buildings	
E	Ground floor	~~35~~50
F	Upper floors	20
	Other buildings	20
G	**Street-facing Entrance Required**	Yes

[1] A maximum of one ~~double~~single-loaded parking aisle (~~2~~ one parking bay~~s~~) is permitted between the building and street right-of-way (see Figure 10-5 and Figure 10-6). Parking structures are subject to Section 40.280.

[2] Street-facing garage doors must be set back at least 22 feet behind the property line or the back of the sidewalk, whichever is greater.

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10.030-E Flexible Character Designation

1. Intent

The –F, Flexible character designation is generally intended to allow the highest levels of flexibility in terms of allowed building types and development patterns.

2. Allowed Building Types

The following building types are permitted in –F character zones (see building type definitions in Section 35.010):

a. ~~Vertical mixed-use and m~~Mixed-use buildings
b. Commercial buildings
c. Apartment buildings~~/Condos~~
d. Townhouses
e. Multi-unit houses
~~e~~f. Duplexes
~~f~~g. Detached houses
~~g~~h. Civic/Institutional buildings
~~h~~i. Open space sites

3. Lot and Building Regulations

Table 10-7: Lot and Building Regulations for -F Character Zones

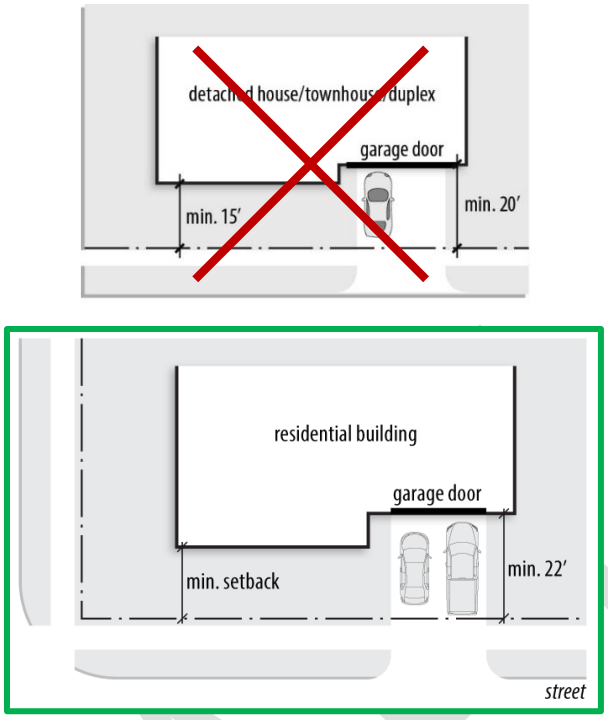
Minimum Lot Area (sq. ft.)	
Townhouse	~~1,600~~ 1,200
~~Duplex~~	~~5,000~~
~~Apartment/Condo~~	~~7,500~~
Other buildings	~~3,300~~ 3,000
Minimum Lot Width (feet)	
Townhouse	~~20~~16
~~Duplex~~	~~45~~
~~Apartment/Condo~~	~~50~~
Other buildings	20
Minimum Street Frontage (feet)	20
Townhouse	16
Other buildings	20
Minimum Open Space	10%
Minimum Building Setbacks (feet) [1]	
Detached house/ townhouse/ duplex/ multi-unit house	
Street	~~1~~5[1]
Side	3[2]
Rear	~~2~~10
Other buildings	
Street	5 [1]
Abutting RE or RS district	10
Abutting ~~nonresidential~~other district	0
Abutting alley	5

Minimum Parking Setbacks (feet) (see also 55.080-C)	
Detached house/townhouse/duplex/multi-unit house	–
Other buildings [3]	
Street	10
Abutting RE or RS district	10
Abutting ~~nonresidential~~ other district	0
Abutting alley	2
Min. Ground Floor Ceiling Height (feet)	
~~Vertical mixed-use, m~~Mixed-use and commercial buildings	~~14~~12
Other buildings	–
Minimum Transparency (%)	
~~Vertical mixed-use buildings~~	
~~Ground floor~~	~~40~~
~~Upper floors~~	~~20~~
Commercial buildings and mixed-use buildings	
Ground floor	~~35~~50
Upper floors	20
Other buildings	20
Street-facing Entrance Required	Yes

[1] Street-facing ~~G~~garage doors must be set back at least ~~20~~ 22 feet behind the property line or the~~from~~ back of sidewalk, whichever is greater ~~(see Figure 10-7)~~.
[2] For townhouses, side setback applies only to exterior wall of end units.
[3] Parking structures are subject to Section 40.280.

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Figure 10-7: Street-facing Garage Door Setback

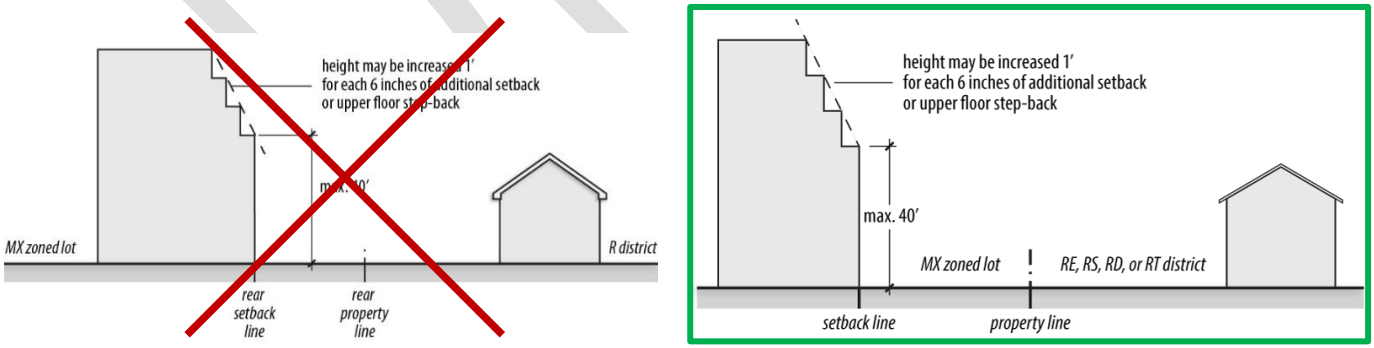


Section 10.040 Height Designations

10.040-B Height Transition

For MX-zoned lots that abut an RE-, RS, RD-, or RT-zoned lot, the maximum building height limit at the point of the required minimum setback is 40 feet. Height may be increased above 40 feet by up to one foot (vertical) for each 6 inches of additional building setback, up to the maximum height allowed in the district. The additional setback may be provided for the entire building or only the portion of the building above 40 feet in height (see Figure 10-3).

Figure 10-3: Transitional Height Standards



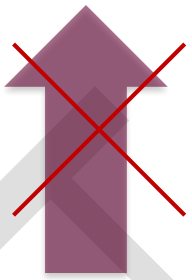
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Chapter 15 Office, Commercial and Industrial Districts

Section 15.010 Districts

15.010-A List

Table 15-1: Office, Commercial and Industrial Zoning Districts

Map Symbol	District Name	Relative Intensity Scale
OL	Office–Low	Least intensive O, C or I district
OM	Office–Medium	
OMH	Office–Medium-High	
OH	Office–High	
CS	Commercial Shopping	
CG	Commercial General	
CH	Commercial–High	
CBD	Central Business	
IL	Industrial–Light	
IM	Industrial–Moderate	
IH	Industrial–Heavy	Most intensive O, C or I district

Section 15.020 Use Regulations

Principal uses are allowed in office, commercial and industrial districts in accordance with Table 15-2.

Table 15-2: O, C and I District Use Regulations

USE CATEGORY **Subcategory** Specific use	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH	Supplemental Regulations
RESIDENTIAL												
Household Living (if in allowed building type identified in Table 15-2.5)												
Single household	P	P	P	P	P	P	P	P	S	S	S	
Two households on a single lot	P	P	P	P	P	P	P	P	S	–	–	
Three ~~or more~~ households on a single lot	P	P	P	P	P	P	P	P	S	–	–	
Four or more households on a single lot	P	P	P	P	P	P	P	P	S	–	–	
Group Living												Section 40.160

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15.020-H Residential Building Types

Residential uses allowed in O, C, and I districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. ~~The following residential building types are allowed in O, C, and I districts.~~ Manufactured housing units are permitted by special exception in CG, CH, IL, IM, and IH, and are prohibited in all other O and C districts.

~~Table 15-2.5: O, C, and I District Building Type Regulations for Household Living~~

~~USE CATEGORY~~ ~~Subcategory~~ ~~Specific use~~ ~~Building Types~~	~~OL~~	~~OM~~	~~OMH~~	~~OH~~	~~CS~~	~~CG~~	~~CH~~	~~CBD~~	~~IL~~	~~IM~~	~~IH~~	~~Supplemental Regulations~~
~~RESIDENTIAL~~												
~~Household Living~~												
~~Single household~~												
~~Detached house~~	~~P~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~–~~	~~–~~	~~–~~	
~~Townhouse~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~–~~	~~–~~	~~–~~	
~~Patio House~~	~~P~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~S~~	~~–~~	~~–~~	~~–~~	~~Section 40.290~~
~~Manufactured housing unit~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~S~~	~~S~~	~~–~~	~~S~~	~~S~~	~~S~~	
~~Mixed-Use building~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~S~~	~~–~~	~~–~~	
~~Vertical mixed-use building~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~S~~	~~–~~	~~–~~	
~~Two households on single lot~~												
~~Duplex~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~S~~	~~–~~	~~–~~	~~–~~	
~~Mixed-Use building~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~S~~	~~–~~	~~–~~	
~~Vertical mixed-use building~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~S~~	~~–~~	~~–~~	
~~Three or more households on single lot~~												
~~Multi-unit House~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~–~~	~~–~~	~~–~~	~~Section 40.250~~
~~Apartment/Condo~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~–~~	~~–~~	~~–~~	~~Section 40.030~~
~~Mixed-Use building~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~S~~	~~–~~	~~–~~	
~~Vertical mixed-use building~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~S~~	~~–~~	~~–~~	
~~Cottage house development~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~–~~	~~–~~	~~–~~	~~Section 40.110~~

~~P= Permitted; S=Special Exception Approval Required; – = Prohibited~~

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Section 15.030 Lot and Building Regulations

15.030-A Table of Regulations

The lot and building regulations of Table 15-3 apply to all principal uses and structures in office, commercial and industrial districts, except as otherwise expressly stated in this zoning code. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Additional regulations governing accessory uses and structures can be found in Chapter 45.

Table 15-3: O, C and I District Lot and Building Regulations

Regulations	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH
Minimum Lot Area (sq. ft.)	–	–	–	10,000	–	–	–	–	–	–	–
Minimum Street Frontage (feet) [4]	50	50	50	–	50	50	–	–	50	50	50
Maximum Floor Area Ratio (FAR)	0.40	0.50	2.00	8.00	0.50	0.75	–	–	–	–	–
~~**Minimum Lot Area per Unit** (sq. ft.)~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~	~~–~~
Building Setbacks (feet)											
Street [1]	10	10	10	10	10	10	–	–	10	10	10
From AG, AG-R, or R district	10	10[2]	10[2]	10	10[2]	10[2]	–	–	75[3]	75[3]	75[3]
From O district	–	–	–	–	–	–	–	–	75[3]	75[3]	75[3]
Maximum Building Height (feet)	35	–	–	–	–	–	–	–	–	–	–

Table Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 15-3:

:

[1] Street-facing ~~G~~garage doors must be set back at least ~~20 feet or 20~~22 feet behind the property line or ~~from~~ the back of the sidewalk, whichever is greater.

[2] When abutting RE-, RS-, or RD-zoned lot, 2 feet of additional building setback is required for each foot of nonresidential building height above 15 feet.

[3] Minimum building setback abutting freeway right-of-way or railroad right-of-way that is zoned AG, AG-R, R, or O is 10 feet.

[4] Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units.

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Chapter 20 Overlay Districts

Section 20.050 RDO, River Design Overlays

20.050-A General

4. Exemptions

a. Existing detached houses, ~~and~~ duplexes, multi-unit houses, and townhouses, and additions to such existing ~~detached houses and duplexes~~buildings are exempt from compliance with all of the RDO regulations of ~~this section (~~Section 20.050~~)~~.

b. Uses and structures that are accessory to existing or new detached houses, ~~or~~ duplexes, multi-unit houses, and townhouses are exempt from compliance with all of the RDO regulations of ~~this section (~~Section 20.050~~)~~.

c. New detached houses, ~~and~~ duplexes, multi-unit houses, and townhouses, where allowed, are exempt from compliance with all of the site and building design regulations of ~~§~~Section 20.050-D.

20.050-C Residential Building Types

Residential uses allowed in RDO districts must be located in residential buildings as allowed in the underlying zoning district, except as prohibited by Table 20-1.5. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010.

Table 20-1.5: RDO Building Type Regulations for Household Living

USE CATEGORY **Subcategory** Specific use Building Type	RDO-1	RDO-2	RDO-3
X = expressly prohibited use | □ and unlisted uses = underlying zoning governs			
RESIDENTIAL			
Household Living			
Single household			
Detached house	X	X [1]	□
Manufactured housing unit	X	X	X
~~Manufactured housing subdivision~~	~~X~~	~~X~~	~~X~~
Mobile home	X	X	X
Two households on a single lot			
Duplex	X	X [1]	□
Three ~~or more~~ households on a single lot			
Mobile home park	X	X	X
~~Cottage house~~Courtyard development	X	X	□
Four or more households on a single lot			
Mobile home park	X	X	X
Courtyard development	X	X	□

[1] Detached houses and duplexes are allowed when part of a planned unit development that was approved before January 1, 2016.

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Section 20.080 NIO, Neighborhood Infill Overlay

20.080-A General

* * *

3. Nonconformities

Nonconformities that exist within the overlay district are governed by the regulations of Chapter 80 except that in residential zoning districts, a residential use~~, where the particular residential building type is allowed by right or is allowed by special exception and a special exception has been granted,~~ may be located on a nonconforming lot without complying with the minimum lot area, ~~minimum lot area per unit,~~ minimum lot width~~,~~ or minimum street frontage~~, or minimum open space per unit~~ requirements of the subject zoning district. All other lot and building regulations apply, except that permitted residential uses may be located on corner lots that are nonconforming with regard to lot width, subject to a reduced minimum street side building setback of 5 feet. Garages that are accessed through a side yard abutting a street must be set back at least 20 feet from the property line or the back of the sidewalk, whichever is greater.

* * *

20.080-C Residential Building Types for Household Living

In the Neighborhood Infill Overlay district, within the particular base zoning district, household living uses must be located in ~~the~~ residential building~~s types identified in Table 20-4~~. Descriptions of ~~the~~ residential building~~s types~~ and references to applicable regulations are found in Section 35.010. Apartment buildings are limited to no more than six dwelling units on a single lot. Manufactured housing units are only permitted by special exception in accordance with the procedures of Section 70.120.

~~*Table 20-4: Neighborhood Infill Overlay District Building Type Regulations for Household Living*~~

~~USE CATEGORY~~ ~~Subcategory~~ ~~Specific use~~ ~~Building Types~~	~~Base Zoning Districts:~~ ~~RE, RS, RD, RT~~	~~RM-0~~	~~RM 1-3~~	~~O Districts & CS~~	~~CG & CH~~
~~Single household~~					
~~Detached house~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Patio House~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Townhouse~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Manufactured housing unit~~	~~S~~	~~S~~	~~S~~	~~-~~	~~S~~
~~Manufactured housing subdivision~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~
~~Mobile home~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~
~~Mixed-use building~~	~~-~~	~~-~~	~~S~~	~~P~~	~~P~~
~~Vertical mixed-use building~~	~~-~~	~~-~~	~~S~~	~~P~~	~~P~~
~~Two households on single lot~~					
~~Duplex~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Mixed-use building~~	~~-~~	~~-~~	~~P~~	~~P~~	~~P~~
~~Vertical mixed-use building~~	~~-~~	~~-~~	~~P~~	~~P~~	~~P~~
~~Three or more households on single lot~~					
~~Cottage house development~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Multi-unit house~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Apartment/Condo~~	~~P [1]~~	~~P~~	~~P~~	~~P~~	~~P~~

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USE CATEGORY Subcategory Specific use Building Types	Base Zoning Districts: RE, RS, RD, RT	RM-0	RM 1-3	O Districts & CS	CG & CH
Mobile home park	-	-	-	-	-
Mixed-use building	-	-	P	P	P
Vertical mixed-use building	-	-	P	P	P

1. Table 20-4 Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 20-4:

[1] Apartment/Condo is limited to no more than 6 dwelling units on a single lot.

20.080-D Lot and Building Regulations

1. Residential Districts

In the Neighborhood Infill Overlay district, the lot and building regulations of Table 20-5 apply in the RE, RS, and RM base zoning districts to residential building types. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

Table 20-54: Neighborhood Infill Overlay District Lot and Building Regulations

Minimum Lot Area (sq. ft.)	1,200
Minimum Lot Area per Unit (sq. ft.)	N/A
Minimum Lot Width (feet)	
Townhouse	16
All other residential buildings	25
Minimum Street Frontage	20 [1]
Minimum Open Space	10%
Minimum Building Setbacks (feet)	
Street	10 [2]
Side	3 [3]
Rear	5
Maximum Building Height (feet)	35

Table 20-5 Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 20-5:

[1] Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units.

* * *

20.080-E Parking Regulations

* * *

2. Location

Parking spaces, not including drive aisles, are prohibited between building and street right-of-way (see Figure 20-5) on lots occupied by a 3+ Unit Townhouse, Cottage House Development, Multi-unit House and Apartment/Condoresidential buildings other than a detached house.

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Section 20.100 NIO-2, Neighborhood Infill Overlay - 2

20.100-B Use Regulations – Residential, Household Living

~~Residential,~~ All principal household living ~~principal~~ uses are allowed in the NIO-2 district ~~in accordance with Table 20-6~~.

~~Table 20-6: NIO-2 District Use Regulations for Household Living~~

~~USE CATEGORY~~	~~Base Zoning Districts:~~										
	~~RS-~~			~~RD~~	~~RT~~	~~RM-~~				~~RMH~~	~~O, C, and I~~
~~Subcategory~~ ~~Specific use~~	~~3~~	~~4~~	~~5~~			~~0~~	~~1~~	~~2~~	~~3~~		~~All~~
~~RESIDENTIAL~~											
~~Household Living (if in building type allowed in Table 20-7)~~											
~~Single household~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Two households on single lot~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Three or more households on single lot~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~

20.100-C Residential Building Types for Household Living

1. Apartment buildings are permitted by right ~~in all base zoning districts~~, but are limited to no more than four dwelling units on a single lot in RS, RD, and RT districts.

2. Manufactured housing units manufactured in 2016 or later are permitted by right ~~in all base zoning districts~~ if they are skirted with masonry, have a street-facing entrance, and are attached to a permanent foundation. All other manufactured housing units require a special exception approved in accordance with the procedures of Section 70.120.

~~Table 20-7: NIO-2 District Building Type Regulations for Household Living~~

~~USE CATEGORY~~	~~Base Zoning Districts:~~										
	~~RS-~~			~~RD~~	~~RT~~	~~RM-~~				~~RMH~~	~~O, C, and I~~
~~Subcategory~~ ~~Specific use~~ ~~Building Types~~	~~3~~	~~4~~	~~5~~			~~0~~	~~1~~	~~2~~	~~3~~		~~All~~
~~RESIDENTIAL~~											
~~Household Living~~											
~~Single household~~											
~~Detached house~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Patio House~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Townhouse~~											
~~2-unit townhouse~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~3+-unit townhouse~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Manufactured housing unit [2]~~	~~P/S~~	~~P/S~~	~~P/S~~	~~P/S~~	~~P/S~~	~~P/S~~	~~P/S~~	~~P/S~~	~~P/S~~	~~P~~	~~P/S~~
~~Manufactured housing subdivision~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~P~~	~~P~~
~~Mobile home~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~P~~	~~-~~
~~Mixed-use building~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~S~~	~~S~~	~~S~~	~~P~~	~~P~~
~~Vertical mixed-use building~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~S~~	~~S~~	~~S~~	~~P~~	~~P~~
~~Two households on single lot~~											
~~Duplex~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~
~~Mixed-use building~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~-~~	~~P~~	~~P~~	~~P~~	~~P~~	~~P~~

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USE CATEGORY	Base Zoning Districts:										
	RS-			RD	RT	RM-				RMH	O, C, and I
Subcategory Specific use Building Types	3	4	5			0	1	2	3		All
Vertical mixed-use building	-	-	-	-	-	-	P	P	P	P	P
Three or more households on single lot											
Cottage house development	P	P	P	P	P	P	P	P	P	P	P
Multi-unit house	P	P	P	P	P	P	P	P	P	P	P
Apartment/condo	P[1]	P[1]	P[1]	P[1]	P[1]	P	P	P	P	P	P
Mobile home park	-	-	-	-	-	-	-	-	-	P	-
Mixed-use building	-	-	-	-	-	-	P	P	P	P	P
Vertical mixed-use building	-	-	-	-	-	-	P	P	P	P	P

Table 20-7 Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in (Table 20-7):

[1] Apartment/condo is limited to no more than 4 dwelling units on a single lot.

[2] Manufactured housing units manufactured in 2016 or later are permitted by right if they are skirted with masonry, have a street-facing entrance, and are attached to a permanent foundation. All other manufactured housing units require a special exception approved in accordance with the procedures of Section 70.120.

20.100-D Lot and Building Regulations

1. Residential Districts

In the NIO-2 district, the lot and building regulations of Table 20-8 5 apply to residential building types in the RS-3, RS-4, RS-5, RD, RT, RM, -0, RM-1, RM-2, RM-3, RHMand RMH, OL, OM, OMH, OH, CS, CG, CH, IL, IM, and IH base zoning districts to Detached House, Manufactured Housing Unit, Duplex, Townhouse, Cottage House Development, Multi-unit House and Apartment/Condo building types. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

Table 20-85: NIO-2 District Lot and Building Regulations

Minimum Lot Area (sq. ft.)	1,200
Townhouse	1,600
Detached House, Manufactured Housing Unit, Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo	4,000
Minimum Lot Area per Unit (sq. ft.)	N/A
Minimum Lot Width	
Townhouse	2016
Detached House, Manufactured Housing Unit, Duplex, Cottage House Development, Multi-Unit House, Apartment/CondoAll other residential buildings	4025
Minimum Street Frontage (feet)	20 [1]
Minimum Open Space	10%
Minimum Building Setbacks (feet)	
Street	10 [2]
Side	3 [3]
Rear	105

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Maximum Building Height (feet)	35

Table 20-8 Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in (Table 20-8):

[1] Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units. ~~Cottage house developments require minimum street frontage of 50 feet.~~

[2] Minimum setback for street-facing garage doors is ~~20~~ 22 feet.

[3] No side setback is required for interior units in townhouse developments. Side setback applies to end units.

2. Office and Commercial Districts

In the NIO-2 district, the lot and building regulations of Section 15.030 apply to residential building types in O, C, and I base zoning districts, except that the minimum street frontage in the OL, OM, OMH, CS, and CG districts is reduced to 20 feet for household living uses. The minimum street frontage requirement applies to townhouse developments, not to individual townhouse units. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

20.100-F Modification to Lot and building regulations for the IL Zoning Districts

In the NIO-2 district, the building setback from AG, AG-R, and R districts is reduced ~~from 75 feet~~ to ~~10~~5~~-~~ feet in the IL base zoning district for all ~~non-~~residential uses.

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Chapter 25 Special Districts

Section 25.020 AG, Agricultural District and AG-R, Agricultural-Residential District

25.020-B Use Regulations

Table 25-1: AG District Use Regulations

USE CATEGORY Subcategory (Section 35.020) Specific use	AG	AG-R	Supplemental Regulations
RESIDENTIAL			
Household Living ~~(if in allowed Building type indicated in Table 25-1.5)~~			

* * *

25.020-C Residential Building Types

Residential uses allowed in AG and AG-R districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. ~~The following residential building types are allowed in AG and AG-R districts.~~ Manufactured housing units are only permitted by special exception, in accordance with Section 70.120.

~~*Table 25-1.5: AG District Building Type Regulations for Household Living*~~

~~USE CATEGORY~~ ~~Subcategory (Section 35.020)~~ ~~Specific use~~	~~AG~~	~~AG-R~~	~~Supplemental Regulations~~
~~RESIDENTIAL~~			
~~Household Living~~			
~~Single household~~			
~~Detached house~~	~~P~~	~~P~~	
~~Manufactured housing unit~~	~~S~~	~~S~~	~~Section 40.210~~

~~P= Permitted; S=Special Exception Approval Required; – = Prohibited~~

20.020-D Lot and Building Regulations

* * *

Table 25-2: AG District Lot and Building Regulations

Regulations	AG	AG-R
Min. Lot Area	2 acres	1 acre
~~Min. Lot Area per Unit~~	~~2 acres~~	~~1 acre~~
Minimum Lot Width (feet)	200	150
Min. Street Frontage (feet)	30	30
Min. Building Setbacks (feet)		
Street	25	25
Side (one side/other side)	10/5	15
Rear	40	25
Max. Building Height (feet)	–	35

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Section 25.040 CO, Corridor District

25.040-B Use Regulations

Table 25-4: CO District Use Regulations

USE CATEGORY Subcategory (Section 35.020) Specific use	CO	Supplemental Regulations
RESIDENTIAL		
Household Living ~~(if in allowed building type indicated in 25-4.5)~~		
Single household	P*	
Two households on a single lot	P*	
Three ~~or more~~ households on a single lot	P*	
Four or more households on a single lot	P*	
Group Living	P*	Section 40.160

* * *

25.040-C Residential Building Types

Residential uses allowed in CO districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. ~~The following~~All residential building types are allowed in CO districts, if allowed in an approved development plan.~~.~~

~~*Table 25-4.5: CO District Building Type Regulations for Household Living*~~

~~USE CATEGORY~~ ~~Subcategory (~~Section 35.020~~)~~ ~~Specific use~~	~~CO~~	~~Supplemental Regulations~~
~~RESIDENTIAL~~		
~~Household Living~~		
~~Single household~~	~~P*~~	
~~Detached house~~	~~P*~~	
~~Patio House~~	~~P*~~	
~~Townhouse~~	~~P*~~	
~~2-unit townhouse~~	~~P*~~	
~~3+-unit townhouse~~	~~P*~~	
~~Manufactured housing unit~~	~~P*~~	
~~Manufactured housing subdivision~~	~~P*~~	
~~Mobile home~~	~~P*~~	
~~Mixed-use building~~	~~P*~~	
~~Vertical mixed-use building~~	~~P*~~	
~~Two households on single lot~~	~~P*~~	
~~Duplex~~	~~P*~~	
~~Mixed-use building~~	~~P*~~	
~~Vertical mixed-use building~~	~~P*~~	
~~Three or more households on single lot~~	~~P*~~	
~~Cottage house development~~	~~P*~~	
~~Multi-unit house~~	~~P*~~	
~~Apartment/Condo~~	~~P*~~	
~~Mobile home park~~	~~P*~~	
~~Mixed-use building~~	~~P*~~	
~~Vertical mixed-use building~~	~~P*~~	

~~*P= if allowed in approved development plan~~

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Section 25.050 SR, Scientific Research District

* * *

Table 25-6: SR District Lot and Building Regulations

Regulations	SR
Minimum Lot Area (sq. ft.)	–
Minimum Street Frontage (feet)	200
Maximum Floor Area Ratio (FAR)	0.50
Minimum Lot Area ~~per Unit (sq. ft.)~~	~~30~~20%
Min. Building Setbacks (feet)	
Street	50
From AG, AG-R or R district	50[1][2]
From O district	50[1][2]

* * *

Section 25.060 IMX, Institutional Mixed Use

25.060-B Use Regulations

Table 25-7: IMX District Use Regulations

USE CATEGORY **Subcategory (Section 35.020)** Specific use	IMX	Supplemental Regulations
RESIDENTIAL		
Household Living ~~(if in allowed building type indicated in Table 25.7-5)~~		
Single household	P	
Two households on a single lot	P	
Three ~~or more~~ households on a single lot	P	
Four or more households on a single lot	P	
Group Living		Section 40.160

* * *

25.060-C Residential Building Types

Residential uses allowed in IMX districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. ~~The following residential building types are allowed in IMX districts.~~

~~*Table 25-7.5: IMX District Building Type Regulations for Household Living*~~

~~USE CATEGORY~~ ~~Subcategory (Section 35.020)~~ ~~Specific use~~ ~~Building Type~~	~~IMX~~	~~Supplemental Regulations~~
~~RESIDENTIAL~~		
~~Household Living~~		
~~Single household~~		
~~Detached house~~	~~P~~	
~~Townhouse~~	~~P~~	~~Section 40.390~~
~~Two households on single lot~~		

USE CATEGORY Subcategory (Section 35.020) Specific use Building Type	IMX	Supplemental Regulations
Duplex	P	
Three or more households on single lot		
Multi-unit house	P	Section 40.250
Apartment/Condo	P	Section 40.030

P= Permitted; S=Special Exception Approval Required; – = Prohibited

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25.060-D Lot and Building Regulations

1. Table of Regulations

The lot and building regulations of Table 25-8 apply to all new construction and building additions in IMX districts. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Existing buildings are exempt from compliance with build-to-zone (BTZ) and transparency regulations.

Table 25-8: IMX District Lot and Building Regulations

Regulation	IMX
Minimum District Area (acres)	5 acres (see Section 25.060-A2.b)
Minimum Lot Area (sq. ft.)	
~~Detached house~~	~~5,500~~
~~Duplex~~	~~6,900~~
Townhouse	1,600
~~Multi-unit house~~	~~7,500~~
~~Apartment/Condo~~	~~7,500~~
Other allowed uses/buildings	3,500
Minimum Street Frontage (feet)	
Arterial or freeway service road	50
All other streets	20
Minimum Building Setbacks (feet)	
Street	See "Build-to-Zone" Requirements
Side	–[1]
Rear	5[2]
Build-to-Zone (BTZ) (min./max. in feet) [4] (See also 25.060-H2)	
Arterial or freeway service road	10/20
All other streets	20/30
Minimum Percentage of Build-To Zone Occupied	
Arterial or freeway service road	70
All other streets	50
Minimum Parking Setback (feet)	30[3]
Street-facing Building Entrance Required	Yes[5]
Minimum Ground Floor Transparency (%)[6]	
Arterial or freeway service road	50
All other streets	40
Maximum Building Height (feet)	See 25.060-E

2. Table Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 25-8.

[1] A minimum side setback of 10 feet is required on lots abutting an RE, RS, RD, or RT district, an HP district, or a lot occupied by a detached house, duplex or townhouse without an intervening right-of-way. Required side setbacks may not be used for parking, paving, loading, servicing, or any other activity, and must comply with the L1 landscape yard requirements of 25.060-H1.

[2] A minimum rear setback of 20 feet is required on lots abutting an RE, RS, RD, or RT district, an HP district, or a lot occupied by a detached house, duplex or townhouse without an intervening right-of-way. Required rear setbacks may not be used for parking, paving, loading, servicing, or any other activity, and must comply with the L1 landscape yard requirements of 25.060-H1.

[3] A minimum 10-foot deep buffer yard that complies with the L1 landscape yard requirements of 25.060-H1 must be provided to separate parking from the sidewalk, except no buffer yard is required where the ground-floor level of a parking garage or structure is masked by a liner building.

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[4] In all cases, a minimum setback distance of 12 feet is required between the edge of curb and the face of the building.

[5] A functional building entrance door is required on each street-facing façade, and each dwelling unit on the ground-floor level shall have a functional building entrance facing the street. The length of street-facing facade without an intervening entrance may not exceed 150 feet. An angled or curved entrance may be provided at either corner of a building along the street to meet the street-facing entrance requirements along both streets. On corner lots, the street-facing entrance requirement does not apply along the side street.

[6] In the IMX district, the transparency of a ground floor facade is measured between 3 and 8 feet above the adjacent curb.

25.060-E Height Regulations

No maximum height limits apply in the IMX district except in the following cases:

1. When an IMX district abuts an HP district with an intervening right-of-way that is not an alley, a maximum height limit of 35 feet applies within 100 feet of the right-of-way centerline.
2. When an IMX district abuts an RE, RS, RD, RT, or AG-R district with an intervening right-of-way that is not an alley, a maximum height limit of 48 feet applies within 100 feet of the right-of-way centerline.
3. When an IMX district abuts an RE, RS, RD, RT, AG-R, or ~~an~~ HP district with an intervening alley, a maximum height limit of 24 feet applies within 40 feet of the alley centerline and a maximum height limit of 48 feet applies at a distance between 40 feet and 90 feet of the alley centerline.
4. When an IMX district abuts an RE, RS, RD, RT, AG-R, or ~~an~~ HP district without an intervening right-of-way, a maximum height limit of 24 feet applies within 50 feet of the lot boundary and a maximum height limit of 48 feet applies at a distance between 50 and 100 feet of the lot boundary.
5. A maximum height limit of 96 feet applies for a distance of 100 feet from the 48-foot ~~feet~~ maximum height limit zone where the IMX district abuts an HP district.

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Chapter 30 Legacy Districts

Section 30.010 PUD, Planned Unit Development (Legacy) District

30.010-D Allowed Uses

1. Principal Uses

The development may consist of one or more of the uses permitted as of right or by special exception within the underlying base zoning districts, provided:

a. That if any part of the PUD is located within a residential district, the permitted building types may include:

(1) Detached house;

(2) Townhouse;

(3) Duplex; and

(4) Apartment building~~/Condo~~;

2. Accessory Uses

General

Accessory uses customarily incidental to principal uses allowed within the PUD are permitted.

Accessory Commercial

In addition to accessory uses customarily incidental to a permitted principal residential use, residential support services are allowed as an accessory use to a principal group living use and in apartment~~/condo~~ buildings in accordance with Section 45.160. Office support services are allowed as an accessory use to a principal office use in accordance with Section 45.120.

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Chapter 35 Building Types and Use Categories

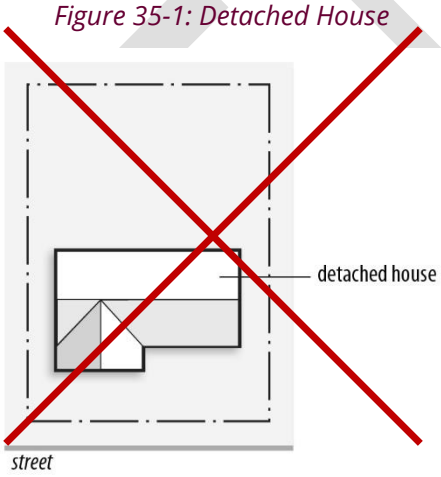
Section 35.010 Building Types

This section establishes and describes the building types regulated by this zoning code.

35.010-A Detached House

A detached house is a principal residential building, other than a manufactured housing unit or mobile home, that contains only one dwelling unit ~~and that is located on a single lot that is not occupied by other principal residential buildings~~. Detached houses are not attached to and do not abut other dwelling units. Detached houses include conventional ~~("stick-built")~~ construction and construction involving modular or system-built components as long as such construction complies with city building codes. (An Accessory Dwelling Unit, as defined by ~~§~~Section 45.031-A, is not considered a detached house.)

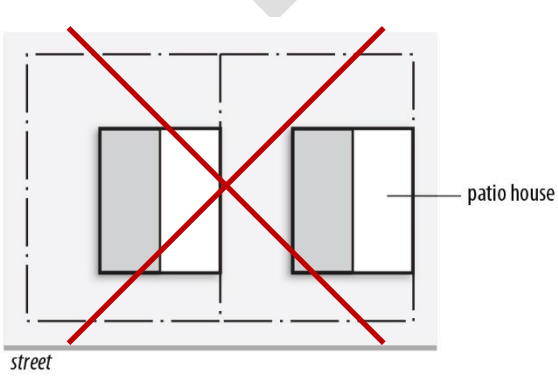
Figure 35-1: Detached House

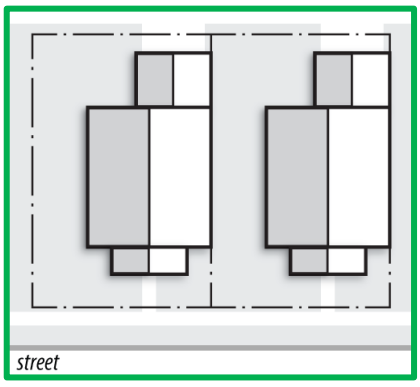


35.010-B Patio House

A patio house is a principal residential building ~~occupied by~~containing one dwelling unit~~, and that is located on a single lot that is not occupied by other principal residential buildings.~~ Patio houses are not attached to and do not abut other dwelling units. The building is shifted to one side of the lot so that there is a more usable side yard on one side of the house and very little or no private yard on the other side. Patio houses are ~~subject to the same lot and building regulations that apply to detached houses except as modified by~~subject to the supplemental patio house regulations of Section 40.290.

Figure 35-~~2~~1: Patio House





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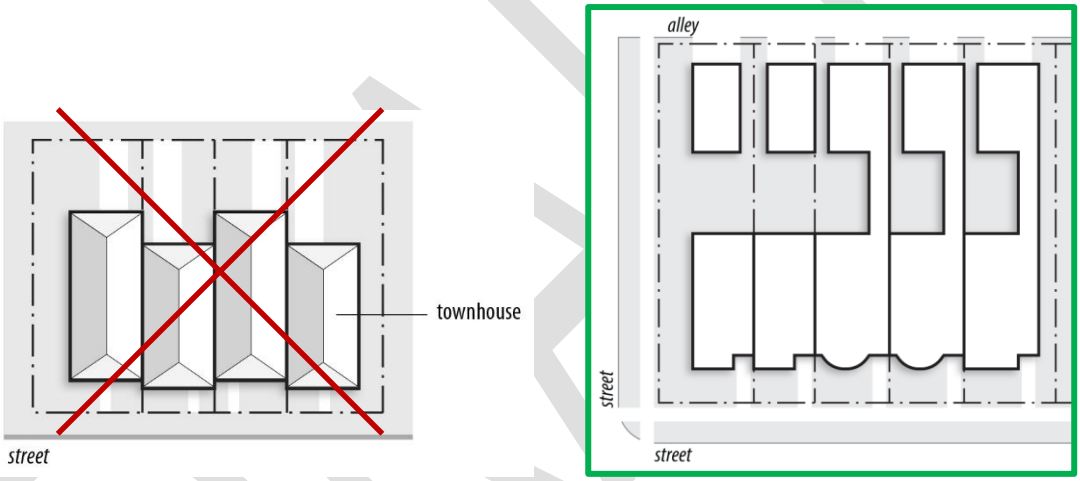
35.010-C Townhouse

~~A townhouse building is a principal residential building that is occupied by multiple dwelling units, each located on its own lot with a common or abutting wall along the dwelling units' shared lot lines. Each dwelling unit has its own external entrance. There are two types of townhouses: 2-unit townhouses and 3+-unit townhouses.~~

1. ~~A two-unit townhouse is a townhouse building occupied by only 2 dwelling units.~~
2. ~~A 3+-unit townhouse is a townhouse building occupied by 3 or more dwelling units.~~

A townhouse is a principal residential building constructed in a group of three or more attached dwelling units in which each unit extends from the foundation to roof and with a yard or public way on not less than two sides. Each dwelling unit has its own external entrance. Townhouses are subject to the supplemental regulations of Section 40.390.

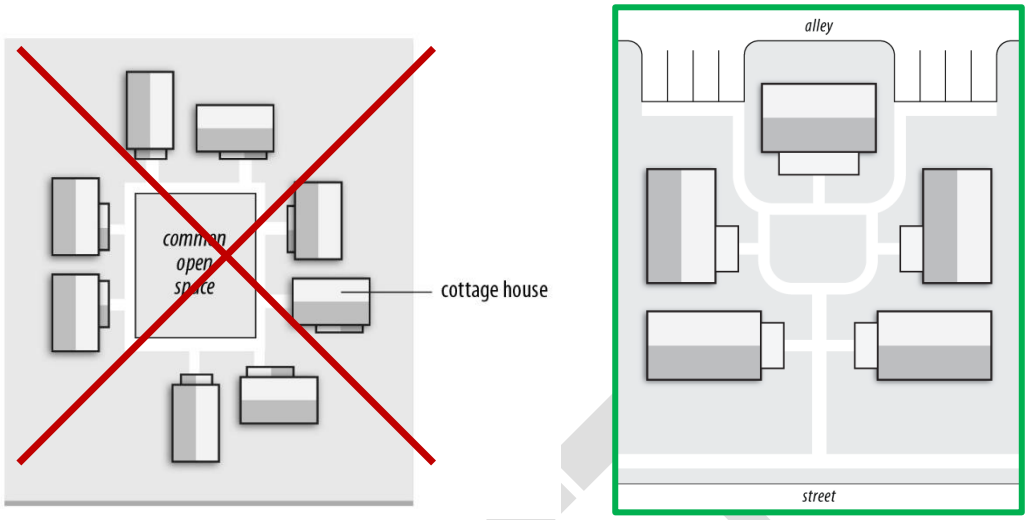
Figure 35-~~3~~2: Townhouse



35.010-D ~~Cottage House~~Courtyard Development

A ~~cottage house~~courtyard development is a grouping of ~~small detached houses~~residential buildings around a common courtyard or open space that is accessible from the street and provides pedestrian access to each dwelling unit ~~or shared courtyard~~. ~~Cottage house~~Courtyard developments are subject to lot and building regulations of the subject zoning district and the supplemental ~~cottage house~~ development regulations of Section 40.110.

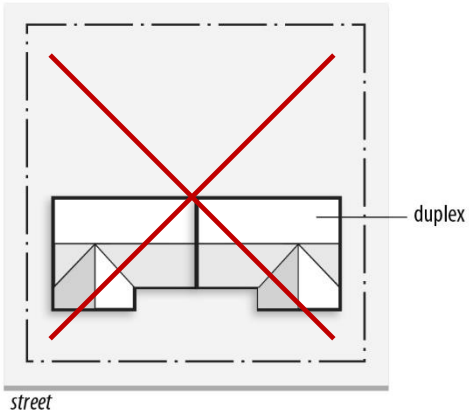
Figure 35-43: ~~Cottage House~~Courtyard Development



35.010-E Duplex

A duplex is a principal residential building occupied by ~~2~~ two attached dwelling units~~, both of which are located on a single lot that is not occupied by other principal residential buildings. The 2 dwelling units are attached and may be located on separate floors or side-by-side.~~

~~*Figure 35-5: Duplex*~~

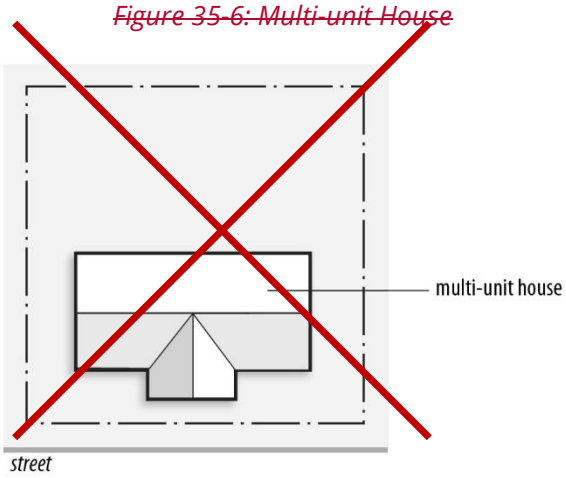


35.010-F Multi-unit House

A multi-unit house is a principal residential building that contains ~~3~~ three or ~~4~~ four dwelling units that share common walls and/or common floors/ceilings. ~~The building is located on a single lot that is not occupied by other principal residential buildings.~~ Multi-unit houses have the appearance of large detached houses and ~~have only~~shall not have more than one entrance ~~visible from~~oriented toward ~~the~~ each street frontage.

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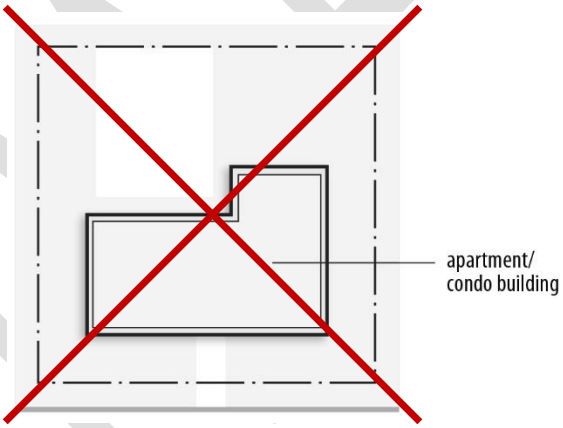
~~*Figure 35-6: Multi-unit House*~~



35.010-G Apartment building~~/Condo~~

An apartment~~/condo~~ building is a principal residential building ~~on a single lot that is occupied by~~ containing ~~3~~ three or more dwelling units (other than a multi-unit house or townhouse) that share common walls and/or common floors/ceilings.

~~*Figure 35-7: Apartment/Condo*~~



35.010-H Manufactured Housing Unit

A manufactured housing unit is a principal residential building that complies with the *National Manufactured Housing Construction and Safety Standards Act of 1974* (42 U.S.C. §5401, et seq.). Manufactured housing units are subject to the ~~same regulations that apply to detached houses, except as modified by~~ supplemental regulations of Section 40.210.

~~**35.010-I Manufactured Housing Subdivision**~~

~~A manufactured housing subdivision is a residential subdivision primarily comprising home sites for manufactured housing units on individual lots. Manufactured housing subdivisions are subject to the supplemental regulations of Section 40.220.~~

35.010-~~J~~I Mobile Home

A mobile home is a principal residential building that is built on a permanent chassis and that complies with *Standard for Mobile Homes, National Fire Protection Association* (NFPA) 501, American National Standards Institute (ANSI) 119.1, in effect at the time that the unit was manufactured. Mobile

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homes are allowed only within mobile home parks, which are subject to the regulations of Section 40.240.

35.010-~~K~~L Mobile Home Park

A mobile home park is a lot or multiple lots upon which mobile homes or manufactured housing units are available for lease or upon which spaces for mobile homes or manufactured housing units are available for lease.

~~**35.010-L Mixed-use Building, Vertical**~~

~~A vertical mixed-use building is a principal building occupied by one or more commercial uses on the ground floor and one or more residential dwelling units on upper floors.~~

~~*Figure 35-8: Vertical Mixed-use Building*~~



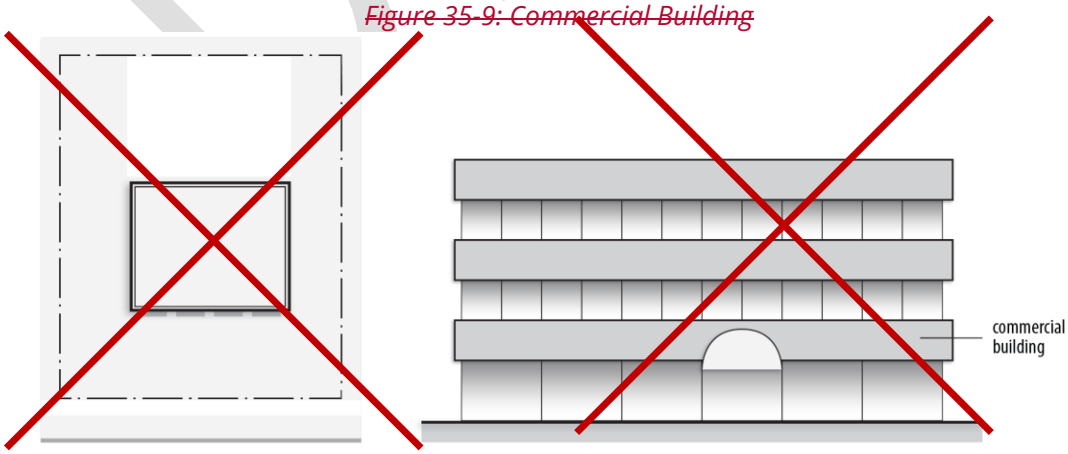
35.010-~~M~~K Mixed-Use Building

A mixed-use building is a principal building occupied by one or more ~~commercial~~ nonresidential uses and one or more residential ~~dwelling units~~uses.

35.010-~~N~~L Commercial Building

A commercial building is a principal building occupied primarily by non-residential uses.

~~*Figure 35-9: Commercial Building*~~

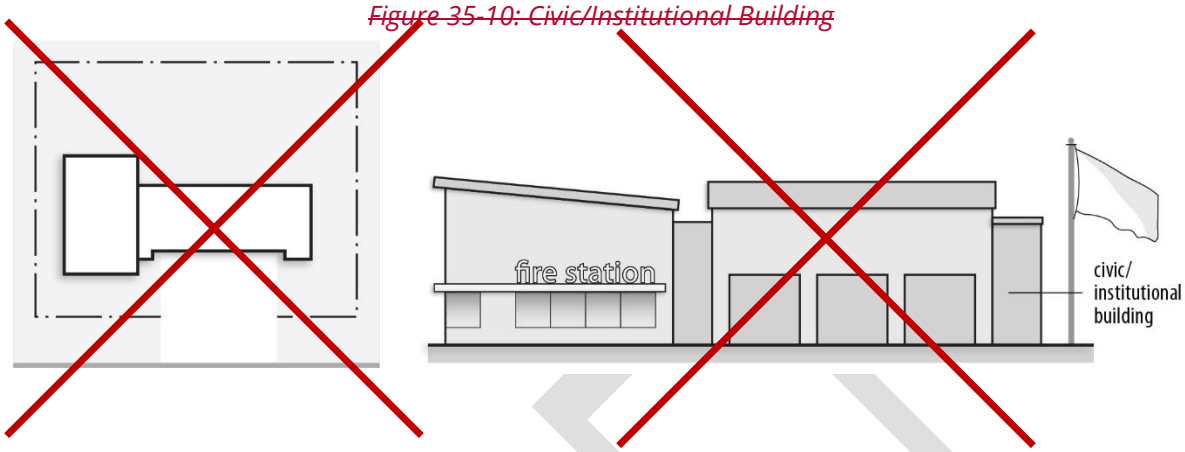


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35.010-~~O~~M Civic/Institutional Building

A civic/institutional building is a principal building occupied primarily by public, civic, or institutional uses.

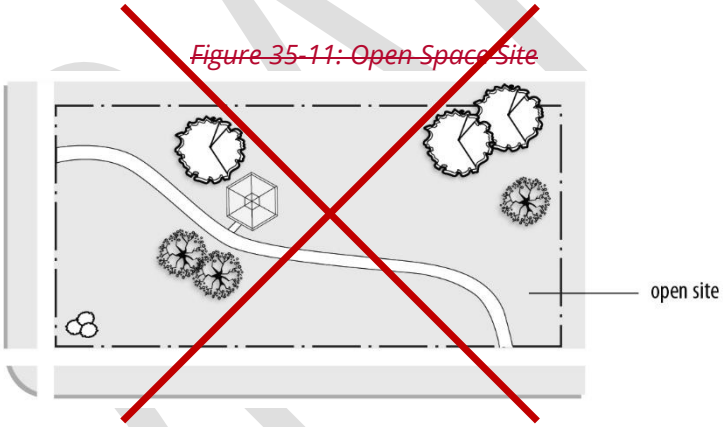
~~*Figure 35-10: Civic/Institutional Building*~~



35.010-~~P~~N Open Space Site

Open space sites are parcels occupied primarily by parks, open spaces, natural areas and similar large outdoor open spaces.

~~*Figure 35-11: Open Space Site*~~



* * *

Section 35.030 Residential Use Category

This category includes uses that provide living accommodations for one or more persons. The residential use subcategories are as follows.

35.030-A Household Living

Residential occupancy of a dwelling unit by a household~~. When dwelling units are rented~~, with tenancy ~~is~~ arranged on a ~~month to month or longer~~ basis of 30 consecutive days or more. Uses where tenancy may be arranged for a shorter period are not considered residential; they are considered a form of lodging.

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Chapter 40 Supplemental Use and Building Regulations

Section 40.030 Apartment Buildings~~s/Condos~~

40.030-A Whenever an apartment~~/condo~~ building is located on a lot abutting an RE, RS, or AG-R district, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of ~~§~~Section 65.070-C.

40.030-B To provide a sense of privacy and security to occupants, the finished floor of the ground floor level of street-facing units must be elevated at least 24 inches above curb level along lot lines abutting streets if the lot has frontage along streets classified in the Major Street and Highway Plan as a major street other than a freeway.

Section 40.110 ~~Cottage House~~Courtyard Developments

~~Cottage house~~Courtyard developments are subject to the lot and building regulations in Table 5-3, except as expressly modified by the regulations of this section.

40.110-A Purpose

The ~~cottage house development~~ regulations of this ~~zoning code~~section are intended to provide opportunities for ~~individual ownership of small houses~~residential buildings oriented around a courtyard that takes the place of private yards ~~or common open area~~.

40.110-B ~~Development Size~~Groupings

~~On lots with one or more cottage house grouping(s),~~ Each courtyard grouping must contain at least 3 and no more than 10 ~~houses~~ residential buildings arranged around at least 2 sides of a courtyard ~~or common open space~~.

40.110-C Orientation of ~~Cottage Houses~~Buildings

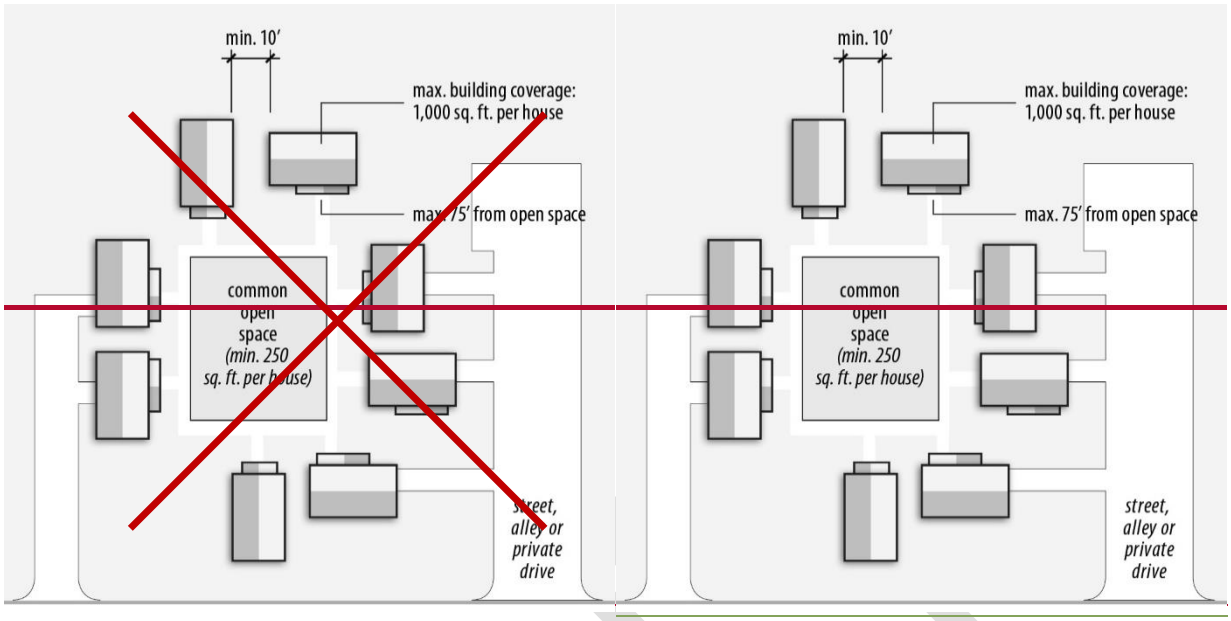
1. ~~Cottage houses~~Buildings must be oriented to, and have a main entry ~~onto~~ facing a courtyard ~~or common open space area~~ that is accessible by all residents in the ~~cottage house~~courtyard development. ~~, provided that cottage houses o~~On lots abutting minor streets, buildings along the street must have their front building elevation facing the street~~, including~~ and a building entrance must be clearly visible from the street ~~, with a second entrance facing a courtyard or common open space area~~.

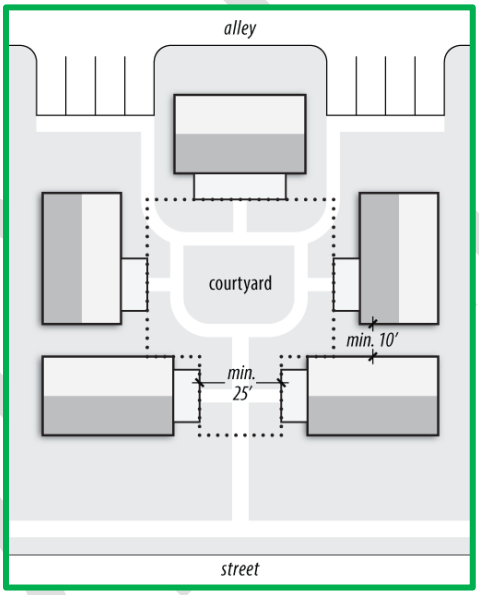
2. Required courtyards ~~and common open space areas~~ must have ~~cottage houses~~buildings abutting on at least 2 sides.

3. All ~~cottage houses~~buildings must be located within 75 feet walking distance of a required courtyard ~~or common open space area~~.

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Figure 40-5: ~~Cottage House~~Courtyard Developments





40.110-D ~~Open Space~~Courtyard Size

A unified, contiguous courtyard ~~or common open space~~ must be provided as the focal point of the ~~cottage house~~courtyard development. The courtyard ~~or common open space area~~ must ~~contain~~ be at least ~~250 square~~25 feet wide in any direction ~~of common open space per cottage house~~.

40.110-E Building Setbacks and Separation

All buildings within a ~~cottage house~~courtyard development must comply with the minimum building setbacks that apply to detached houses in the subject zoning district, except that no building setback is required from an alley. Buildings within a ~~cottage house~~courtyard development must be separated by a minimum distance of 10 feet.

40.110-F ~~**Building Coverage**~~**Building Types**

~~Individual cottage houses are subject to a maximum first floor area of 1,000 square feet. Attached garages are counted in the calculation of first floor area, but covered porches and detached accessory buildings are not counted.~~The following residential building types are permitted in courtyard developments: detached house, duplex, multi-unit house, and townhouse.

40.110-G Vehicular Access and Parking

1. Vehicular access to parking areas serving ~~cottage houses~~buildings within the courtyard development may come from the street, an alley, or a private drive.

2. Required parking may be provided on each ~~cottage house~~ lot, ~~or~~ in a shared parking area located within commonly owned space, or in a combination of the two. Common parking areas containing 4 or more spaces must be screened from view of abutting RE, RS, ~~-~~ or AG-R-zoned lots in accordance with the F1 screening fence or wall standards of ~~§~~Section 65.070-C. Parking may not be located in street yards or in the required courtyard ~~or common open space area~~.

40.110-H ~~**Restrictive Covenants**~~**Pedestrian Access**

~~A cottage house development is permitted only if a subdivision plat or other recorded legal instrument incorporating the provisions and requirements of this section (Section 40.110) is recorded in the county clerk's office.~~Pedestrian paths shall be provided to ensure pedestrian access from each individual dwelling unit to a public sidewalk at the front property line and street, and to any on-site parking area.

Section 40.240 Mobile Home Parks

* * *

40.240-D The lot and building regulations of Table 40-1 apply to the overall mobile home park site:

Table 40-1: Mobile Home Park Lot and Building Regulations

Regulations	
Minimum Area (acres)	5
Minimum Width (feet)	200
~~**Minimum Lot Area per Unit** (sq. ft.)~~	~~5,000~~
Minimum Building Setbacks (feet)	
Street (Arterial/Freeway)	35
Street (Non-Arterial/Freeway)	20
Side (interior)	10
Rear	10
Maximum Building Height (feet)	15

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Section 40.250 Multi-unit Houses

Multi-unit houses are subject to the lot and building regulations of the subject zoning district, except as expressly modified by the supplemental regulations of this section.

40.250-A The street-facing façade of a multi-unit house may have only one building entrance that is visible from the street. If the building is located on a corner lot, one building entrance may be visible from each street.

40.250-B Patio-style doors, such as sliding glass doors, may not be used for entrance doors on building façades that face a street.

40.250-C The front façade of new multi-unit houses established after the effective date established in Section 1.030 may not exceed 60 feet in width.

40.250-D Outdoor (surface) parking areas may not be located between the principal building and the street or within any required side building setback.

40.250-E To provide a sense of privacy and security to occupants, the finished floor of the ground floor level of street-facing units must be elevated at least 24 inches above curb level along lot lines abutting streets if the lot has frontage along streets classified in the Major Street and Highway Plan as a major street other than a freeway.

Section 40.390 Townhouses

40.390-A Applicability

Townhouses are subject to all applicable regulations of this zoning code and other city codes and ordinances except as modified or supplemented by the townhouse development and building regulations of this section.

40.390-B Side Setbacks

No side building setback is required for common or abutting walls. Otherwise, the minimum side setback requirements of the subject zoning district apply.

40.390-C Design

~~Townhouses must be affixed to a permanent foundation.~~

1. To provide a sense of privacy and security to occupants, the finished floor of the ground floor level of street-facing units must be elevated at least 24 inches above curb level if the lot has frontage along streets classified in the Major Street and Highway Plan as a major street other than a freeway
2. A street-facing entry and either a porch or stoop are required.
3. An accessible entrance may be located on any façade. Grading, ramps, and walkways are permitted to meet accessibility requirements.

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40.420-G Antennas and Towers Permitted as-of-Right

3. Standards

Antennas and towers that are permitted as of right are subject to the following supplemental regulations:

a. Antennas attached to the roof or wall of buildings in commercial or industrial zoning districts, or to office or apartment~~/condo~~ buildings, or to public, civic, or institutional buildings (e.g., schools, places of worship, or hospitals) are subject to the following regulations: ...

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Chapter 45 Accessory Uses and Structures

Section 45.030 Accessory Buildings and Carports in R Districts

45.030-A Accessory Building Size

1. R~~E and RS-1~~ Districts

In R~~E and RS-1~~ districts, the total aggregate floor area of all detached accessory buildings not erected as an integral part of the principal residential building may not exceed 750 square feet or 40% of the floor area of the principal residential structure, whichever is greater. The floor area of an Accessory Dwelling Unit shall not count toward the maximum aggregate floor area of detached accessory buildings. See Section 45.031-D.5 for floor area limits for accessory buildings containing an Accessory Dwelling Unit. For detached accessory buildings located within rear setbacks, see Section 90.090-C. ~~[1] [2]~~

~~2. RS-2, RS-3, RS-4, RS-5, RD, RT, and RM Districts~~

~~In RS-2, RS-3, RS-4, RS-5, RD, RT, and RM districts, the total aggregate floor area of all detached accessory buildings not erected as an integral part of the principal residential building may not exceed 500 square feet or 40% of the floor area of the principal residential structure, whichever is greater. [1] [2]~~

~~[1] For detached accessory buildings located within rear setbacks, see Section 90.090-C.~~

~~[2] See Section 45.031-D.6 for exceptions to these floor area limits for accessory buildings containing an Accessory Dwelling Unit.~~

Section 45.031 ADU, Accessory Dwelling Units

45.031-A Definition

A dwelling unit that is located ~~in an accessory building~~ on the same lot as a household living use to which it is accessory and subordinate.

Examples of ADUs include backyard cottages, basement or attic apartments, carriage houses, garage apartments, guest houses, and mother-in-law flats.

...

45.031-D Regulations

1. Where Allowed

Accessory dwelling units are allowed ~~by special exception in RE, RS, AG, and AG-R districts. Accessory dwelling units are allowed~~ by right ~~in all other districts~~ when accessory to a household living use. Some neighborhoods may have restrictive covenants prohibiting or otherwise affecting accessory dwelling units. The City does not enforce private covenants; therefore, property owners should verify whether accessory dwelling units are allowed in their neighborhoods.

2. Number

~~No more than o~~One accessory dwelling unit is allowed per lot~~.~~, provided that the number may be increased in accordance with the special exception procedures of Section 70.120.

3. Methods of Creation

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An accessory dwelling unit may be created only through the following methods:

a. Detached ADU. Constructing, converting, or increasing existing floor area within an accessory building ~~an accessory dwelling unit~~ on a lot with a new or existing principal building; or

b. Attached ADU. Converting or increasing existing floor area within a detached house, patio house, townhouse, or duplex~~an accessory building on a lot with an existing principal building~~.

4. ~~Density (~~Minimum Lot Area ~~and Lot Area per Unit)~~

No additional lot area ~~or lot area per unit~~ is required for the accessory dwelling unit.

~~6~~5. Accessory Dwelling Unit Size

The size limitations in this section~~Section 45.030~~ apply, provided that the maximum ~~allowed square footage of an accessory building containing an Accessory Dwelling Unit is increased by 500 square feet. The maximum~~ allowable floor area for ~~accessory buildings containing an~~ Accessory Dwelling Units may be increased in accordance with the special exception procedures of Section 70.120.

a. Detached Accessory Dwelling Units

A detached accessory dwelling unit, excluding any attached garage area, may contain up to 1,200 square feet, provided that it may not exceed the floor area of the principal building. The floor area of a detached Accessory Dwelling Unit does not count toward the maximum aggregate floor area limitations of accessory buildings established in Section 45.030.

b. Attached Accessory Dwelling Units

An attached accessory dwelling unit may not exceed 40% of the total habitable floor area of the building it is contained within or attached to.

~~7~~6. Building and Fire Codes

All accessory dwelling units are subject to applicable building and fire codes.

~~8~~7. Additional Regulations for Accessory Dwelling Units

a. Entrances

Second-floor ~~B~~building entrances to accessory dwelling units may not face the nearest side or rear property line unless there is an alley or street abutting that property line.

b. Setback~~s~~ and Building Separation

A~~n~~ detached accessory dwelling unit may not be located closer to the street than the principal building, and must be ~~located~~ separated by at least 10 feet ~~behind~~ from the principal building. The~~is~~ required ~~10-foot~~ separation ~~distance~~ must be open from the ground to the sky except that it may include carports or walkways, patios, decks, and similar structures that do not exceed 30 inches in height above finished grade.

c. Exterior Finish Materials

~~The exterior finish material of any new accessory dwelling unit must be the same or visually match in type, size and placement, the exterior finish~~

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~~material of the principal building.~~Corrugated metal products such as R-panels, AG panels, exposed fastener panels, standing seam panels, and similar materials are prohibited from being used as a cladding material for accessory dwelling units unless those materials are also the predominant materials used on the principal building.

d. Roof Pitch

The roof pitch of a ~~any new~~detached accessory dwelling unit must be ~~the same as the predominant roof pitch of the principal building~~at least 4:12 unless the principal building's roof has a lower pitch, in which case the accessory building's roof must have a pitch at least as high as the roof of the principal building.

e. Second Story Windows

Any second-story window less than 10 feet from and oriented toward a lot line abutting an RE or RS district and not abutting a right of way shall either use permanently translucent glazing or have a minimum sill height of 6 feet above the finished floor.

Section 45.160 Residential Support Service

45.160-A Residential support services include restaurants and retail sales of convenience goods provided primarily to serve the needs of residents of residential buildings.

45.160-B Residential support services are allowed in the RM-3 district and all MX districts as an accessory use to any principal group living use and in apartment~~/condo~~ buildings.

Section 45.210 Farmers Markets

45.210-C In districts where farmers markets are not allowed by right, farmers markets may operate as an accessory use to the following principal uses or building types for up to two days per calendar week, regardless of the zoning district:

1. Religious Assembly,
2. College or University,
3. Governmental Service or Similar Functions,
4. Library or Cultural Exhibit,
5. School,
6. Fraternal Organization,
7. Parks and Recreation, and
8. Apartment~~/Condo~~.

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55.080-C Parking Setbacks

1. Unenclosed off-street parking areas must be set back from abutting streets as indicated in Table 55-4:

Table 55-4: Parking Space Setback Requirements

	Minimum Street Setback (feet)	
	1 to 5 Parking Spaces	6 or More Parking Spaces
Residential Zoning Districts		
Accessory to a household living use	3	~~15~~10
Accessory to another use	~~15~~10	~~25~~10
Other Zoning Districts		
Within 50 feet of an RE, RS, RD, or RT ~~residential~~ district	~~15~~10	~~25~~10

2. All unenclosed, non-accessory off street parking areas must be screened from abutting R- or AG-R zoned lots by an F1 screening fence or wall, in accordance with ~~§~~Section 65.070-C.

3. All unenclosed, accessory off street parking areas containing 6 or more spaces must be screened from abutting RE-, RS-, or AG-R zoned lots by an F1 screening fence or wall, in accordance with ~~§~~Section 65.070-C, provided that accessory parking areas located more than 50 feet from abutting RE-, RS-, or AG-R zoned lots are not required to provide such screening.

55.080-D Off-site Parking

1. When Allowed

All or a portion of required off-street parking ~~for nonresidential uses~~ may be provided off-site, in accordance with the regulations of this section. Required accessible parking spaces (see Section 55.110) ~~and required parking for residential uses~~ may not be located off site.

2. Location

Off-site parking areas must be located within a 1,000-foot radius of the use served by such parking, measured between the nearest public entrance door of the use to be served and the outer perimeter of the furthest parking space within the off-site parking lot. Off-site parking lots are allowed only in zoning districts that permit non-accessory parking or in districts that allow the principal use to be served by the off-site parking spaces.

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Section 55.060 Bicycle Parking

55.060-B Spaces Required

1. Short-term Bicycle Parking

Table 55-3: Minimum Required Bicycle Parking Ratios

USE CATEGORY Subcategory **Specific use**	**Bicycle Spaces (% of Required Motor Vehicle Parking Spaces)**
RESIDENTIAL	
Household Living	
Apartment~~/Condo~~	10% or 2 spaces, whichever is greater
PUBLIC, CIVIC AND INSTITUTIONAL	

* * *

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Chapter 60 Signs

Section 60.030 Sign Exceptions

The following signs are not counted as signs for purposes of determining the number of signs or amount of signage on a lot.

60.030-A Driveway Signs

1. One driveway sign may be installed at each vehicle entrance and exit to any lot occupied by an allowed nonresidential use or apartment~~/condo~~ building. Such signs must be located within 10 feet of the intersection of the driveway and the street right-of-way. Driveway signs may be illuminated but may not exceed 4 square feet in area or 5 feet in height.

Section 60.050 Signs in R, AG, and AG-R Zoning Districts

60.050-A Applicability

The regulations of this section apply to signs in R, AG, and AG-R districts. See also the general regulations of Section 60.040.

60.050-B Signs Allowed

The following signs are allowed in R, AG, and AG-R districts in addition to any signs allowed pursuant to Section 60.030. On-premise roof signs, on-premise projecting signs and all off-premise outdoor advertising signs are prohibited in R, AG, and AG-R districts.

1. Apartment~~/Condo~~ Buildings and Neighborhood and Subdivision Identification Signs

   a. Lots occupied by one or more apartment~~/condo~~ buildings are allowed a maximum of one freestanding sign per street frontage and a maximum of one wall sign per building wall. Wall signs may not exceed 32 square feet in area.

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Chapter 65 Landscaping and Screening

* * *

Section 65.030 Applicability

The landscaping and screening regulations of this chapter apply as set forth in the individual sections of this chapter. The following are expressly exempt from the landscaping and screening regulations of this chapter:

65.030-A Agricultural uses;

65.030-B Public parks and open spaces;

65.030-C Household living uses consisting of ~~a single household on one lot or 2~~one to four households on one lot (existing or proposed), provided that the street tree requirements of Section 65.040 apply to lots with three or more households; and

* * *

Section 65.100 Landscape Plans

65.100-A Preparation of Landscape Plan

1. Except as expressly stated in ~~§~~Section 65.100-A2, required landscape plans must be accompanied by written certification from an architect, landscape architect, or engineer licensed to practice in the State of Oklahoma, that the landscape plan is in conformance with the minimum requirements of this chapter.

2. ~~Required landscape plans for properties that (a) are subject to an approved mandatory or optional development plan or (b) have a lot area of more than 20,000 square feet and are occupied by buildings with a combined gross floor area of more than 15,000 square feet, must be sealed and signed by a landscape architect licensed to practice in the State of Oklahoma.~~

* * *

65.100-D Alternative Compliance Landscape and Screening Plans

1. To accommodate creativity in landscape and screening design and to allow for flexibility in addressing site-specific development/redevelopment challenges, the land use administrator is authorized to approve alternative compliance landscape plans ~~sealed by a landscape architect licensed to practice in the State of Oklahoma~~. In order to approve an alternative compliance landscape plan, the land use administrator must determine that one or more of the following conditions or opportunities are present:

* * *

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Chapter 70 Review and Approval Procedures

Section 70.080 Zoning Clearance and Permits

70.080-A Applicability

Property owners or their authorized agent must obtain a zoning clearance ~~permit~~ review from the development administrator before constructing, moving, or structurally altering any building or structure, or establishing or changing the use of any building or lot.

~~70.080-B Compliance with Development Regulations~~

~~1. Purpose~~

~~The requirements of this section are intended to help ensure that rights of way, streets, sidewalks and other public improvements are in place and adequate to serve proposed developments in accordance with applicable regulations.~~

~~2. Rezonings, Special Exceptions and Residential Uses~~

~~No building permit or zoning clearance permit may be issued until the subject lot or parcel for which the permit is sought has been determined to be in compliance with all applicable design and improvement requirements of the Tulsa Metropolitan Area Subdivision and Development Regulations, as evidenced by submittal of a recorded subdivision plat or ALTA/ACSM survey and separately recorded legal instruments. This requirement applies to any property for which:~~

~~a. A property owner-initiated zoning map amendment or development plan was approved after July 1, 1970;~~

~~b. A special exception was approved for any of the following:~~

~~(1) Group living use;~~
~~(2) Public, civic or institutional use;~~
~~(3) Outdoor assembly and entertainment use;~~
~~(4) Household living involving 3 or more households on a single lot;~~
~~(5) Marina;~~
~~(6) Gun club;~~
~~(7) Crematory; or~~
~~(8) Mausoleum; or~~

~~c. A building permit is requested for any of the following residential uses:~~

~~(1) Cottage house development;~~
~~(2) Patio house; or~~
~~(3) Townhouse~~

70.080-~~C~~B Application

1. Zoning clearance ~~permit~~ applications must be accompanied by a legal description of the lot and plans in duplicate, drawn to scale, showing at least the following information:

   a. The actual shape and dimension of the lot;

   b. The location and dimensions of all easements;

   c. The location, size and height of any existing buildings or structures to be erected or altered;

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d. The existing and intended use of each building or structure and portion of the lot;

e. The number of dwellings and buildings proposed; and

f. Other information required by the development administrator to determine compliance with all applicable provisions this zoning code.

2. If the zoning code requires that the use, structure, or other development feature must be separated or spaced a minimum distance from another use, structure, or development feature, the zoning clearance ~~permit~~ application must also be accompanied by the following information:

a. An aerial photograph identifying the location of the proposed use, structure or development feature at the center of a circle drawn to scale, the radius of which is the required separation distance from another use, structure, or development feature;

b. The location of the nearest use, structure, or development feature from which the proposed use, structure, or development feature must be separated; and

c. Verification of having provided a copy of the zoning clearance ~~permit~~ application, concurrent with the submission of the application, to the City Councilor for the City Council District in which the subject property is located.

70.080-~~D~~C Action

Following receipt of a complete application for a zoning clearance ~~permit~~, the development administrator must review ~~and take action on the permit~~. If the proposed development and construction complies with all applicable provisions of this zoning code, approval ~~the permit~~ must be issued. If the proposed development and construction does not comply with one or more provisions of this zoning code, the ~~permit~~ application must be denied. The applicant must be notified of the action taken, and if ~~the permit is~~ denied, notified of the specific reasons for denial.

* * *

Section 70.100 Administrative Adjustments

70.100-B Authorized Administrative Adjustments

1. Administrative adjustments may be granted by the land use administrator only as expressly identified in this section.

a. ~~The land use administrator is authorized to grant an administrative adjustment~~ reducing minimum required street setbacks by up to 5 feet.

b. ~~The land use administrator is authorized to grant an administrative adjustment~~ reducing minimum required side and rear setbacks in any R district by up to 20%.

c. ~~The land use administrator is authorized to grant an administrative adjustment~~ reducing minimum required side setbacks to no less than

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5 feet in any RM district to allow construction of a detached house, duplex, or multi~~two~~-unit house.

d. ~~The land use administrator is authorized to grant an administrative adjustment of~~ modifying build-to-zone regulations by up to 20%.

e. ~~The land use administrator is authorized to approve an administrative adjustment~~ reducing minimum transparency requirements by up to 10 square feet or 20%, whichever is greater.

f. ~~The land use administrator is authorized to approve an administrative adjustment~~ reducing minimum lot width and lot frontage requirements by up to 10%.

g. ~~The land use administrator is authorized to approve an administrative adjustment~~ waiving or modifying the parking structure design requirement of Section 40.280-B when ~~the land use administrator~~ determine~~s~~ that compliance with that requirement would result in a reduction in the number of parking spaces within the parking structure or necessitate mechanical ventilation of the garage.

h. ~~The land use administrator is authorized to approve an administrative adjustment i~~Increasing the maximum driveway widths in Section 55.090-F by up to 3 feet.

i. Reducing open space requirements by up to 10%.

* * *

70.100-F Action by Land Use Administrator

1. The land use administrator must review each application for an administrative adjustment and act to approve the application, approve the application with conditions, deny the application, or refer the application to the board of adjustment for consideration as a variance.
2. The land use administrator may not take final action to approve or deny an administrative adjustment application until at least 5 days after the required notices have been mailed.
3. The land use administrator decision to approve or deny an administrative adjustment must be based on the approval criteria and standards of Section 70.100-G and accompanied by written findings of fact.
4. ~~At least once per calendar year, the land use administrator must provide to the board of adjustment a list of all administrative adjustment decisions.~~

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Chapter 80 Nonconformities

Section 80.020 Nonconforming Lots

80.020-A Description

A nonconforming lot is a lot that does not comply with the applicable minimum lot area, minimum lot width, minimum street frontage, or minimum open space requirements of the subject zoning district and that meets at least one of the following criteria:

1. The lot was a lot of record on or before July 1, 1970;
2. The lot is located within a subdivision approved by the planning commission; or
3. The lot is a lot of record for which a recorded instrument of conveyance bears the endorsement of the planning commission.

* * *

Chapter 90 Measurements

Section 90.030 ~~Lot Area per Unit~~ Reserved

~~Lot area per unit is a measure of residential density. It governs the amount of lot area required for each dwelling unit on the subject lot. To determine the number of dwelling units allowed on a lot, divide the area of the lot by the minimum lot-area-per-unit requirement, and round any fractional result down to a whole number. If, for example, a minimum lot-area-per-unit requirement of 1,750 feet is applied to a 10,000 square foot lot, a maximum of 5 units would be allowed on that lot (5.71 rounded down to 5). In applying minimum lot-area-per-unit requirements to fraternity, sorority and rooming/boarding house uses, each 600 square feet of floor area is counted as one dwelling unit.~~

90.090-C.2 Detached Accessory Buildings in R Districts

a. Detached accessory buildings may be located in rear setbacks, provided that:

(1) ~~The a~~Accessory buildings not containing an Accessory Dwelling Unit ~~does~~may not exceed one story or 18 feet in height ~~and is not more than 10 feet in height to the top of the top plate;~~ and

~~(2) The A~~Accessory buildings containing an Accessory Dwelling Unit may ~~does~~ not exceed two stories or 25 feet in height ~~and is no more than 18 feet in height to the top of the top plate if it contains an Accessory Dwelling Unit on the second floor; and~~

(3) Garage doors are limited to 8 feet in height~~; and~~

(4) Accessory building coverage in the rear setback does not exceed the maximum limits established in Table 90-2:

Table 90-2: Accessory Building Coverage Limits in Rear Setback

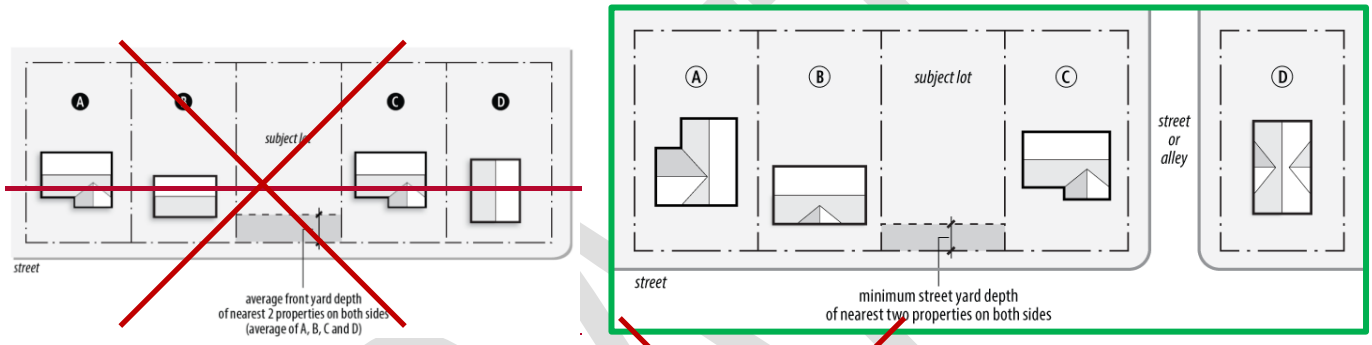
Zoning District	Maximum Coverage of Rear Setback
RE and RS-1 Districts	30%
RS-2 District	35%
RS-3, RS-4, RS-5, RD, RT, and RM Districts	40%

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90.090-D Contextual Setbacks

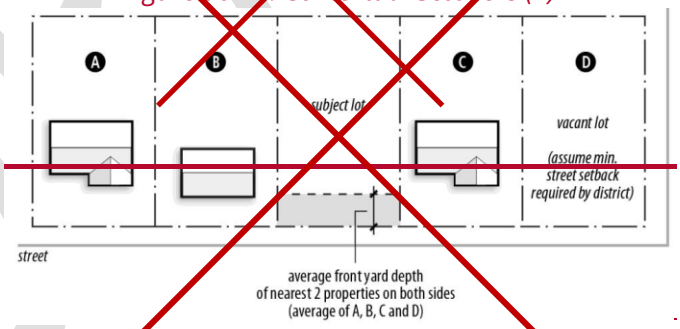
When existing buildings on one or more abutting lots are closer to the street ~~(front or street side) property line~~ than the ~~otherwise~~ required setback, the street setback of new buildings or additions to existing buildings ~~or construction of new buildings~~ on the subject lot ~~may~~ shall be no less than the minimum ~~comply with the average~~ street yard depth that exists on the nearest ~~2~~two lots on ~~either~~ both sides of the subject lot ~~instead of complying with the zoning district's minimum street setback requirement. Existing yard depths must be based on the front corners of the buildings on the lots used in the contextual setback determination that are nearest to the subject lot~~. Lots on the same side of the street as the subject lot that are separated from the subject lot by an intersecting minor street or alley may be used in computing the minimum. These contextual setback provisions may not be used to reduce the setback of a street-facing garage door to less than 22 feet, and in no case shall a building on a corner lot encroach into the sight-distance triangle as established in Title 24, Section 103 of the Tulsa Revised Ordinances.

Figure 90-11: Contextual Setbacks ~~(1)~~



~~**1.** If one or more of the lots required to be included in the averaging calculation is vacant, that vacant lot will be deemed to have a street yard depth equal to the minimum street setback requirement of the subject zoning district.~~

~~*Figure 90-12: Contextual Setbacks (2)*~~



~~**2.** Lots with frontage on a different street than the subject lot or that are separated from the subject lot by a street or alley may not be used in computing the average.~~

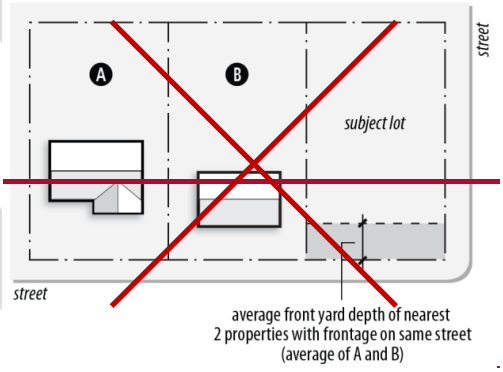
~~*Figure 90-13: Contextual Setbacks (3)*~~

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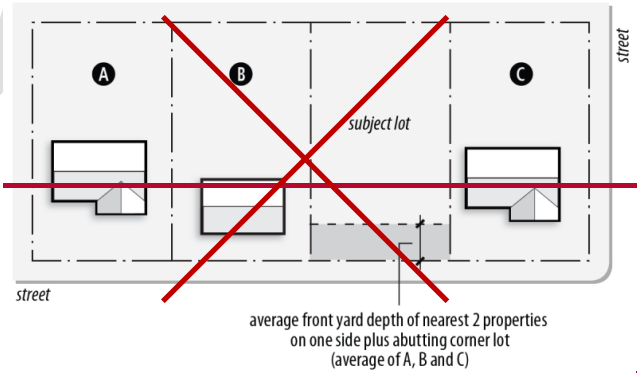
3. When the subject lot is a corner lot, the average street yard depth will be computed on the basis of the nearest 2 lots with frontage on the same street as the subject lot.

Figure 90-14: Contextual Setbacks (4)



4. When the subject lot abuts a corner lot with frontage on the same street, the average street yard depth will be computed on the basis of the abutting corner lot and the nearest 2 lots with frontage on the same street as the subject lot.

Figure 90-15: Contextual Setbacks (5)



5. These contextual setback provisions may not be used to reduce the setback of a street-facing garage door to less than 20 feet.

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Figure 90-~~16~~12: Build-to-Zone

Figure 90-~~17~~13: Ground Floor Transparency Measurement

Figure 90-~~18~~14: Upper Floor Transparency Measurement

Section 90.160 Building Height

90.160-A Measurement

1. Building height is measured as the vertical distance from the ~~average ground elevation along the exterior building wall~~ top of the finished floor of the ground-floor level to the highest point of the roof surface for roofs inclining no more than two inches per foot (flat roofs); and to the average height between eaves and the highest point for all other roofs (pitched roofs). For buildings without a roof, height is measured to the highest point of the structure. ~~subject building. For purposes of measuring height:~~

   a. ~~The average ground elevation is the mid-point between the highest and lowest ground elevations along the exterior building wall; and~~

   ~~b. The highest point of the building is the coping of a flat roof, the top of a mansard roof or shed roof, or the peak of the highest gable of a gambrel or hip roof. For buildings without a roof, height is measured to the highest point of the structure.~~

Figure 90-~~19~~15: Building Height Measurement



90.160-B Exceptions

1. Farm buildings and farm-related structures are not subject to building height limits.

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2. Chimneys, elevators, equipment penthouses, monitors, cooling towers and ventilators may exceed maximum building height limits, provided they are not intended for human occupancy and they do not extend more than 20 feet above the top of the principal structure to which they are attached. This 20-foot limit may be increased through the special exception procedures of Section 70.120.

3. Belfries, clock towers, cupolas, domes, flag poles and spires may exceed maximum building height limits, provided they are not intended for human occupancy ~~and they are not more than 150% taller than the applicable height limit. This 150% limit may be increased through the special exception procedures of Section 70.120~~.

4. Parapets and rooftop railings may extend five feet above the building height limit. This limit may be increased through the special exception procedures of Section 70.120.

5. Stairway enclosures providing rooftop access are allowed to exceed the maximum building height, provided that they are set back at least 15 feet from all roof edges on street-facing facades, and do not exceed 10 feet in overall height.

* * *

Chapter 95 Definitions

Section 95.150 Terms Beginning with "L"

~~**Lot Area per Unit**~~
~~A measurement of allowed residential density. See Section 90.030.~~

* * *

Section 95.210 Terms Beginning with "R"

Residential Building
A detached house, patio house, townhouse, courtyard development, duplex, multi-unit house, manufactured housing unit, or apartment~~/condo~~ building (See also building types described in Section 35.010)

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CITY OF TULSA PLANNING OFFICE

Planning Commission Work Session

November 4, 2026

Prepared by: Susan Miller, AICP

Item

Discuss proposed zoning code text amendments related to residential **open space requirements (ZCA-43)**

Background

For the past several years, a Mayor and City Council priority has focused on increasing housing stock in the city of Tulsa. To facilitate housing development, the Planning Office continuously evaluates residential standards in the zoning code to identify potential amendments to remove unnecessary barriers to housing development. In 2024 the City adopted the Housing Feasibility Amendments Part I, which simplified and modernized certain standards. At the April 15, 2026 Planning Commission work session, the Planning Office presented a summary of proposed residential related zoning code amendments, called Housing Feasibility Amendments Part II. One of the proposals included in that batch of amendments is to redefine open space from a square feet per dwelling unit basis to a per lot basis, calculated as a percentage of pervious surfaces on a lot. This allows the requirement to focus on the overall pervious/impervious area of a lot. Establishing a percentage also allows the open space requirement to scale with the size of the lot. On May 6, 2026, the Planning Commission voted to initiate the amendments.

Following initiation, Planning Office continued to work with Development Services and Legal Department representatives to refine the proposed amendments. City administration expressed desire to move forward with the proposed open space amendments separately because it could potentially assist in neighborhood infill stormwater issues, and the larger batch of amendments may require more discussion and have a longer timeline.

Summary of Proposed Amendments

The proposed amendments change the definition of open space to represent pervious and impervious surfaces on a lot, and they also change the way open space is measured, from square feet per dwelling unit to a percentage of lot area. These changes close two loopholes: currently, driveways and other fully paved features in a rear yard count as open space; and some applicants rezone to a higher-level residential zoning district simply to circumvent higher open space requirements.

Public Outreach efforts to date

- **September 3, 2026** – presented to builders and housing developers;
- **September 4, 2026** – presented at AIA Eastern Oklahoma office;
- **September 9, 2026** – presented at Home Builders Association of Greater Tulsa;
- **September 25, 2026** – presented to housing developers; and
- **October 6, 2026** – presented to local land use attorneys, engineers, and planners.

Next Steps

ZCA-43 will be heard by planning commission on December 2, 2026, and if recommended for approval, will be transmitted to the City Council for their consideration.

Attachments

The proposed text amendments to the City of Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances, are shown in ~~strikethrough~~/underline in the **Attachment**.

ZCA-43 Open Space Amendments
Summary

Reduces Complexity

- Simplifies complex lot and building regulations (like setbacks, lot width, and lot area) specific to each of 18 separate building types, providing one straightforward standard for each zoning district, plus standards for townhouses. This reduces complexity in every chapter that allows residential uses, and shrinks the lot & building regulations table in Chapter 5 alone from 45 rows to 12 rows
- Redefines open space from a *per dwelling unit* basis to a *per lot* basis, calculated as a percentage of pervious surfaces on the lot. This allows the requirement to focus on the overall pervious/impervious area of a lot.

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Proposed Changes by Chapter

Chapter 5 Residential Districts

Section 5.030 Lot and Building Regulations

5.030-A Table of Regulations

The lot and building regulations of Table 5-3 apply to all principal uses and structures in R districts, except as otherwise expressly stated in this zoning code. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

Table 5-3: R District Lot and Building Regulations

Regulations	RE	RS-1	RS-2	RS-3	RS-4	RS-5	RD	RT	RM-0	RM-1	RM-2	RM-3	RMH
Min. Open Space ~~/Unit (sq. ft.)~~	~~12,000~~ 30%	~~7,000~~ 30%	~~5,000~~ 25%	~~4,000[8]~~ 20%	~~2,500~~ 20%	~~600~~ 20%	~~2,000~~ 20%	~~1,200~~ 10%	~~1,200~~ 15%	~~600~~ 15%	~~200~~ 10%	– 10%	~~2,500~~ 20%

5.030-B Table Notes

The following notes refer to the bracketed numbers (e.g., "[1]") in Table 5-3:

~~[8] Minimum required open space for duplex in RS-3 is 2,500 square feet per unit.~~

Chapter 10 Mixed-Use Districts

Section 10.030 Character Designations

10.030-B Pedestrian Character Designation

3. Lot and Building Regulations

Table 10-4: Lot and Building Regulations for –P Character Zones

Minimum Lot Area (sq. ft.)	3,500
Minimum Lot Width (feet)	25
Minimum Street Frontage (feet)	20
Minimum Open Space ~~per Unit (sq. ft.)~~	~~100~~5%
Minimum Building Setbacks (feet)	
Street	0
Abutting R district	10
Abutting nonresidential district	0
Abutting alley	5
Build-to-Zone (BTZ) (minimum/maximum in feet) *See Section 90.110 for BTZ measurement*	0/20
Primary street BTZ (%)	80
Secondary street BTZ (%)	30

Min. Ground Floor Ceiling Height (feet)	12
Minimum Transparency (%)	
Ground floor	50
Upper floors	20
Min. Parking Setbacks (ft) (see also Section 55.080-C)[1]	
Primary street	30
Secondary street or R zoning district	10
Nonresidential zoning district	0
Street-facing Entrance Required	Yes

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10.030-C Urban Character Designation

3. Lot and Building Regulations

Table 10-5: Lot and Building Regulations for -U Character Zones

Minimum Lot Area (sq. ft.)	
Townhouse	1,600
~~Apartment/Condo~~	7,500
All other	3,500
Minimum Lot Width (feet)	
Townhouse	20
Apartment/Condo	50
All other	25
Minimum Street Frontage (feet)	20
Minimum Open Space ~~per Unit (sq. ft.)~~	5%
~~Townhouse~~	~~200~~
~~Apartment/Condo/Mixed-use~~	~~100~~
Minimum Building Setbacks (feet)	
Street	0
Abutting R district	10
Abutting nonresidential district	0
Abutting alley	5
Build-to-Zone (BTZ) (minimum/maximum in feet) *See Section 90.110 for BTZ measurement*	0/20
Primary street BTZ (%)	60
Secondary street BTZ (%)	30

Min. Parking Setbacks (feet) (see also Section 55.080-C)[1]	
Primary street	30
Secondary street or R zoning district	10
Nonresidential district	0
Min. Ground Floor Ceiling Height (feet)	
Vertical mixed-use, mixed-use, and commercial buildings	12
Other buildings	–
Minimum Transparency (%)	
Vertical mixed-use buildings	
Ground floor	40
Upper floors	20
Commercial buildings and mixed-use buildings	
Ground floor	35
Upper floors	20
Other buildings	20
Street-facing Entrance Required	Yes

10.030-D Variable Character Designation

3. Lot and Building Regulations

Table 10-6: Lot and Building Regulations for -V Character Zones

	Minimum Lot Area (sq. ft.)	
	Townhouse	1,600
	Apartment/Condo	7,500
	All other	3,500
A	**Minimum Lot Width** (feet)	
	Townhouse	20
	Apartment/Condo	50
	All other	25
B	**Minimum Street Frontage** (feet)	20
	Minimum Open Space ~~per Unit (sq. ft.)~~	5%
	~~Townhouse~~	~~200~~
	~~Apartment/Condo/Mixed-use~~	~~100~~
	Minimum Building Setbacks (feet)	
	Street	0
	Abutting R district	10
	Abutting nonresidential district	0
	Abutting alley	5

C	**Build-to-Zone (BTZ)** (minimum/maximum in feet) *See Section 90.110 for BTZ measurement*	0/110
	Primary street BTZ (%)	50
	Secondary street BTZ (%)	25
D	**Min. Parking Setbacks** (feet)(see also Section 55.080-C)[1]	
	Street or R zoning district	10
	Nonresidential zoning district	0
	Min. Ground Floor Ceiling Height (feet)	
	Vertical mixed-use, mixed-use and commercial buildings	12
	Other buildings	–
	Minimum Transparency (%)	
	Vertical mixed-use buildings	
E	Ground floor	40
F	Upper floors	20
	Commercial buildings and mixed-use buildings	
E	Ground floor	35
F	Upper floors	20
	Other buildings	20
G	**Street-facing Entrance Required**	Yes

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10.030-E Flexible Character Designation

3. Lot and Building Regulations

Table 10-7: Lot and Building Regulations for -F Character Zones

Minimum Lot Area (sq. ft.)	
Townhouse	1,600
Duplex	5,000
Apartment/Condo	7,500
Other buildings	3,300
Minimum Lot Width (feet)	
Townhouse	20
Duplex	45
Apartment/Condo	50
Other buildings	20
Minimum Street Frontage (feet)	20
Minimum Open Space ~~**per Unit** (sq. ft.)~~	10%
~~Detached house~~	~~400~~
~~Townhouse/Duplex~~	~~200~~
~~Apartment/Condo/Mixed-use~~	~~100~~
Minimum Building Setbacks (feet)	
Detached house/townhouse/duplex	
Street	15[1]
Side	3[2]
Rear	20
Other buildings	
Street	5
Abutting R district	10
Abutting nonresidential district	0
Abutting alley	5

Minimum Parking Setbacks (feet) (see also 55.080-C)	
Detached house/townhouse/duplex	–
Other buildings [3]	
Street	10
Abutting R district	10
Abutting nonresidential district	0
Abutting alley	2
Min. Ground Floor Ceiling Height (feet)	
Vertical mixed-use, mixed-use and commercial buildings	14
Other buildings	–
Minimum Transparency (%)	
Vertical mixed-use buildings	
Ground floor	40
Upper floors	20
Commercial buildings and mixed-use buildings	
Ground floor	35
Upper floors	20
Other buildings	20
Street-facing Entrance Required	Yes

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Chapter 15 Office, Commercial and Industrial Districts

Section 15.030 Lot and Building Regulations

15.030-A Table of Regulations

The lot and building regulations of Table 15-3 apply to all principal uses and structures in office, commercial and industrial districts, except as otherwise expressly stated in this zoning code. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Additional regulations governing accessory uses and structures can be found in Chapter 45.

Table 15-3: O, C and I District Lot and Building Regulations

Regulations	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH
Minimum Lot Area (sq. ft.)	–	–	–	10,000	–	–	–	–	–	–	–
Minimum Street Frontage (feet) [4]	50	50	50	–	50	50	–	–	50	50	50
Maximum Floor Area Ratio (FAR)	0.40	0.50	2.00	8.00	0.50	0.75	–	–	–	–	–
Minimum Lot Area per Unit (sq. ft.)	–	–	–	–	–	–	–	–	–	–	–
~~**Min. Open Space per Unit** (sq. ft.)~~	–	–	–	–	–	–	–	–	–	–	–
Building Setbacks (feet)											
Street [1]	10	10	10	10	10	10	–	–	10	10	10
From AG, AG-R, or R district	10	10[2]	10[2]	10	10[2]	10[2]	–	–	75[3]	75[3]	75[3]
From O district	–	–	–	–	–	–	–	–	75[3]	75[3]	75[3]
~~**Max. Building Coverage** (% of lot)~~	–	–	–	–	–	–	–	–	–	–	–
Maximum Building Height (feet)	35	–	–	–	–	–	–	–	–	–	–

Chapter 20 Overlay Districts

Section 20.080 NIO, Neighborhood Infill Overlay

20.080-D Lot and Building Regulations

Table 20-5: Neighborhood Infill Overlay District Lot and Building Regulations

Minimum Lot Area (sq. ft.)	1,200
Minimum Lot Area per Unit (sq. ft.)	N/A
Minimum Lot Width (feet)	
Townhouse	16
All other residential buildings	25
Minimum Street Frontage	20 [1]
Minimum Open Space ~~**per Unit (sq. ft.)**~~	~~100~~10%
Minimum Building Setbacks (feet)	
Street	10 [2]
Side	3 [3]
Rear	5
Maximum Building Height (feet)	35

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Section 20.100 NIO-2, Neighborhood Infill Overlay - 2

20.100-A General

3. Nonconformities

Nonconformities that exist within the NIO-2 district are governed by the regulations of Chapter 80 except in residential zoning districts, a single detached house, duplex, or multi-unit house, where the particular residential building type is allowed by right or is allowed by special exception and a special exception has been granted, may be erected on a nonconforming lot without complying with the minimum lot area, minimum lot area per unit, minimum lot width, minimum street frontage or minimum open space ~~per unit~~ requirements of the subject zoning district~~, provided that at least 50% of the lot area remains as open space~~. All other lot and building regulations apply, except that detached houses, duplexes, or multi-unit houses may be erected on corner lots that are nonconforming with regard to lot width, subject to a reduced minimum street side building setback of 5 feet. Garages that are accessed through a side yard abutting a street must be set back at least 20 feet.

20.100-D Lot and Building Regulations

Table 20-8: NIO-2 District Lot and Building Regulations

Minimum Lot Area (sq. ft.)	
Townhouse	1,600
Detached House, Manufactured Housing Unit, Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo	4,000
Minimum Lot Area per Unit (sq. ft.)	N/A
Minimum Lot Width	
Townhouse	20
Detached House, Manufactured Housing Unit, Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo	40
Minimum Street Frontage (feet)	20 [1]
Minimum Open Space ~~**per Unit** (sq. ft.)~~	~~100~~10%
Minimum Building Setbacks (feet)	
Street	10 [2]
Side	3 [3]
Rear	10
Maximum Building Height (feet)	35

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Chapter 40 Supplemental Use and Building Regulations

Section 40.390 Townhouses

40.390-D Open Space

~~Required open space per dwelling for a townhouse project unit~~Minimum open space, as defined in Section 90.080, may be ~~provided~~ counted either on each townhouse lot or in common areas within the overall townhouse project, as designated on a recorded subdivision plat or in a separately recorded legal instrument.

Chapter 45 Accessory Uses and Structures

Section 45.031 ADU, Accessory Dwelling Units

45.031-D Regulations

* * *

~~5. Open space (Minimum open space per unit)~~
~~No additional open space is required for the accessory dwelling unit.~~

6~~5~~. **Accessory Dwelling Unit Size**

* * *

7~~6~~. **Building and Fire Codes**
All accessory dwelling units are subject to applicable building and fire codes.

8~~7~~. **Additional Regulations for Accessory Dwelling Units**

* * *

Chapter 55 Parking

Section 55.090 Parking Area Design

55.090-F Surfacing

* * *

4. As an alternative to fully paved driveways, ribbon driveways serving residential dwelling units are allowed, subject to the following provisions.

   a. Ribbon driveways consist of at least two wheel strips, at least 2 feet in width each, constructed with concrete.

   b. The wheel strips must be separated by a permeable surface with a maximum width of 4 feet. The space between the wheel strips may be planted with turf, grass, or other ground cover, or filled with landscaping rocks or gravel. Gravel or rocks that have migrated onto adjacent areas must be regularly swept and removed. The permeable space between wheel strips does not count toward satisfying minimum open space ~~per unit~~ requirements.

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Chapter 70 Review and Approval Procedures

* * *

Section 70.100 Administrative Adjustments

70.100-B Authorized Administrative Adjustments

1. Administrative adjustments may be granted by the land use administrator only as expressly identified in this section.

* * *

h. Reducing open space requirements by up to 10%.

* * *

Section 70.130 Variances

70.130-B Authorized Variances

The board of adjustment is authorized to grant a variance to any regulation in this zoning code in accordance with the variance procedures of this section, except that the variance procedures may not be used to do any of the following:

1. Allow a principal or ~~an~~ accessory use in a zoning district that is not otherwise allowed in that zoning district (i.e., "use variances" are prohibited);
2. Allow an accessory use on a lot that is not occupied by the principal use that such accessory use serves;
3. Waive, modify, or amend any definition or use classification;
4. Waive, modify, or otherwise vary any of the review and approval procedures of this chapter; or
5. Waive, vary, modify, or otherwise override a condition of approval or requirement imposed by an authorized decision-making body or the state or federal government~~; or~~ .
6. ~~Waive, vary or modify applicable residential density regulations, provided that this provision is not intended to prohibit variances to minimum lot area or width requirements that apply to lots occupied by a single dwelling unit.~~

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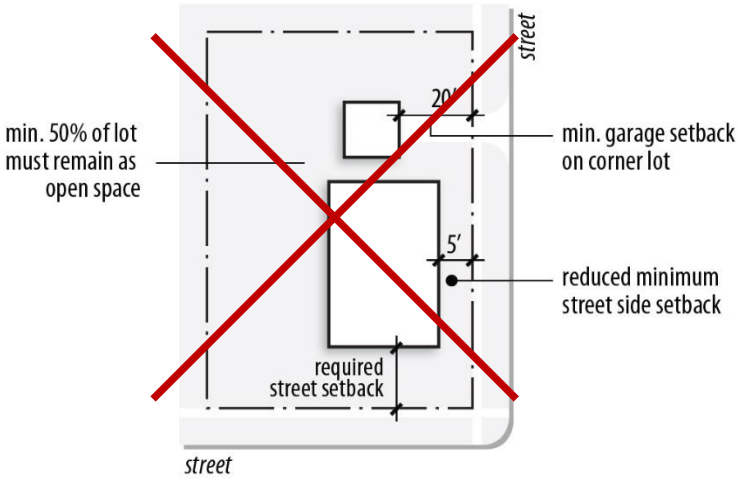
Chapter 80 Nonconformities

Section 80.020 Nonconforming Lots

80.020-B Nonconforming Lots in Residential Zoning Districts

In residential zoning districts, a use permitted by right or by special exception ~~a single detached house~~ may be ~~erected~~ located on a nonconforming lot without complying with ~~the~~ minimum lot area, minimum lot area per unit, minimum lot width, or minimum street frontage. ~~or minimum open space per unit requirements of the subject zoning district, provided that at least 50% of the lot area remains as open space.~~ All other lot and building regulations apply, except that ~~detached houses~~permitted uses may be ~~erected~~ located on corner lots that are nonconforming with regard to lot width, subject to a reduced minimum street side building setback of 5 feet. Garages that are accessed through a side yard abutting a street must be set back at least 20 feet.

~~*Figure 80-1: Detached House on Nonconforming Lot in R District*~~



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Chapter 90 Measurements

Section 90.080 Open Space ~~per Unit~~

~~90.080-A Open space per unit refers to the amount of outdoor open space required to be provided on a lot for each dwelling unit on the subject lot. Multiply the minimum open space-per-unit requirement by the number of dwelling units to determine the total amount of open space required on a lot. In applying minimum open space-per-unit requirements to fraternity, sorority and rooming/boarding house uses, each 600 square feet of floor area is counted as one dwelling unit.~~

~~90.080-B The following may be counted toward satisfying minimum open space-per unit requirements:~~

1. ~~Outdoor areas that are not occupied by buildings, driveways or parking areas and are generally useable by residents;~~
2. ~~Driveways and parking areas located in the rear yard of a detached house or duplex; and~~
3. ~~Green roofs covering 25% or more of the subject building's overall roof area.~~

~~90.080-C Required open space within a townhouse development may be provided on each townhouse lot or may be provided in outdoor common areas within the townhouse development, as designated on the recorded subdivision plat or in a separately recorded legal instrument.~~

90.080-A Minimum open space requirements are established for the purpose of reducing stormwater runoff, encouraging the natural absorption of water into the soil, promoting adequate space for landscaping and green space, protecting water quality, preserving natural resources, and mitigating the urban heat island effect.

90.080-B Open space is calculated as the total area of all pervious surfaces divided by the lot area and multiplying by 100. The area of pervious surfaces is calculated as the lot area minus the total area of all impervious surfaces.

90.080-C An impervious surface is any surface which significantly reduces or prevents natural absorption of water into the soil. Unless otherwise expressly stated, impervious surfaces include but are not limited to: areas covered by buildings or other structures with roofs, driveways, parking areas, sidewalks, concrete, asphalt, brick, or stone. The following are excluded from the calculation of impervious coverage on a lot:

1. Green roofs installed in accordance with Section 95.100; and
2. Pervious pavement or pervious pavement systems installed in accordance with Section 55.090-F.6;
3. Swimming pools

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Chapter 95 Definitions

Section 95.180 Terms Beginning with "O"

Open Space ~~per Unit~~
See Section 90.080.

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CITY OF TULSA PLANNING OFFICE

Planning Commission Work Session

November 4, 2026

Prepared by: Felicity Good, AICP

Item

Discuss proposed zoning code text amendments related to demolition procedures in Historic Preservation overlays

Background

Historic Preservation (HP) overlays are a type of zoning district that can be applied to historic properties or districts. Within HP overlays, owners must obtain an HP permit for most exterior work on their properties. The Tulsa Preservation Commission is responsible for reviewing and acting on HP permit applications.

Section 70.070 of the Tulsa Zoning Code outlines the review and approval procedures for HP permits. Although the Tulsa Preservation Commission has authority to approve or deny HP permits, current regulations do not allow the commission to prevent the demolition of historic structures. If the preservation commission denies an HP permit application for demolition, the demolition is automatically stayed for 60 days, allowing time for the commission to consult with the owner and other interested parties to find alternatives to demolition. At the end of the 60-day period, the HP permit is deemed automatically approved and must be issued. This approach has led to the irreversible loss of numerous historic structures in areas of the city where historic preservation is intended to be a priority.

Staff researched HP permit requests for demolition and found 65 available records dating back to 1994. The records indicate that the preservation commission approved demolition applications about 42% of the time, while 78% of the total applications resulted in demolition. In the cases where a building was demolished, new housing has been built in its place only about 55% of the time. The remaining properties are now vacant lots, parking lots, or commercial properties.

In 2023, the Tulsa Preservation Commission hired Duncan Associates to identify and review sample demolition ordinances in other cities. The report outlined a wide range of tools and approaches cities have taken to regulate demolition in historic districts. The Tulsa Preservation Commission then formed a Demolition Committee in 2024 to further reconsider demolition regulations in HP overlays. The committee has worked with staff over the past two years to develop potential text amendments to the zoning code.

Summary of Changes

The proposed zoning code text amendments would involve a new approach to reviews of HP permit applications for demolition by eliminating the stay of demolition and automatic approval after 60 days. As proposed, the preservation commission would be able to make decisions on demolition applications but must make written findings as to specific factors. The proposed amendments also require applicants to submit a professional structural assessment, documentation of original or historic features, documentation of non-historic alterations on the building, and a conceptual project plan depicting the intended use of the property after demolition. A sign notice must be posted on the property prior to the commission's public meeting to consider the request.

The proposed changes involve a new step allowing a property owner to request an economic hardship hearing, in which the preservation commission may consider whether denying the demolition request would create an economic hardship. The decision would be based on considerations such as cost estimates for rehabilitation, appraisal values, property tax payments, and the required structural assessment.

Finally, as proposed, if the preservation commission approves an HP permit for demolition, the demolition may not proceed until a demolition permit, HP permit, and building permit for the work depicted in the project plan are obtained. The preservation commission may waive the requirement if it determines that the building or structure is imminently dangerous. The proposal also allows the City to proceed with demolition without an HP permit in cases when a nuisance hearing officer determines that a structure is dilapidated and has become dangerous or creates a fire hazard.

Next Steps

Following this work session, staff will work with the preservation commission to finalize the draft and prepare a detailed memo requesting planning commission initiation of the proposed amendments. When placed on an agenda, the planning commission will review and consider the initiation request. If initiated, staff will conduct public outreach before the planning commission's public hearing to make a recommendation on the zoning code text amendments. If planning commission recommends for approval, the proposed amendments will be transmitted to the City Council for their consideration.

Attachments

The proposed text amendments to Section 70.070 of the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances, are shown in ~~strikethrough~~/underline in the **Attachment**.

Chapter 70 | Review and Approval Procedures

Section 70.010 Common Provisions

70.010-A Applicability

The common provisions of this section apply to all of the procedures in this chapter unless otherwise expressly stated.

Table 70-1: Review and Decision-making Authority Summary Table

Procedure	Staff	Preservation Commission	Planning Commission	Board of Adjustment	City Council	Public Notice
Zoning Code Text Amendments	R	–	<R>	–	<DM>	N[7]
Zoning Map Amendments (Non-HP)	R	–	<R>	–	<DM>	N,M,P[7]
Development Plans	R	–	<R>	–	<DM>	N,M,P[7]
Site Plans	DM[1]	–	–	–	–	–
Historic Pres. (HP) Zoning Map Amendments	R	R	<R>	–	<DM>	N,M,P[7]
HP Permits	R[2]	DM[2]	–	–	–	=P[8]
Zoning Code Interpretations	DM[3]	–	–	–	–	–
Spacing and Separation Distance Verification	DM[4]	–	–	–	–	–
Special Exceptions	–	–	–	<DM>	–	N,M,P[5]
Variances	–	–	–	<DM>	–	N,M
Appeals of Administrative Decisions	–	–	–	<DM>[6]	–	N,M

R = Review body (review and recommendation) | **DM** = Decision-making body (final decision to approve or deny)
< > = Public hearing required | Hearing Notice: **N** = Newspaper; **M** = Mail; **P** = Posting (signs)

Table 70-1 Notes

[1] Unless alternative site plan review procedure/decision-maker is established by city council at time of development plan approval (see 70.050-C)
[2] Preservation officer (staff) authorized to act on some applications (see 70.070-K)
[3] Development administrator authorized to issue written interpretations
[4] Development administrator authorized to verify spacing and separation distance requirements
[5] Special notice requirements for minor special exceptions (See 70.120-E)
[6] Appeals of administrative decisions on site plans go to the planning commission
[7] Notice required for planning commission public hearing but not for city council public hearing
[8] Posted (sign) notice required only for HP permits that include demolition of a building or structure

***

Section 70.070 HP Permits

***

70.070-D Application Filing

1. Complete HP permit applications must be filed with the preservation officer in a form established by the preservation commission. The application must be accompanied by plans of sufficient clarity and detail to show the nature of the work to be performed and the materials to be used. The plans must depict at least the following information:

~~1~~**a.** The location, orientation and placement of existing and proposed structures on the site;

~~2~~**b.** A floor plan, if applicable, identifying the location and limits of the proposed work;

~~3~~**c.** Facade elevations, if applicable, of the proposed work in sufficient detail to identify existing and proposed materials and the location of the proposed work; ~~and~~

d. For any building or structure proposed for demolition, a structural assessment of the building or structure, prepared by a licensed, professional structural engineer or architect;

e. For any building or structure proposed for demolition, an evaluation of the building or structure and its individual elements, which must include documentation of original or historic features and non-historic alterations on the building or structure; and

~~4~~**f.** Any other drawings, photographs, material brochures or samples, specifications, or information that may be necessary to determine compliance with HP district regulations and design guidelines.

2. Proposals for the demolition of a building or structure must include a conceptual project plan depicting the intended use of the property after demolition, including any proposed new buildings or structures.

3. While an HP permit application that includes demolition of a building or structure is pending, the property owner shall not take any action, or fail to take any action, where such action or inaction leads to further damage to the building or structure in question.

4. If a nuisance hearing officer, acting pursuant to Title 24, Chapter 4 of the Tulsa Revised Ordinances, determines that a structure within an HP district is dilapidated and has become detrimental to the health, safety or welfare of the general public and the community or creates a fire hazard which is dangerous to other property, the dilapidated structure may be demolished without approval by the preservation commission. However, any other changes or work, such as rehabilitation or new construction, must comply with the HP permit process set out in this Section 70.070.

70.070-E Posted Notice of Meeting

When an HP permit application includes the demolition of a building or structure, notice (signs) must be posted at least 10 days before the scheduled public meeting.

70.070-~~E~~F Meeting and Final Decision—Preservation Commission

1. Within 30 days of receipt of a complete HP permit application, the preservation commission must meet to consider the application and act to approve the HP permit, approve the HP permit with modifications and/or conditions, or deny HP permit application based on the standards and review criteria of 70.070-F. Failure of the preservation commission to take action within 30 days of receipt

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of a complete HP permit application is deemed to constitute approval of the HP permit, unless the applicant requests or agrees to an extension of the 30-day period.

2. When an HP permit application that includes demolition of a building or structure is approved by the preservation commission, the demolition may not proceed until the HP permit, a demolition permit, and a building permit (as applicable) are obtained for all work depicted in the project plan described in Section 70.070-D.2. The preservation commission may waive this requirement if it determines that the existing building or structure is imminently dangerous to life, health, and property, and its demolition would remedy the dangerous conditions, as evidenced by the structural assessment required by Section 70.070-D.1.d and other documentation provided by the owner or applicant.

70.070-~~F~~G Standards and Review Criteria

1. In its review of HP permit applications, the preservation commission must use the adopted design guidelines to evaluate the proposed work and must, to the greatest extent possible, strive to affect a fair balance between the purposes and intent of HP district regulations and the desires and need of the property owner. In addition, the preservation commission must consider the following specific factors:

   ~~1~~**a.** The degree to which the proposed work is consistent with the applicable design guidelines;

   ~~2~~**b.** The degree to which the proposed work would destroy or alter all or part of the historic resource;

   ~~3~~**c.** The degree to which the proposed work would serve to isolate the historic resource from its surroundings, or introduce visual elements that are out of character with the historic resource and its setting, or that would adversely affect the physical integrity of the resource;

   ~~4~~**d.** The degree to which the proposed work is compatible with the significant characteristics of the historic resource; and

   ~~5~~**e.** The purposes and intent of the HP district regulations and this zoning code.

70.070-H Demolition Requests

1. In addition to the standards and review criteria listed in Section 70.070-G, in its review of HP permit applications that include demolition of a building or structure, the preservation commission must also consider and make written findings as to the following specific factors:

   a. The degree to which the continued use of the building or structure through rehabilitation, modification, or alteration of the building or structure is feasible, as evidenced by the structural assessment required

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by Section 70.070-D.1.d and other documentation provided by the owner or applicant;

b. Any alternatives to demolition, including the donation, sale or relocation of the building or structure, that are available to the owner;

c. Whether the building or structure is a historic resource, and the degree to which its demolition would alter the integrity and continuity of the HP district;

d. The degree to which the existing building or structure is imminently dangerous to life, health, or property, and whether its demolition would remedy the dangerous conditions; and

e. The degree to which the proposed redevelopment of the site, as depicted in the project plan described in Section 70.070-D.2, would alter the integrity and continuity of the HP district.

2. If the preservation commission votes to deny a demolition request, the applicant may request an economic hardship hearing, which shall take place at the next meeting of the commission. The applicant may request that the economic hardship hearing take place at a later meeting of the commission, but the hearing must take place within 90 days of the preservation commission's initial denial. A request for an economic hardship hearing must be filed with the preservation officer in a form established by the preservation commission within seven (7) days of the commission voting to deny the demolition request. If an economic hardship hearing request is made, the time to appeal the commission's decision in accordance with Sections 70.070-L and 70.140 shall be tolled until the economic hardship determination is made.

3. In determining whether a denial of the demolition request would create an economic hardship, the commission shall determine whether sufficient economic potential remains in the control of the property owner, given reasonable economic expectations.

a. The commission may consider, among other things, reasonable cost estimates for rehabilitation and redevelopment, valuation of the property based on an appraisal, annual ad valorem tax payments, and the overall assessment of the building or structure submitted pursuant to Section 70.070-D.1.d.

b. The commission shall not consider the financial ability of the owner to rehabilitate the property or self-imposed hardships, such as a lack of due diligence, demolition by neglect, or intentional destabilization of a structure.

4. The burden shall be on the applicant to prove an economic hardship. If the preservation commission determines that a denial of the demolition request would create an economic hardship, the demolition request shall be granted.

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~~**70.070-G Demolition Requests**~~

~~1. Any HP permit application for demolition, if not approved, is automatically stayed for a period of 60 days, unless the preservation commission determines that the building or structure meets one of more of the following criteria:~~

~~**a.** It is imminently dangerous to life and property;~~

~~**b.** The building or structure does not contribute significantly to the district; or~~

~~**c.** The building or structure cannot be preserved.~~

~~2. During the 60-day stay period, the preservation commission must consult with the property owner and other interested parties to find alternatives to demolition. Should alternatives acceptable to the property owner not be found, the HP permit for demolition will be deemed automatically approved and must be issued upon termination of the stay period.~~

~~3. Prior to the expiration of the 60-day stay period, the preservation commission may request that the city council extend the stay for a period not to exceed an additional 60 days. The preservation commission must provide written notice to the property owner of such request and of the date of the public hearing to consider the request. At the hearing, the city council must consider whether:~~

~~**a.** The preservation commission has presented reasonable alternatives that would preserve the structure;~~

~~**b.** Suitable alternatives have been found and further time is required to finalize arrangements for achieving such alternatives; and~~

~~**c.** The property owner desires further time to search for or continue action on available alternatives.~~

~~4. After notice and public hearing, the city council must vote to approve, approve with conditions, or deny the request for an extension of the stay period. If the request is denied the HP permit for demolition will be deemed automatically approved and must be issued upon termination of the original stay period.~~

~~5. During any period of the stay of demolition the property owner may use the property in question in any legal manner, except that no action may be taken that would place the property in danger of damage or destruction.~~

70.070-~~H~~I Lapse of Approval

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70.070-~~I~~J Transferability

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70.070-~~J~~K Amendments

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70.070-~~K~~L Action by Preservation Officer

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70.070-~~L~~M Appeals

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CITY OF TULSA PLANNING OFFICE

Planning Commission Work Session

November 4, 2026

Gunner Harris

Item

Discuss the newly updated Tulsa Preservation Commission Unified Design Guidelines for Historic Preservation Overlay Districts.

Background

Unified Design Guidelines support the preservation of the Heights, Gillette, North Maple Ridge, Swan Lake, Yorktown, Tracy Park, and the Elmwood–Patrick J. Hurley Mansion. They serve as a public resource for property owners in historic preservation overlay districts completing exterior work visible from the street. The Tulsa City Council approved major revisions in 2017 and updated the non-residential guidelines for city park projects in 2023. With the 2026 update, the Tulsa Preservation Commission further develops guidance for preservation projects. Each section provides detailed direction to assist in historically appropriate project planning and review.

The guidelines help preserve each neighborhood's historic narrative and ensure that projects remain compatible with their original historic fabric. Overall, the guidelines reinforce preservation practices, protect architectural character, and provide a clear framework for compatible alterations and repairs. The 2026 updates build on the guidelines to better assist residents, property owners, contractors, and decision makers throughout the review process. The goal of the update is to streamline the Historic Preservation Permit process by clarifying what requires review and outlining specific standards.

The goal of the updates is to enhance usability while ensuring that Tulsa's historic neighborhoods retain their unique character as they continue to evolve. The guidelines offer clear preservation direction and help residents apply best practices in their projects. They also support collaboration with the Preservation Commission, ensuring access to expert preservation guidance.

Summary of Changes

The updates to the Unified Design Guidelines involve enhancing the document to match the commission's branding, reorganizing the document, and adding the following elements:

- Updated graphics, charts, and photographs;
- Background on the history of Tulsa and HP overlay districts;
- A section describing common architectural styles in Tulsa;
- Helpful Hints for applicants throughout the guidelines section;
- A guide to selecting replacement materials;
- A section on best practices for masonry;
- Additional resources for owners; and
- A glossary of terms.

Efforts to date

- **April 2026** - RGD Planning and Design Inc. was selected as the consultant.
- **May 2026** - Consultant provided preliminary outline.
- **May 6-8, 2026** - Project Lead Michelle Cunliffe conducted a site visit to research, tour locally designated historic districts, and meet with the preservation commission.
- **May 21, 2026** - Consultant shared a preliminary rough draft, and commissioners and neighborhood representatives provided feedback.
- **May 5 - June 8, 2026** - Project website and public survey were launched to gather public feedback.
- **June 29, 2026** - Consultant met virtually with the subcommittee for a review and comments.
- **July 7, 2026** - Draft submitted to State Historic Preservation Office for review.
- **July 30, 2026** - Consultant met virtually with the subcommittee for final review and comments.
- **August 5, 2026** - State Historic Preservation Office sent final comments.
- **August 18, 2026** - Consultant submitted the final document to the commission and State Historic Preservation Office.
- **August 18, 2026 - Present** - Staff has been reviewing the final draft and making final adjustments.

Next Steps

The Tulsa Preservation Commission and staff will introduce the Unified Design Guidelines during a neighborhood meeting on November 4, 2026. Attendees from historic preservation overlay neighborhoods will have the opportunity to review the guidelines and provide final feedback. Staff will consider this input and present a final draft of the guidelines to the Historic Preservation Permit Subcommittee in November for review and recommendation. After the subcommittee makes its recommendation, the preservation commission will vote to forward the guidelines to the planning commission. The planning commission will make a recommendation, and then the guidelines will be forwarded to the City Council for final consideration and adoption.

CITY OF TULSA PLANNING OFFICE

Planning Commission Work Session

November 4, 2026

Prepared by: Austin Chapman, AICP

Item

Discuss proposed adoption of new Subdivision and Development Regulations for the City of Tulsa Planning Commission.

Background

The current Subdivision and Development Regulations were adopted by the Tulsa Metropolitan Area Planning Commission. With the formation of the new City of Tulsa Planning Commission, updated regulations are now necessary. In addition to removing references to the TMAPC and Tulsa County, staff will recommend revisions to address inconsistent, ambiguous, and confusing language within the existing regulations. These recommendations will not result in substantive policy changes; rather, they will focus on clarifications identified through feedback from the public and City staff during both the subdivision review process and infrastructure development activities.

Topics for consideration

Below is a non-exhaustive list of topics currently under discussion. Additional topics may be added as we continue meeting with stakeholders.

- Replace references to TMAPC with PC throughout the entire document;
- Remove references to Tulsa County throughout the entire document;
- Eliminate Sec. 5-040.2, allowing flag lots by right.
- Amend Sec. 5-090.2-F to require floodplain easements only in the case of platting;
- Add bonds as allowable in Sec. 5-180.3 for performance guarantees, currently only letters of credit and cash in escrow is allowed;
- Add references to City of Tulsa standard access management details to Sec. 5-060.2;
- Amend Sec. 10-050 to clarify minor plat process and allow reinstatements of preliminary plat approval;
- Amend Sec. 10-060 to consolidate Type 1 and 2 splits. Current language is confusing and not applied in practice;
- Sec. 15-020: Align definitions for alley and street with proposed definitions in the zoning code.

Next Steps

Staff will continue to meet with internal and external stakeholders to solidify a list of recommendations with a goal of bringing recommendations to the Planning Commission early in 2027.